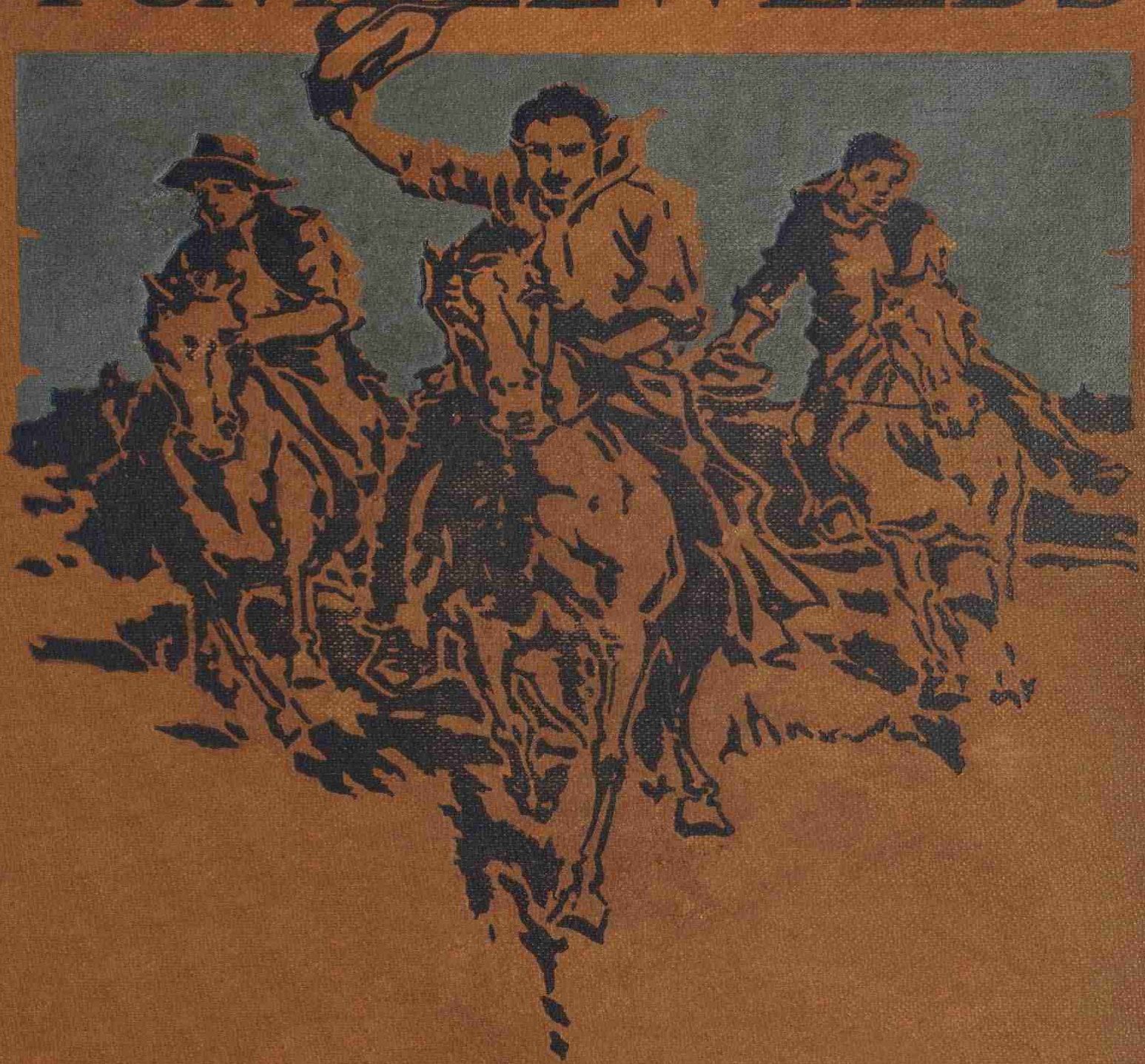
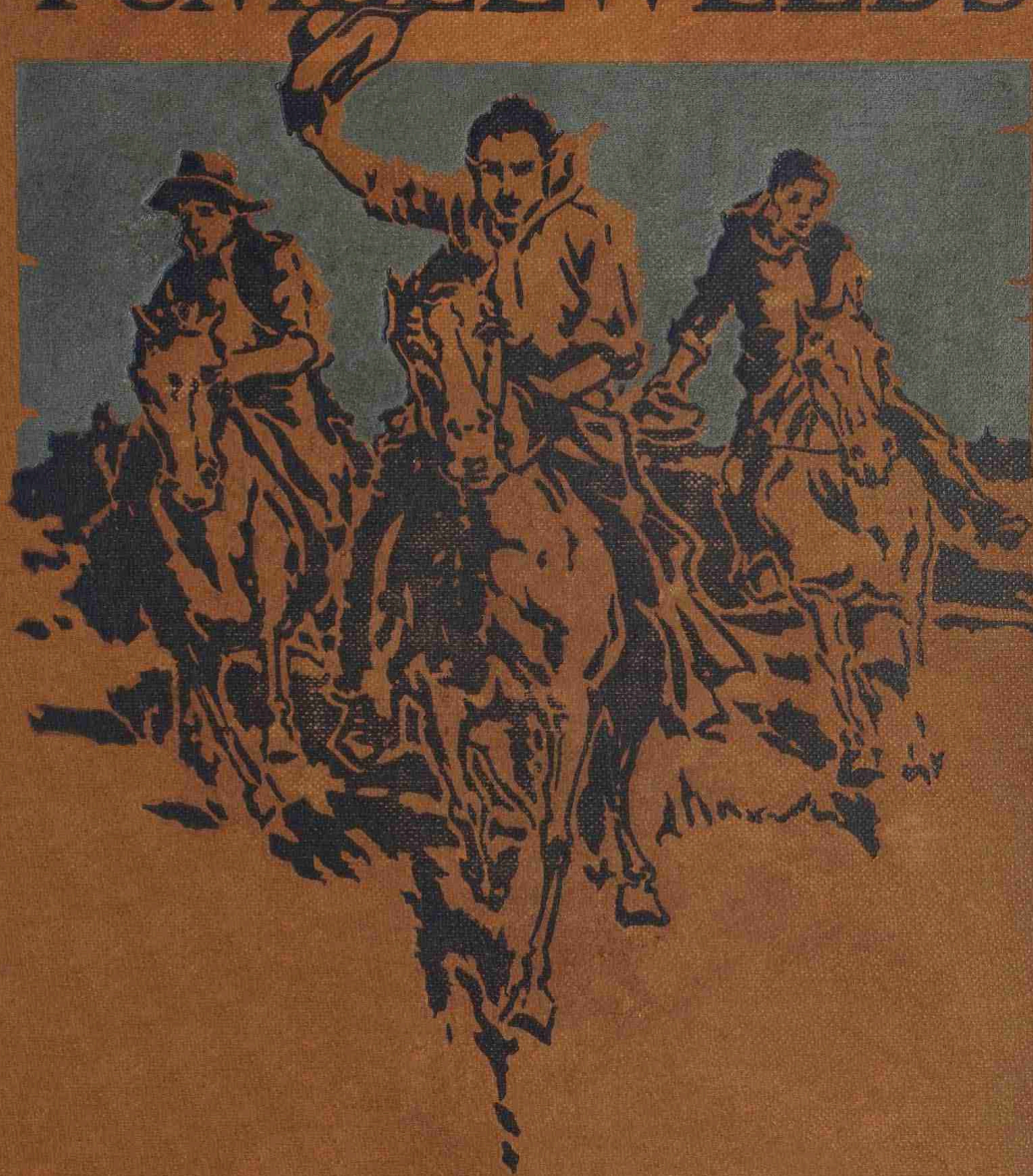


TUMBLEWEEDS



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*** START OF THE PROJECT GUTENBERG EBOOK
TUMBLEWEEDS ***

TUMBLEWEEDS

By Hal G. Evarts

THE CROSS PULL

THE YELLOW HORDE

THE PASSING OF THE OLD WEST

THE BALD FACE: AND OTHER ANIMAL STORIES

THE SETTLING OF THE SAGE

FUR SIGN

TUMBLEWEEDS



**It was quite evident that all her thoughts centered round the
younger brother.**

FRONTISPIECE. See page [54](#).

TUMBLEWEEDS

BY
HAL G. EVARTS

WITH FRONTISPIECE BY
W. H. D. KOERNER



BOSTON
LITTLE, BROWN, AND COMPANY
1923

TUMBLEWEEDS

**BY
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LITTLE, BROWN, AND COMPANY
1923**

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TUMBLEWEEDS

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I

In all that vast expanse of country west of Fort Riley clear to the Sierras of California there are not over four hundred thousand acres of arable land.

THIS extract from McClelland's report, later appearing as preface to some fourteen volumes of Pacific Railroad explorations, evidently acted as a direct challenge to the pioneering spirit of a country that was young. Following immediately upon its publication, as if in a concerted effort of refutation, the great westward trek across a continent set in, the determined advance of a land-hungry horde intent upon seeking out and settling that four hundred thousand acres of arable land; and in the brief space of thirty years there were thirty million acres under fence while the swarming multitude of hopeful settlers continued to surge westward across the face of the earth.

Thus do even wise men frequently fail to vision the immensity of the future which stretches forth ahead within the puny span of their own remaining years.

Another few decades and old Joe Hinman, himself accounted a wise man among his fellows, sat his horse on a little rise of ground and lamented his own lack of foresight. Donald Carver, his younger companion, gazed off across the flat where several riders held some two thousand head of steers. Hinman had come with the vanguard of the invaders and had watched succeeding waves of home seekers swarm past on all the ancient trails, the bull trains stretching almost without a break from the Missouri to the Colorado hills, when Cheyenne, Kiowa and Comanche contested the advance at every crossing of the Republican and the Smoky Hill, at the Great Bend of the Arkansas, and historic Pawnee Rock; had watched the bull teams and the prairie schooner giving way to freight cars that rattled past on steel rails which spanned a continent. He had seen the rolling plains of Kansas, once constituting the first reaches of the Great American Desert,

lifted bodily into statehood and wondrous fertility, so long since that younger men had almost forgotten that their native State had ever been other than a prosperous agricultural community. While the main tides of settlement had swept on to the west and north, Hinman had turned aside and traveled south on the Chisholm Trail till he reached a point where the floods of home seekers were halted by some invisible barrier. There he had settled and prospered, but even now, thirty years after driving his first claim stakes through the prairie sod, that same barrier resisted all advance. Just outside his dooryard a vast tract, sixty miles by two hundred in extent, remained undeveloped and untouched. The land was rich and beckoned temptingly to those who sought a scrap of ground which might constitute a home, yet beyond Hinman's holdings the virgin sod extended to the far horizon with never a ribbon of smoke by day or a twinkling window by night to indicate the friendly presence of a settler's cabin,—the Cherokee Strip, upon which the white man was forbidden to settle by the terms of an ancient treaty. This great tract had been set aside to serve as insulation between warring whites and reds, its status still the same even though the necessity for such insulation had been long since removed,—an empire lying dormant and awaiting only the magic word which should strike off the shackles and permit its broad miles to blossom into productiveness.

"There she lays, son," Hinman said, waving an arm in a comprehensive sweep toward the unowned lands. "Some day right soon they'll open her. Every land-hungry party in four States has his eye on the last frontier and whenever she's throwed open to settlement you'll see one hair-raising mad stampede. So if you're going off somewheres, like I heard it rumored, why I'd cancel the arrangements and sit tight."

The younger man nodded without comment.

"Fortune always beckons from some place a long ways remote," Hinman rambled on. "When likely she's roosting right at home, if only we'd have a look. Now I quit Ohio as a youngster because there wasn't any land left open but hardwood swamp lands, which could be had for about a dollar an acre, but I couldn't see its value at a dollar a mile. To-day that Ohio swamp land is selling round two hundred an acre while what ground I've got under crop out here would average right at thirty and raw grassland not over three or four."

“But owning the most part of two countries,” Carver commented, “you can maybe worry along.”

“Likely,” Hinman confessed. “But that’s not the point. I could have stayed right at home with those swamp lands and without ever exerting myself, except maybe to keep entertained with a brace of coon hounds, I could have growed into more wealth by considerable than what I’ve accumulated out here by steady work. That’s the real point; so it appears that my leaving there was sheer lack of foresight. So it’s likely that your best chance to get ahead and lay up an honest dollar is by staying right here instead of stampeding off somewheres. That’s the real reason I sent for you.”

“Since I’ve never even considered leaving, and you well aware of it,” said Carver, grinning, “then the real reason you sent for me was to engage me to perform something you didn’t want to do yourself—which in turn is related to the possibility of my accumulating an honest dollar. We’ve rambled all the way from timbered swamp land on down to the surrounding short grass. What sort of country lays beyond? My curiosity is fairly foaming over.”

Hinman regarded him quizzically and Carver bore the scrutiny undisturbed. The older man knew that Carver was dependable; that once committed he would follow any mission to its termination and defend the financial interests of his employer with every resource at his command. It was only in his own affairs that he evidenced supreme carelessness. Older men forgave his irresponsibility in that quarter and accorded him a certain measure of respect for the reason that even in the midst of some bit of recklessness he retained an underlying sense of balance and proportion. And he had worked intermittently for old Joe Hinman for the past twelve years.

“It’s not that I don’t want to do it myself,” Hinman denied, reverting to Carver’s mild accusation. “It’s only that it wouldn’t look right on the surface. Now whatever property is down in the Strip is legally non-existent, you might say, and consequently untaxable,” thereby disproving his oft-lamented lack of foresight. “And it’s drawing right close to the first of March.”

“So you want me to move a thousand head of steers across the line and hold ’em till after you’ve been assessed.” Carver hazarded.

“Two thousand, son,” Hinman corrected. “Two thousand head. You couldn’t hold ’em in the quarantine belt for long without getting jumped, but you know the boss of every outfit off to the south and you could maybe trade deals with one of them. You’ll know how. It’ll save me taxes on two thousand head and give me a few weeks’ free grass. That much for me and a thousand nice dollars for you if you put it across.”

“An hour after dark I’ll be shoving those cows across the line,” Carver promised. “Meantime you might advance a hundred. Unfortunately I’m just out of funds.”

“Unfortunately,” said Hinman, “you’re just always out.” He counted off the money. “You’ve worked for me on and off ever since you was big enough to claw your way up onto a horse and on some occasions you’ve exercised such fair average judgment in looking after my affairs that I’ve wondered why on all occasions you was such a poor hand to look after your own.”

“I’ve been so taken up with your business that I’ve sort of let my own interests drift along,” Carver explained.

“You’re right handy at doing things for me,” Hinman resumed. “But when it comes to doing anything for yourself you’re somewhat the most tinkering, trifling specimen I’ve come across. You really ought to settle on some one job and stick at it.”

“That’s my one favorite motto,” Carver confessed. “Stick to your bush—and be exhibited among the vegetables.”

He turned his eye upon a tumbleweed that raced madly past before the wind. The dried skeleton was of the general size and shape of a pumpkin. Two more of these discontented wraiths of the prairies hurtled past.

“Now there goes a vegetable with ambitions,” said Carver. “Every winter the tumbleweed tribe stages a protest against being mere plants rooted forever to one spot.” He chanted a few of the numberless verses of a prairie song:

“Our size and shape is similar,”
Said the tumbleweed to the pumpkin.
“I’ll run you a race from here to there
And all the way back again.

“I’m a wild free blade of the open,
The spirit of all unrest.
I may end up in some worse place
But I’m going to make the test.”

“And I’m the soul of solid content,”
Said the pumpkin to the weed.
“Rather than take any chance at all
I’ll stay here and go to seed.”

But I’d rather be a traveling weed
Than a stationary squash.

“I know,” Hinman said. “You’re a pure-bred tumbleweed and no mistake.
But most folks follow one business, and let the rest alone.”

“And it’s my observation that most folks are dissatisfied with what they’re
working at but keep on doing it the rest of their natural lives just to try and
vindicate their judgment,” Carver said. “Now if I don’t settle on one pursuit
there’ll never be any reason for me to be discontented with my choice.”

The old man considered this bit of philosophy.

“If you ever decide to risk a mistake I’ll maybe help you out to a mild
extent,” he said, “provided you come through with this present little errand
I’m sending you on.”

Carver thanked him, pocketed the bills which constituted the advance upon
his venture, and headed his horse off to the east. As he rode he reviewed all
possible motives underlying Hinman’s proposal. Tax-dodging on a smaller
scale was no unusual thing along the line, but he was morally certain that
this motive, though the purported object of the trip, was entirely secondary
in Hinman’s considerations.

“The taxes won’t amount to half the expenses of the trip,” Carver reflected. “Now just what is he aiming at?”

He had reached no satisfactory solution when, an hour later, the squat buildings of Caldwell loomed before him. He dismissed the problem temporarily. As he rode down the wide main thoroughfare it seemed that the hand of time had been turned back two decades to the days of Abilene, Hayes and Dodge, when each of those spots in turn had come into its brief day of glory as the railroad’s end and the enviable reputation of being the toughest camp on earth. In their day all those towns had eclipsed the wildest heights of wickedness attained by mushroom mining camps of lurid fame, then had passed on into the quiet routine of permanent respectability as the trading centers of prosperous agricultural communities. But little Caldwell stood unique, as if she were a throwback to an earlier day, nestling in the edge of a state where prohibition and anti-gambling regulations had long prevailed, yet her saloons stood invitingly open by day and night and the clatter of chips and the smooth purr of the ivory ball were never silent in the halls of chance; for just beyond lay No Man’s Land, the stamping ground of all those restless spirits who chafed against restrictive laws that were not of their own making, and wide-open Caldwell reaped the harvest of their free-flung dollars.

Groups of tall-hatted, chap-clad men hailed Carver from the sidewalk as he rode down the wide main street. Scores of saddled horses drowsed at the hitch rails and ranchers’ families rattled past in buckboards drawn by half-wild ponies. The street was thronged with blanketed Indians, for the Government beef issue was parcelled out semi-monthly on the little hill south of Caldwell and every two weeks the whole Cherokee nation made the pilgrimage to receive the largess of the Great White Father. As if to complete the illusion that he had been transported back to the days of Dodge and Abilene, Carver could make out the low-hanging pall of dust which marked the slow progress of a trail herd moving up from the south along the old Chisholm Trail, a thoroughfare now paralleled by the railroad that pierced the Cherokee Strip, but which was still available to those who would save freight charges and elected instead to follow the old-time method of pastoral transportation in marketing their droves.

Carver left his horse in a lean-to shed in rear of a two-room frame house in the outskirts of town. The plot of ground on which it stood, consisting of

three corner lots, had come into his possession the preceding winter through the medium of a poker hand. Instead of disposing of the tract for ten dollars—the amount of chips which he had risked against it—it had pleased him to retain it and construct thereon the little board house, performing the work himself during leisure hours.

He headed for the swinging doors of the Silver Dollar, hopeful of finding congenial companionship even though this was the wrong time of day for any considerable activity within doors. A group of men sat along the rear wall and conversed in listless tones. Here were those upon whom fortune had failed to smile the preceding night, waiting for some kindred spirit who, more favored than themselves, might express a willingness to relieve their temporary distress.

“It’s high noon and I’ll wager not a man present has even had his breakfast,” Carver greeted. “But the rescue squad is here to provide nourishment for the losers.”

He tendered a crisp bill to Alf Wellman.

“Fill the boys with food,” he invited. “And in the meantime, while they’re deciding what to order—” and he motioned toward the polished bar.

Wellman jerked a casual thumb in the direction of the three men in the group who were unknown to Carver.

“These are the Lassiter boys,” he announced by way of introduction. “Not bad after you get to knowing ’em.”

The three Lassiters were an oddly assorted crew; Milt, the eldest, a gaunt, dark man who spoke but seldom; Noll, a sandy, self-assertive and unprepossessing individual; while Bart, by several years their junior, was a big blond youngster whose genial grin cemented Carver’s instant friendship.

Noll Lassiter hitched from his chair, his eyes resting on the bank note in Wellman’s hand, and as he attained his feet a slight lurch testified to the fact that even if he had not found food during the morning hours he had at least found drink. Being thus fortified his desire for food was now uppermost.

“Let’s eat,” he said.

“Restrain yourself,” the younger brother admonished. “The gentleman’s giving a party. Besides it’s downright harmful to eat breakfast on an empty stomach—and mine is absolutely vacant.”

“Worst thing you could do,” Wellman seconded. “It will show up on a man if he keeps at it.”

“I expect there have been folks tried it and went right on living till they got kicked by a horse or died some other sort of a natural death,” said Carver. “But what’s the use of taking chances?”

Noll restrained his urge for food while the host paid for two rounds, then reverted to his original contention.

“And now,” said he, “let’s eat.”

“Not until I’ve purchased a return round for our old friend Carver,” Bart dissented.

“How’re you going to manage it without a dime in your pockets?” Noll demanded.

“You ought to be familiar with the state of my pockets,” the blond youth returned, “having conducted a thorough search of them and purloined therefrom my last ten spot before I was awake. Why didn’t you reserve two bits for breakfast before you tossed it off on the wheel if you’re so damn near starved?”

He remained with Carver while the others followed Wellman through the swinging side door that led into the adjoining restaurant.

“And now, since Pete here,” said Bart, indicating the barkeeper, “steadfastly refuses to open a charge account, I’ll have to do some financing. Lend me a couple of quarts of your very worst,” he wheedled. “Not charge, you understand, but just lend ’em to me for a period of three minutes. Something round a dollar a quart.”

The bartender selected a brace of black bottles and shoved them across to Lassiter who moved with them to a rear door that opened on an alley. Several blanketed figures prowled this rear thoroughfare and the copper-hued wards of the Government converged upon the man in the doorway. He exchanged the two quarts for two five-dollar bills, thereby becoming eligible for a protracted stay within the walls of the penitentiary.

“Now we can start even,” he announced, paying Pete for the initial stock and retaining the surplus. “Quick turns and small profits is my rule of life.”

“One day you’ll acquire a new rule—long years and no profits,” predicted the white-aproned philosopher behind the bar. “Unless you learn to transact that sort of business by the dark of the moon.”

“Necessity,” Lassiter advanced in extenuation of his lack of caution. “Suppose you set us out a sample of something a few shades more palatable than what we just peddled to the old chief.”

The two pooled their resources and pursued their casual carefree way, all sense of responsibility discarded for the moment, as one might shed an uncomfortable garment with the idea of donning it again at some future time. The youthful Lassiter, who deplored all things serious while at play, found in Carver a delightful companion who seemed sufficiently light-minded and irresponsible to satisfy the most exacting. The wheel in the Silver Dollar, the faro bank in the Senate and the crap layout in the Gilded Eagle, each contributed modestly to their swelling bank roll in response to a few casual bets. As they left this last-named resort Bart halted suddenly. Carver glanced up to determine the cause of this abrupt halt. Freel, a deputy United States marshal, had just passed, and Carver, recalling the incident of the two black bottles, concluded that Lassiter had decided against meeting the Federal officer at just that moment lest the news of the transaction had reached him. Freel walked with a girl, his hand clasping her arm familiarly as he piloted her through the crowd. Bart frowned after the couple.

“I wouldn’t let the valiant marshal fret you,” Carver counselled. “I don’t know much about him except that he strikes a flat note in me, but I suspect he’s a pussy-footer and real harmless. I’ve heard things about Freel.”

“That’s what I know,” said Lassiter. “So’ve I; and it’s the things I’ve heard which keeps him on my mind. One day I’ll have to slip my twine on him and canter off across a few thousand acres of country with him dangling along behind.”

“Tell me when,” said Carver. “I’ll dab my noose on his off leg and bounce my horse off the opposite direction like we was contending for the biggest piece of a turkey’s wishbone. If half I hear is true he’s got it coming and folks will hail us as public benefactors.”

Twice within the next hour Carver noticed Noll Lassiter conversing with Freel. It was evident, that, whatever Bart's grievance against the marshal, the feeling was not shared by the elder brother. The mid-afternoon crowd had gathered in the Silver Dollar by the time Carver returned to the starting place. Men banked deep round the roulette layout as it was whispered about that Carver and Bart Lassiter were winning heavily from the bank. The professional chant of lookout and croupier rose above the hum of conversation as the ivory ball purred smoothly round the wheel of chance. Noll Lassiter shouldered his way through the crowd and stationed himself between the two favorites of fortune.

"Luck's with us," he genially proclaimed thereby identifying himself with the winnings. "We'll break this wheel between the three of us. She's running our way strong."

Carver suddenly realized that the pair had become a trio as Noll supplied himself with chips from the accumulation before the other two. When these had joined their fellows in the check rack he appropriated a fresh supply. Carver was conscious of a growing dislike for this uninvited partner. He tapped Noll's hand with a forefinger as the man reached for a third stack of chips.

"Try keeping it in your pocket," he mildly advised. "It's as active after chips as a sand rat after a beetle; and it makes me restless."

"Half of these chips belong to Bart," Noll insisted. But this sudden assumption of the close-knit bond of brotherhood failed to rouse any corresponding enthusiasm in the younger Lassiter.

"You're blasting our luck," he asserted. "Not to say annoying us. Take yourself off somewheres."

Noll, however, declined to heed this bit of counsel. Bart and Carver pushed their chips across the board and cashed in.

"Cheerful companion, Noll is, when he's packing a skinful," Bart commented as the doors of the Silver Dollar closed behind them. "And he's equally genial when he's sober."

"Offhand I'd pass unfavorable judgment on your relative," Carver confessed. "I don't see much family resemblance. How come you're brothers?"

“Half-brothers,” Bart amended. “We had the same father. I came along a dozen years late. Spoiled younger son, you know. Leastways I was always spoiled in spots where Noll had been working on me. When I turned sixteen I set out to spoil Noll. Since his convalescence he’s had a notion I might declare another open season on the dove of peace so we get along nowadays in regular family style. Say; now since we’re rolling in wealth you wouldn’t mind if I held out twenty in case fortune failed us? It’s not quite the thing to do but——”

“Bury it,” Carver agreed, waving his hesitancy aside. “Tuck it away somewhere.” He knew his man and was certain that the twenty was destined to fill some urgent necessity. “We’ll never even miss a little piece like that.”

Lassiter led the way to a rooming house above a store and turned into a dimly lighted room on one side of the narrow hall. Articles of man’s attire lay scattered about the place.

“The three of us headquarter here when we’re in town,” Bart explained. “I’ll plant these two tens in a dresser drawer.”

He opened the drawer in question and Carver, standing just to his right, found himself gazing down upon a scrap of black cloth from which two eyeholes stared blankly back at him. Lassiter placed the two gold pieces beneath the old newspaper with which the drawer was carpeted, closing it without comment, and they returned to the street and sought the wheel in the Gilded Eagle. For a time fortune smiled on them. Then a reverse tide set in. At the end of an hour each one shoved a stiff bet upon the board. There was the usual brief hush as the ball neared the end of its spin.

“The even losses to the odd and the red defeats the black,” the croupier chanted. “The middle column pays the gambler and the others pay the house. Place your bets for another turn.” He twisted the wheel and snapped the ivory marble in the reverse direction. “The little ivory ball—she spins! the flitting pill of fortune. Off again on the giddy whirl.”

He glanced expectantly at the two chief players but they had explored their pockets and failed to invoice sufficient resources with which to purchase a white chip between the two of them.

“Odd how rapid a man can shed it if he sets out to exert himself,” Carver commented.

Lassiter grinned and turned suddenly toward the door. It occurred to Carver that the youth was starting forth to retrieve that twenty-dollar reserve which was cached in the dresser drawer.

“Don’t you,” he admonished; but Lassiter had passed out the door.

Carver made a move to follow but met Carl Mattison, town marshal, coming in.

“You recollect that extra saddle,” Carver greeted without parley. “The one you was admiring, with all those silver trappings. If you still admire it fifty dollars’ worth——”

“Sold,” said the marshal and counted out the money. “Send it round to my room above the Boston Store.”

“I would,” said Carver, “only my delivery boy, the shiftless little wart, is out somewhere spinning his top. Here’s the key to my shack. You saunter past and collect it.”

Carver headed for Lassiter’s room. The door stood ajar and as he entered he observed a stooping figure whose hand was busily exploring the drawer of the dresser.

“We won’t need that twenty,” Carver said. “Let her ride where she is.”

The figure straightened and whirled to face him in the dim light. It was Noll Lassiter, not Bart.

“Where’s Bart?” Carver asked.

“Haven’t seen him,” Noll returned.

“Then where’s Bart’s twenty dollars?” Carver inquired. “I mistrust that you’ve got it—and I want it. S’pose you hand it over.”

“Make it out of here!” Noll ordered. “This is my room and I don’t want you in it.”

“Someway you haven’t inspired me with any ardent fancy,” Carver stated. “Right at present the feeling is mild, but it will grow acute if you keep exploring in that drawer for Bart’s last twenty.”

Lassiter made a swift move behind him but his arms fell back at his sides as Carver’s gun was jammed suddenly against his floating ribs.

“Tut, tut,” Carver admonished. “You’re way too awkward for that sort of thing. Sometime you’ll do that and some excitable soul will shoot you three or four times while you’re starting your wind-up.”

He removed Noll’s weapon and tossed both it and his own upon the bed.

“Now we can converse at our ease until Bart comes,” he said.

But Lassiter, angered beyond precaution, jumped for him the instant he relinquished the weapons, and being heavier than Carver he sought to bear him down by sheer weight. Carver rocked his head with two solid smashes but Noll sought only to come to grips where he could exert his strength, clutching at his opponent instead of returning his blows. They fought in cramped quarters and Carver could not step to either side lest he should give Lassiter access to the two guns reposing on the bed. The huge paws clamped on his shoulders and Lassiter crushed him back against the dresser. Carver elevated one knee between them, planted his boot against the other’s paunch and propelled him violently doorward. With a single step he retrieved his gun with intent to discourage Lassiter’s return, but he had no need of it. The big man’s head collided forcibly with the door jamb and he sprawled in a limp heap just outside in the narrow corridor.

Bart Lassiter, just mounting the stairway, witnessed this strange exit of his relative. He peered inside and discovered Carver, so he entered and seated himself on the edge of the bed, twisting a cigarette while he sought to reconcile the evidence before his eyes with the mental picture of the empty room as he had left it not five minutes past.

“Incidentally, there seems to be a corpse on the threshold,” he presently observed. “What did it die of?”

“General malignancy that set in right after birth and just now came to a head,” Carver diagnosed. “He was prospecting for your cache when I arrived.”

“He’d already located it,” Bart stated. “It was gone when I came up. Likely he came back to hunt for more as I went down, and your trails converged, sort of. Wellman said you’d just turned up the stairs, so I came on back.”

He crossed over to inspect the sprawled figure in the hallway.

“I’d say he was totally defunct,” he reported; but as if to refute this assertion Noll stirred an arm and grunted. “Unfortunately resuscitation is already setting in,” Bart revised his statement. “Let’s be off before he opens one eye and tries to borrow ten.”

An hour later the proceeds derived from the sale of the saddle had faded in the face of the bank’s per cent and their finances were totally exhausted except for a few small coins in Carver’s pocket. Lassiter leaned rather heavily against the bar in the Silver Dollar and straightened himself with an effort.

“It’s time for me to dangle,” he announced. “Hate to break up the party and all that sort of thing, but I’m overdue right now. Meet you here in an hour.”

He proceeded toward the door which opened into the adjoining restaurant but Carver overhauled him while he was yet some ten feet from his goal.

“Now don’t you go trickling out on me,” he reproved. “I’ll be gone in an hour—riding off for three weeks. Stay with me till then and we’ll both move out together.”

Lassiter turned uncertainly and Carver, looking past him, discovered that the swinging door into the restaurant stood half-open. The young girl framed in the doorway was gazing straight into his eyes. Oddly enough his first thought took the form of an intense desire to expend large sums of money in buying things for her, this impulse coupled with a swift regret that such amounts as he wished to squander were not for the moment available. The eyes that looked back into his were gray eyes, bordering on blue; and he gathered that they regarded him with a mixture of doubt and pity. He straightened resentfully, never having been doubted and refusing to be pitied, flooded with a sense of having been detected in some bit of wickedness. For the first time in his life his own eyes dropped before the direct gaze of another’s yet in his whole past career there was not one deed for which he felt any particular regret or shame. He lifted his eyes again with a hint of defiance, but found himself staring at the blank swinging door; in that split-second of averted glance the vision had disappeared, leaving him with a vague impression of its unreality,—and with a pronounced disinclination for continuing the party. Lassiter had not seen, and Carver dispelled the blond youth’s hesitation.

“Maybe we’d better call it a day,” he said. “See you when I get back from the Strip.”

Carver was conscious of a distaste for his surroundings, once the door had closed behind his companion. These carousals in town always palled on him in the end, giving way to the urge to straddle a horse and be off through the clean outdoors while the wind fanned the fumes from his head, but heretofore this state of mind had come about through gradual transition instead of descending upon him in a single second as had been the case to-day.

He gravitated to the roulette wheel through force of habit and risked his handful of small coins, playing absently and placing his bets without care or consideration. Now just why, he wondered, had he been struck with a wild wish to buy things for a girl he had never glimpsed before in his life. He was not conscious that she had been shabbily clothed, for to save his immortal soul he could not have testified to the color, texture or state of preservation of one single item of her attire, but somehow he felt that she was needing things and he wanted to see that these things were provided. He cashed in his few remaining chips and the banker handed him a single silver dollar in return.

II

CARVER repaired to the shack to retrieve his horse and as he rode back through town he observed a group round the town well in the center of the wide main street. Mattison had laid aside his personal pursuits and had donned his official rôle of town marshal, in which capacity he was instructing Bart Lassiter in no uncertain terms as to the impropriety of watering his horse from the oaken bucket attached to the well rope.

“Water him from the trough,” he ordered.

“After all those Cherokee ponies have been dipping their noses in it?” Bart demanded. “Not this horse.”

“That bucket is for folks,” the marshal patiently explained.

“An’ this horse is folks,” Lassiter insisted. He continued to extend the brimming bucket horseward with his left hand. The spectators shifted, recalling that Mattison’s predecessor had fallen in a street fight near this same well. There was no ill-feeling between the two men, but neither of them would back down publicly under pressure. Carver glanced aside as a voice called Bart’s name. The girl of the Silver Dollar was peering from a window above a store, her gaze riveted on the group at the well.

“Here’s two of my friends working up a grievance over well water,” Carver said, dropping from his horse. “Wherever did the pair of you acquire this sudden interest in it? I’m surprised at you.”

“If this party’s a friend of yours, why you take him,” said Mattison. “He won’t mind me. Let him water his horse till the well goes dry.”

“No such thing,” Lassiter gracefully declined. “I wouldn’t think of letting the critter slosh his muzzle in the town bucket.”

The marshal moved off and Carver reflected that the girl’s sudden appearance in the doorway of the Silver Dollar had been occasioned by Bart Lassiter’s failure to fulfill his appointment. It also accounted for Bart’s hesitation as they had stepped out of the Golden Eagle earlier in the day. He had halted to avoid meeting the girl, not to avoid Freel, as Carver had

previously supposed; and Bart's grievance against Freel rose from this same source, for undoubtedly the girl who was being piloted down the street by the marshal at the moment of their exit was the same who had later stirred Carver so strangely by her unexpected appearance in the doorway.

"A lady was calling your name from a window a minute back," he said.

"Likely it was Molly," Bart returned. "That's who that ten spot was destined for—the one Noll lifted first. That twenty I planted later would also have found its way to her except for Noll. She's a sweet kid, Molly, but she's worried sick every minute I'm out of sight."

Carver was conscious of a sense of irritation toward his friend, a vague resentment at this implied familiarity between the boy and the lady of the doorway.

"Then I wouldn't be letting her wait around," he reproved. "Damned if I would."

"But a man can't tag his sister every living second," Bart expostulated. "I ask you now!"

"No," said Carver. "Maybe not." His irritation had evaporated. "But if she was my sister I'd put in considerable time with her."

The brother grinned unrepentantly.

"All right; you do that," he urged. "Maybe she'll take to worrying about you instead of losing sleep over me. Appears to me like a nice arrangement for all hands concerned."

The girl appeared suddenly beside Lassiter and rested a hand on his arm.

"Put up your horse and stay here with me," she urged.

"Can't, Molly," Bart declined. "I promised the boys I'd go and they're waiting now. We're due to help Crowfoot gather a little bunch of beef stuff to-morrow and we'll have to ride all night if we make Turkey Creek by morning."

The girl turned to Carver.

"Thanks for interceding with your friend the marshal," she said. "But please go now. You've had Bart to yourself all day."

Carver nodded assent, mounted and rode off down the street. As he passed the Silver Dollar he felt the single coin in his pocket.

“That’s what I’m capitalized at,” he said. “Just one little measly silver dollar. That’s my invoice. This morning I could have added a horse, a house and an extra saddle to the statement. Now I’m out the saddle and owe Hinman a sum sufficient to offset the value of both horse and house. I’d sell under the hammer for a single dollar bill. The lady read my face value at a glance and dismissed me offhand without another look.”

He saw the two elder Lassiter brothers riding south at the next street intersection. It was quite dark when he cleared the town and as he rode on through the night he was conscious of a mild dissatisfaction. He drew forth his last coin and addressed it.

“I’ve rode into town with a many a dollar on me,” he said. “But this is about the first time I ever rode out and packed one away with me. That shows I’m growing more conservative right along. You must be a lucky little devil or else you wouldn’t have stayed with me till I got out of town.” He slipped the coin back into his pocket. “Little lonely dollar, you must mount up to a million.”

He heard the low rumble of animal voices and knew that Hinman’s cows were being held on the bed ground somewhere just ahead. The old man greeted him as he rode up.

“I’m sending Bradshaw and four others with you,” he announced. “One of the boys is holding the pack outfit back behind. He’ll follow. I’ll help you get ’em on their feet and moving.”

The men spread out at intervals to the north of the herd, riding along its edge and crowding the cows on the near fringe to their feet. They worked cautiously, for any slight commotion of an unusual nature, the weird flap of a garment or any cry too startling, might serve to throw a few cows into a panic which would be swiftly communicated to the rest and put the whole herd off the bed ground in a mad stampede. Their chief concern was to prevent a disastrous night run. The affair was skilfully handled and the near fringe of cows rose reluctantly, crowded back through the ranks of their reclining fellows and raising them in turn till eventually the whole herd was up and drifting south.

The moon rose sharp and clear as they crossed into the Strip and for hours they forged slowly ahead, their course a trifle south of west. When they had covered ten miles the forward drift of the herd was arrested and the tired cows bedded down at once.

“From now on they’re in your hands, son,” Hinman said to Carver. “I’ll back any deal you make with the outfits off to the south, so play her the best you know.”

He turned his horse back toward the State line and left Carver to solve the problem as best he might. Their present stand was in the quarantine belt, a strip some miles wide which paralleled the State line; this to protect the stock of the Kansas cowmen from Texas fever and other contagious afflictions so prevalent among the trail herds brought up from the south. All southern cattle must be held in this quarantine area until declared free of all disease before proceeding on their northward course to market. This was the off-season for the pastoral transportation of trail herds from the Texas cow country, and the only official intervention against which Carver must guard was the possible appearance of one of the infrequent cavalry patrols sent out from old Fort Darlington on the southern extremity of the Strip.

The unowned lands were tenanted only by a few big cow outfits whose owners had made satisfactory arrangements with the Cherokees, paying their tribute in the shape of grazing fees, a custom so long established that it was recognized by Federal authorities, and government agents now collected the money and passed it on to the territory tribes.

Carver stood his turn on first guard and as he rode round the herd he pondered the problem in hand and sought for a solution which would give him an insight into Hinman’s purpose. It was not so much from the authorities but from the common themselves that he might expect prompt interference. Those who leased range in the Strip did not often wait upon the slow process of official intervention when outside brands encroached upon their interests but took the law into their own hands at once. Hinman was well aware of that condition, Carver reflected. He circled the herd and sang to soothe his charges on the bed ground. Off across he could hear the voice of another night guard raised in song. He produced his one last coin and studied it in the moonlight.

“Little lonely dollar, you must mount up to a million,” he chanted. “And we’ll mount the first step upward if only I can fathom what Hinman expects of me. He don’t care a dime about saving taxes on this bunch, and he knows that I can see the costs will outweigh the profits two to one even if everything goes through without a quiver. He and Nate Younger, while they get along personal, have been whetting their tomahawks for each other as far back as I can remember. Now he leads us down here due north of the center of old Nate’s leases and stresses the point that I can maybe trade deals with any outfit off to the south—and Nate the only possible one I could deal with from this point. What time I haven’t worked for Hinman, I’ve been working for Nate, and Old Joe knows that Nate’s the best friend I’ve got outside himself. Now what’s he aiming at?”

His shift on guard duty was half over before he found the slightest ray of light on the problem.

“Joe must know that Nate will pounce down on us right off,” he mused. “If they open the Strip for settlement, like Joe predicts, then Younger will be forced out of the game. Now just why does Hinman provide him with this opportunity for a big final disturbance with all the odds on Nate’s side? He couldn’t have done it accidental and it appears more and more like he’s deliberately throwing himself wide open.”

His mind traveled back over the events of the day and settled upon the scene which had transpired near the town well just prior to his departure.

“There now,” he suddenly remarked. “That’s sure enough the answer. Bart and Mattison didn’t want to carry that altercation to a finish but neither one would back down with folks looking on. These two stubborn old pirates are likely in a similar frame of mind. It’s always seemed to me somehow, that they didn’t either one feel half so hostile toward the other as they made it appear. Joe’s giving Nate one final chance to show his hand—to take a whack at him or quit, hoping to cancel this old feud before Nate’s crowded out. He didn’t send me down here to keep out of trouble but shoved me right into it, knowing I’d do my best to make it as light as possible when it came. That’s all the idea I’ve got to work on.”

The men breakfasted in the first light of day and the cows were allowed to scatter through the breaks on the far side of the creek.

“You boys hold ’em within fair limits,” Carver instructed Bradshaw. “I’ll join you up here this evening. If a patrol should jump you by any off chance, you just explain that you’re driving them down to the Half Diamond H and laid over here a day to rest them.”

“They’d be sure to believe us,” Bradshaw commented skeptically. “Old Nate Younger wouldn’t let a Kansas cow graze on the Half Diamond H for the price of it. Leastways not one of Hinman’s.”

“He’s maybe changed his mind,” said Carver. “I’ll ride down and see.”

He headed for the home ranch of the Half Diamond H, located on a branch of Cabin Creek some miles above that stream’s confluence with the Salt Fork of the Arkansas. Younger met him halfway, a rider having already reported the presence of the herd.

“Now just what are you doing with a bunch of Joe Hinman’s cows in the quarantine strip and messing along the edge of my range?” he demanded. “You’ve rode for me on enough different occasions to know better than that.”

“They just came fogging down here of their own accord,” Carver testified. “And I came after them.”

“I’ll see that you get plenty of help when it comes to running them back,” Younger offered. He waved an arm toward a group of approaching riders. “Here come my boys now. I’ll throw ’em in behind those cows and jam them back across the line and scatter ’em over the whole west half of Kansas; or else take charge and hold ’em till I can get a detachment sent up from Fort Darlington to keep the whole mangy layout in quarantine till they’re fined more’n their market price. I’ll——”

“I wouldn’t adopt either one of those courses you just mentioned Nate,” Carver counselled. “If a patrol jumped us I was going to proclaim that Joe was short of range and that you, being an old friend of his, had volunteered to run this bunch on your leases till the grass greened up next month. That was my idea.”

“I’ve got another idea that beats yours all to hell,” Younger retorted. “About fifteen years back a bunch of my stuff drifted off in a storm and fed out a few sections of Joe Hinman’s land that had blowed clear of snow. He thought I’d shoved ’em on there to eat him out. This is the first real good

chance I've had to play even for what shape he left those cows of mine in after hazing 'em at a run through a foot of snow. What I'll do to this bunch of Box T steers will be sufficient."

He motioned his grinning riders to fall in behind him as he headed up country with Carver.

"Then it does look as if I'd soon be out of a job," Carver said, "if you go and mess up my detail. Maybe you'd take me on for the summer."

"You was top hand for me once," Younger returned. "And you could be again if you'd only stay at it. Anyway, I'll put you on for the summer."

"This season will likely see the last big round-up of all history," Carver predicted. "And I want to be part of it. I'd sort of planned to go in with your wagon. I guess this is the last. The order is out to comb every hoof from the unowned lands."

The old man's face clouded. Two years before all cowmen had been ordered to clear their stock from the Cherokee Strip. They had grimly refused, and now the order had been issued again.

"They mean business this time," Carver predicted. "There'll be cavalry patrols riding to keep an eye on the round-up, likely, and make sure that everything's gathered and shoved outside. There'll be upwards of two hundred thousand cows collected and marketed this summer in order to clear the Strip."

"Maybe you're right, son," Younger said. "It's beginning to look that way. You don't want to miss the round-up. The likes of it will never be seen again on this old footstool. All wiped out in a single season. It ain't right. It just can't be right."

The old man's thoughts strayed from the immediate matter in hand, that of evening the old score with Hinman, and he nodded abstractedly to the comments of his younger companion. He was possessed of cows in plenty and if forced to market them he could cash in for a fortune; but this game was his life. Take away his cows and money would mean little.

"I was just thinking, Nate," Carver said. "It'll take a long time to settle all this country up after you folks are ordered out with your stock, and there'll be worlds of good range going to waste with nothing to eat it off. A man

could hold a dodge-bunch down here on good feed and keep 'em moving from point to point. If we were questioned we could explain that we were trail herding 'em through when they up and made a night run off to one side; that we are just gathering 'em up again to move them on up to the Box T range."

"Box T!" Younger scoffed. "Joe Hinman, that wrinkled old pirate, wouldn't let a second elapse before he'd be spreading the news that I had a bunch down here. He'd never let a Half Diamond H cow set foot on his range and ever get off with its hide on."

"But if you'd help him out now, like I said a while back, he'd be bound to return it out of sheer human decency," Carver pointed out. "I could hold a bunch down here easy. If you help Joe out now he can't go back on you then."

"Can't be?" Nate inquired. "I don't know." The blank wall of a cowless future loomed just ahead. In a few more months his old brand would be but a tradition. The only alternative would be to buy out another brand in some distant part where open range was still available. But this was his chosen territory and a move did not appeal. "One time and another I've dealt him a hell-slew of trouble."

"He's put in fifteen years handing it back to you," Carver said. "That's part of the game, the way the pair of you has played it. Joe's not the man to stick at trifles like that."

Younger shook his head.

"Then maybe he was mistaken about how you felt," said Carver. "He gave me my instructions straight enough. 'If you strike trouble down there just go right to the Half Diamond H and get in touch with Nate Younger,' he says. 'He'll put you straight, and if he can't fix you up then there's no way out.' That's the last words he told me."

"He didn't," Nate returned doubtfully. "You got mixed in the names. He didn't ever instruct you to look to me for anything but trouble."

"Those were my orders," Carver affirmed. "Word for word, as near as I can recall, just as I recited them to you. That's what he says, looking right at me, just what I told you he did."

“I don’t know what he’s driving at,” Younger stated. “But I’ll certainly hand him a surprise. I’ll take him up—which’ll be exactly the last thing he’d counted on.”

He tugged his hat over his eyes and turned to the nearest of the riders who trailed behind him.

“You boys dangle along back and take down the north fence for a few hundred yards west of the creek,” he instructed. “Pull the staples and lay the wire flat on the ground so Carver can cross in with his bunch any time.”

The men gazed in blank astonishment at thus being deprived of their contemplated sport but they turned back without comment.

“That Carver now,” one youth remarked. “He’s the silver-tongued little fixer. He’s somehow managed to reverse old Nate in mid-air. Once in Caldwell he talked me out of my last dollar. He did, honest.”

“But he spent it on you later,” another testified. “That’s him. But now he’s gone and ruined my whole day. I’d prefer to be jamming them cows north at a run to coaxing staples out of fence posts.”

Some days thereafter Freel rode northward through the leases of the Half Diamond H, crossed the Salt Fork and stayed overnight at the home ranch of that brand. For several days the marshal had been visiting the widely scattered outfits operating in that portion of the Strip and making inquiries as to the whereabouts of certain men on a day of the preceding week. Freel knew the customs of the men with whom he had to deal, being familiar with the evasiveness which was a country-wide characteristic whenever one citizen was questioned concerning the possible operations of another. The marshal’s queries were therefore more or less desultory and wholly unproductive.

On the date in question four masked horsemen had surrounded a box car recently planted beside the railroad track in the Cherokee Strip. This car had served as a station and the word “Casa” had been painted in white letters upon either end. The stockmen had stubbornly resisted all attempts to establish stations in the unowned lands, foreseeing in such moves another possible link toward the dreaded settling of the Strip. These wild riders had evicted the two men stationed there and applied the torch to the box car which seemed to presage a future settlement at that point. The embryo city

of Casa was no more. Freel was conscious of no particular regret over the fate of this defunct metropolis, but in view of the fact that only Federal officers were vested with authority in the Cherokee lands he felt it expedient to make a few perfunctory inquiries.

When he rode away from the Half Diamond H he elected to wend his way up Cabin Creek and so chanced across two thousand head of Joe Hinman's cows grazing in the quarantine strip. Freel sought out Carver and acquainted him with the details of the Casa raid.

"The Lassiters rode out of Caldwell Tuesday night, you recollect," he said. "They're a shifty bunch of boys, the Lassiters. But Crowfoot assures me that they turned up at his place on Turkey Creek early Wednesday morning and this Casa raid was Wednesday night. Crowfoot says they've been there straight through. That lets the Lassiters out."

Carver recalled the black scrap of cloth he had seen in the dresser drawer in the Lassiter's room, its eyeholes staring up at him. Crowfoot's testimony to the marshal did not cause Carver to revise his former estimate of the cowman; rather it served to strengthen his previous opinion as to Crowfoot's character.

"Yes," he said. "Yes, that lets the Lassiters out."

"But it don't have any particular bearing on the fact that Hinman's cows are grazing in the quarantine strip," the marshal commented.

"Joe's short of range," Carver returned. This was according to formula. "We're resting 'em over here for a day before taking 'em on down to the Half Diamond H."

"That's nice," said Freel. "But of course it's my duty as an officer to report their presence to the Federal authorities. Then they can use their own judgment as to quarantine proceedings and maybe even a trespass suit. Tax-dodging, is he?"

"I'll bet fifty even that you go and do that very thing," Carver stated.

"How do you know?" the marshal retorted. "I'll bet you a hundred I don't."

"A hundred is way beyond my depth," said Carver. "Even fifty would strain me most to pieces, but I could manage to pay it the day I land in Caldwell if I lost."

“Fifty’s a bet,” the marshal accepted. “I’ll take you on. And don’t forget to have the money in your clothes next time you show up in Caldwell.”

Carver gazed after Freel’s retreating back as the worthy marshal rode northward toward the line.

“There goes a part of my profits,” he observed. “This petty larceny milking process enlightens me as to why I never could warm up to Freel. I’d rather he’d held me up, but the man that’ll do one won’t do the other—not ever. It all comes of my being too honest. If I’d neglected to make that losing bet, he’d have made a report that might have caused old Joe some grief. My conscience has let me down for fifty. Honesty is maybe the best policy for the long pull but it’s ruinous in short spurts.”

Someway he regretted the loss of that fifty dollars, a sentiment hitherto unknown to him, for he had never valued dollars except as a means to an end and the end was in each case the same,—the swift squandering of the means. But of late, while riding his lonely way in charge of Hinman’s cows, he had pondered the possibilities of various projects in which he might engage, the accumulation of dollars, not their spending, constituting the ultimate objective in each case.

When the marshal had disappeared Carver rode a few miles north to the crest of a high ridge, from which point of vantage he could sweep a considerable area. Off across the State line he could make out white points of light at intervals of a mile or more, and he knew them for the covered wagons of squatters who were camped just outside the Strip. He knew too that as one neared Caldwell he would find the intervals between these camps considerably decreased and he made a tentative estimate that there were fifty such outfits camped along the line in the twenty miles between himself and Caldwell. For three months these homeless ones had been rolling up to the edge of the unowned lands and making camp. These were but the vanguard, the first to respond to the persistent rumor recently set afloat to the effect that the Strip would soon be thrown open for entry and free homes be made available for all.

Carver allowed his mental vision to travel far beyond the horizon which cut off his physical view, and he saw other wagons coming. He pictured them scattered along the roads of Kansas, Nebraska and Missouri, of Illinois and Iowa. From far and near the landless of a vast country were converging

upon this last corner left unsettled, their worldly effects crowded into the bulging beds of old-time prairie schooners, their live stock trailing behind and the tousled heads of their youngsters peering curiously from the wagons as they rolled through country strange to them. Their pace was slow and plodding but intensely purposeful, a miniature reproduction of that general movement which had resulted in reclaiming the Great West from savagery a few decades before,—a movement which Carver felt could not long be forestalled. He addressed his luck piece in prophetic vein.

“It’s coming and we can’t head it off. In ten years there’ll be a squatter on every second section and the old free range cut up with fence. Little lonely dollar, what will you and me be doing then? That’s the prospect that’s looming just ahead of us.”

In fact this prospect seemed nearer still when he crossed back with Hinman’s cows some weeks thereafter. With the first warm days of approaching spring the slow stream of incoming squatters had increased and there were more outfits camped along the line. Carver rode up to the ranch house in the gray light of dawn to report that the herd was back on Hinman’s own range once more. He found old Joe at breakfast and was invited to sit in.

“Draw up your stool and toss a feed in you,” the old man greeted. “Tell me how everything came to pass.”

“It was a right uneventful trip,” Carver reported. “There was only one patrol came messing through and we shifted the bunch down on to the Half Diamond H for a week or more.”

“The Half Diamond H!” Hinman exclaimed. “Then Nate Younger must have died without me getting word of it. I’ll send over some flowers right away. It’s a moral certainty that roan-whiskered old lizard wouldn’t let one of my cows have a spoonful of grass if he was alive and kicking.”

“On the contrary,” said Carver; “he put himself out to invite us down in case we thought best to pull off the quarantine belt. He ordered his north fence laid flat as soon as he gets word we’re in the country with your cows, and announced that he’d be palsied and paralyzed and even worse than that before he’d be found lacking in hospitality toward a friend in need.”

“Yes,” said Hinman. “Go right on. What else did he say?”

“Nothing to speak of,” Carver said. “He did sort of mention that you was welcome to throw as much stuff as you liked on the Half Diamond H as long as he was running it. So you might say the trip was more or less of a holiday.”

Hinman allowed his gaze to rove through the window and settle upon a covered wagon crawling slowly southward.

“He’ll be crowded clear off the map inside another year,” Hinman said. “I don’t suppose you told him about how glad I’d be to have him swarm over here on my grass with all his cows whenever he’s finally ordered out down there; now did you?”

“I did sort of intimate that your range would always be wide open,” Carver stated. “I was straining every little point to save the taxes on that bunch of cows. I’ll bet it would have totalled up to anyhow six hundred dollars, those taxes would.”

“Well, that’s all you agreed to do,” said Hinman. “And I guess I’d better pay you off and have it over with, even if you did get me into considerable of a snarl. Only one thing I can do now, since you made all those arrangements, and that’s to back up anything you told Nate. I never figured you’d let me in for anything like this.”

“I’d prefer to take my pay in some other form than cash,” Carver announced as Hinman produced his check book. “Suppose you give me a bill of sale for a hundred head of coming yearlings instead of nine hundred cash and let ’em range with your stuff up on the west place till November.”

“You can’t spend calves,” said Hinman.

“I could borrow against them if I was needing money,” Carver explained.

“But coming yearlings are worth twelve dollars a head,” Hinman objected.

“I’ll owe you the rest,” Carver offered.

“And when I deliver in November they’ll be worth more’n that. They’ll bring round sixteen dollars a head by then.”

“That’s what I was counting on,” said Carver. “I like to feel every morning that I’m worth just a little more than I was the night before.”

Hinman laid down the check book and regarded him.

“Now it’s always struck me that you put yourself out to be worth just a mite less each morning than you was the night before,” he stated. “Surely you haven’t gone and deserted the ranks of the tumbleweeds in favor of the pumpkins. I never knew you to set a value on a dollar.”

“That’s because I never chanced across just the right sort of dollar,” Carver explained. “Now this is different.” He produced his lucky coin and handed it over for inspection. “I’m aiming to accumulate a number of others just like this to keep it company.”

Hinman inspected the silver dollar.

“Yes,” he said. “This is a right unusual appearing sort of coin. Don’t know as I ever see one just like it. Now if you really think there’s a chance for you to collect some more like this and take an interest in holding on to them, why we might make a deal. You’ve just effected quite a saving on my taxes, so I can maybe stretch a point. But if I don’t deliver till November, and run ’em meantime on my grass, those critters will cost you fourteen apiece instead of twelve. You’ll be owing me five hundred in place of three.”

“I don’t mind owing you,” said Carver. “We’ll close the deal.”

As he rode away from the Box T he sang:

“Oh, I’ve risked many dollars
On the rambling tumbleweed
And only one on pumpkins
But that one went to seed.”

III

THE crest of the watershed separating the flow between the Salt Fork and the Cimarron was also the dividing line between Crowfoot's range and the leases of the Half Diamond H. Carver crossed over this low divide and angled toward Turkey Creek to intersect its course at a point near Crowfoot's place. Here the majority of the range stock wore the straggling brand intended to represent a bird's claw, the badge of Crowfoot's ownership.

Carver viewed the ranch buildings from the shoulder of a hill, noting particularly the corral which was fashioned as a solid stockade some ten feet high. Crowfoot had entered into a beef contract with the railroad and his slaughtering was conducted within this small enclosure. Carver entertained positive convictions as to the purpose of this arrangement but in common with others of his kind he made a religion of remaining strictly incurious regarding the calling or customs of acquaintances except in so far as they might affect his own immediate affairs.

He turned his horse up the Turkey Creek bottoms and followed that stream for a dozen miles, then angled away to the right toward the Half Diamond H range. When well up the gentle slope he rode out on to the rim of a pocket. The scattering trees in the bottoms indicated the presence of water. A spring branch probably headed in the pocket and drained back toward Turkey Creek, he reflected. He pulled up his horse as a woman's voice floated up to him. Somewhere down below him a girl was singing, and Carver headed his horse down the slope toward the sound.

A sod house nestled under the hill beside the trickling spring-creek. The singing ceased abruptly and a girl appeared in the door of the sod house at the sound of his horse's hoofs in the yard.

For the second time Carver saw her framed in a doorway and he was conscious of a sudden pleased conviction that she should always choose a similar setting. The drab surroundings served only as a background to hold her vivid youth and charm in more startling relief. Carver recollected that he had mauled one brother in no gentle fashion and was held accountable

for another's day of transgressions; in consequence he feared a cool reception from the sister. Instead, her face lighted with sudden recognition.

"Oh, it's you!" she greeted. "Bart will be coming home any time now and he'd be so sorry if he missed you. Won't you step down off your horse and wait?"

She sat on the doorsill and motioned Carver to a seat on a bench against the cabin. He removed his hat and tilted back against the sod wall as she explained that Bart was even now overdue. As they talked it was quite evident that all her thoughts centered round the younger brother. Carver found the tones of her voice as pleasant to his ear as the sight of her was pleasing to his eyes, and he was content to listen, hoping meanwhile that Bart would never come.

He knew this for a Crowfoot line camp, recently installed, which accounted for the fact that he had not chanced across it the year before. The Lassiters, therefore, must ride for Crowfoot, he decided.

"Bart and I only came down last week," she said. "We've been living in your little house in Caldwell. Did you know?"

"I gave him the key and told him the place was his," Carver said. "But I'd have straightened it up a bit if I'd known he was going to install you there."

"It was supremely tidy," she complimented. "Which was a distinct surprise. Most men's housekeeping is rather the reverse."

Her gaze kept wandering off down the bottoms for some sign of Bart's return.

"I do hope he comes," she said.

"I'm real anxious to see Bart," he confessed. "I certainly hope he turns up sometime inside of the next three or four hours for this is my busy day and I couldn't conscientiously wait on him longer than that."

His tones expressed only a mild anxiety over the possible non-arrival of his friend.

"Do please stay the very limit, at least," she urged, and laughed up at him. "You know, you're like Bart in a great many ways." Carver somehow felt

that he knew her better after that laugh. "Don't you think you two are somewhat alike?"

He had divined the close bond between this girl and her brother and now made swift use of the knowledge.

"Bart and I are so similar that we might easily be mistaken for twins," he admitted. "You might say we're almost identical."

"He means a lot to me Bart does," she said. "In most ways he's a lovable youngster, but——"

Carver leaned back with an audible sigh.

"Tell me all about Bart," he urged.

"I will," she agreed. "In most ways he's likable but he's as wild as a hawk. He is absolutely irresponsible and will commit any reckless folly on a second's notice without a thought of future consequences. The future means not one thing to him. He's sublimely confident that every new day stands by itself, entirely unrelated to either yesterday or to-morrow. And he's too easily led. Now don't you think you two are considerably alike?"

Carver considered this at some length.

"There's some few particulars wherein our make-ups branch way out apart," he testified. "On those points we're altogether dissimilar. Now me, I just can't be led. I'm sometimes misled, maybe, but never plain led. And so far as the relation of one day to another"—he produced a silver dollar and regarded it—"why nothing could possibly convince me that five weeks ago last Tuesday wasn't close kin to to-day." The girl's mind flashed back to that first meeting as he smiled across at her and continued: "And I'm hoping that there'll be other days in the future that'll belong to the same family group. You'd be downright surprised to know how far my mind wanders into the future—and you accusing me of not looking ahead."

"He's told me a lot about you," she said. "You're the supreme chief of the tumbleweeds, from what I gather; openly irresponsible."

"On the contrary, I'm apt to take my responsibilities too much to heart if I don't watch myself," he defended. "Do you consider a state of responsibility one to strive for?" Then, as she nodded, "Hereafter I'll track

down responsibilities like a duck collects Junebugs, and assume one after the next.”

“I’ve raised Bart from a baby,” she said. “And I don’t want to see him go over to the wild bunch. He likes you a lot. Use that influence to steady him, won’t you, instead of the other way?”

“Just what is the main thing you want Bart to stay clear of?” he asked.

“I want him to run straight,” she said.

Carver rose to take his leave, his departure hastened by the sight of a horseman through the trees far down the bottoms. And the rider was not Bart. He had no desire to meet Noll Lassiter during his first real visit with the girl, and he somehow knew the identity of the man who approached.

“Maybe I can do Bart a trifle of good in spots,” he said, as he stood before her. “And I’ll guarantee not to do him any great amount of harm.”

“Thanks,” she said, rising to face him and extending her hand. “I knew you’d do it.”

Carver retained the hand and leaned to kiss her as she stood looking up at him. The girl stepped back and studied him, evidencing no annoyance but seeming rather to try to determine the thought which had occasioned the act and searching for a possible trace of disrespect. Carver met her eyes fairly.

“You oughtn’t to have smiled just at that particular moment,” he said.

“You see, you are irresponsible,” she pointed out. “That’s exactly what Bart would have done. You yield to any passing whim.”

“That wasn’t any passing whim,” he corrected. “It was one powerful impulse; and it’s permanent—not passing. It’s related to to-day and five weeks ago Tuesday, and I’m hoping it’s related to to-morrow.”

She disregarded this except for an almost imperceptible shake of her head.

“But you will remember about Bart,” she urged.

“I’ll try and collect all Bart’s loose ends and shape him up into one solid pattern of propriety,” he promised. “You won’t hardly know him for the same party after I’ve worked him over.” He swung to the saddle. “But I’ll

have to put in considerable time over here conferring with you if we're going to make a success out of Bart."

He turned his horse to leave but the approaching rider had hastened through the last belt of trees and he now held up a hand and signalled Carver to wait. Lassiter pulled up his horse abruptly as he discovered Carver's identity.

"I thought it was Wellman," he stated surlily. "Who asked you here? This is a little off your range."

"I travel on a roving permit," Carver said. He explored his pockets as if seeking the document and an expression of mock concern overspread his face. "I declare, I must have mislaid it somehow. But I believe I showed it to you once before; and anyway, I'm going now."

He nodded a casual good-by to the girl, turned his back on Lassiter and departed. As he mounted the cow trail leading out of the head of the pocket he met Bart Lassiter coming down.

"I've just been over to your house visiting round with Miss Molly," Carver greeted. "Noll came riding up and I someway gathered the impression that he wasn't glad to see me."

The two lolled sidewise in their saddles. Bart looked down the bottoms toward the sod house.

"I'd keep an eye peeled for Noll," he advised. "He's out for you if he sees the right chance. If you don't watch sharp your horse will come dangling in some day without a rider."

"Sho!" Carver deprecated. "It's been against the law to kill folks for a long time now."

"I know," said Bart. "But the mere fact that we've got a law like that proves that maybe some one did get killed once and there's a chance it might happen again."

"He's been telling you things," Carver guessed. "Likely he was just easing his mind."

"Noll didn't tell me a word," Bart denied. "He don't need to. I know him. He rode hard on me with a club, up until I outgrew him, and I can read

what's going on in his mind. I put in all my early years dodging, until one day he cuffed Molly; then I forgot my timidity and pulled down his meat house. It was weeks before he was up and around. He'll bear watching. I don't mean to infer that Noll's all charged with valor, which he's not, but he's certainly loaded to the ears with meanness and he'll take a chance if the odds are all his way and no one looking on."

"Then I'll take to surveying my back track," Carver promised. "Because if we meet it will likely be from the rear."

"That's where," Bart agreed.

"What's to hinder my taking you on as a bodyguard, sort of?" Carver suggested. "I'm going in with the Half Diamond H wagon. Old Nate would put you on."

"The three of us are leaving for the X I L in a day or two," said Bart. "Otherwise I'd go with you. Milt has been trail boss for the X I L for the last four summers and brought their trail herds through. Always before we've gone on back and wintered there, but this season we laid over to help Crowfoot."

Carver turned this arrangement over in his mind. The X I L was a Texas brand running south of the Washita country.

"I'll have a little deal on this fall after round-up," he said. "And I'd like to have you cut in with me, provided you don't hang out at Crowfoot's. I'm not over-squeamish and there's one time and another when I've rode for outfits whose methods was open to question. Most riders have. But folks are coming to frown on irregularities and it's time a man reads his signs right and quits before it's just too late."

"Oh, absolutely," Bart agreed easily. "I can see that plain."

"It's my surmise that there's a right small percentage of the meat that goes to fill Crowfoot's contracts with the railroad that is dressed out of steers wearing his own brand," Carver said. "Of course, he's too smart to cut in on his neighbors, and they don't bother to get curious as long as they know their own strays are safe on his range. But it's my guess that if a steer from some foreign outfit turns up on the Turkey Creek range he'll get converted into beef overnight."

Lassiter grinned and wagged a negative head.

“Now you wouldn’t go and suspect Crowfoot of filling his beef contracts at other folks’ expense,” he reproved. “Besides, how could he when it’s the law that whenever a cow critter is butchered its hide must be hung on the fence till it’s been inspected and passed?”

“And our present hide inspector would ride miles out of his way rather than meet a fresh hide face to face,” Carver testified. “I expect maybe Crowfoot kills out a batch of his own steers, about every third slaughtering. That way there’d always be enough fresh hides of his own brand hanging round the place to make it look right. But he wouldn’t dress out any more of his own till after one batch of pelts was too dried out to answer. He’s not that improvident.”

“Well, maybe not,” Bart said. “I couldn’t say for sure. What has Crowfoot done to you to start you commenting on his habits?”

“Not anything!” Carver confessed. “I don’t even lose sleep over what he’s doing to other folks. I’m generalizing, kind of. Things are changing rapid and a man had better let his glance rove a few years ahead.”

“Hadn’t he, though?” Bart concurred. He didn’t inquire as to the nature of Carver’s proposition, for it mattered not at all. “We’ll put on our telescopes and spy out a soft berth for the future. That’s us. You can count me in till the hair slips.”

With this casual promise they separated. Carver reviewed his recent utterances with some doubt as he rode across the divide.

“That’s the first time I ever aspired to turn evangelist,” he said. “And I’m awkward at it. The rôle don’t become me any to speak of, but I’ve committed myself to take Bart in hand.”

Three days later he rode again to the little sod house on the spring-creek. He came upon it from behind, his horse’s hoofs making but slight sound on the springy turf. Not until he had dismounted and rounded the corner on foot did he discover that a saddled horse stood on the far side of the house. He stopped short, wondering which of the three brothers might be at home. While he hesitated a man’s voice sounded from within, and it was not that of any one of the Lassiters. He took another step toward the door but halted again as he detected a threat in the tones of the man inside.

“You listen to reason or I’ll have Bart locked up for the rest of his natural life,” the voice proclaimed. “And that within the next two days. I know his whereabouts on a certain night two years ago, when a saloon in Taosin was ransacked.”

“You’ve told me all that,” said the girl. “But even if you could prove it, why Bart was only seventeen then.”

“There’s places where they keep such naughty children,” the man pointed out. “Then he was into that Casa affair, when the station was burned.”

This statement enabled Carver to identify the man whose voice had seemed vaguely familiar. It could be no other than Freel.

“I’ve got a line on the whole past of the Lassiters,” Freel resumed. “Clear back prior to when the old man was alive. He’d be wanted too, on a dozen counts, if he was still above ground. You know what it is to have the law always barking at your door. If you take up with me folks would respect you. But any one in this whole country will tell you that Freel is a bad man to have on the other side. You don’t want me lined up against the Lassiters, girl.”

Carver stepped to the door. Freel’s back was toward him but he could see the girl’s face. There was no trace of apprehension there, only distaste for the man before her. Her eyes widened with surprise as they met Carver’s and as she divined his purpose she made a move to station herself between the two men but Carver held up a hand to halt her. Freel had whirled to face the door when the girl’s face betrayed the presence of a third party. He recovered his self-confidence, shaken for the moment, with the discovery of the intruder’s identity.

“Morning,” he greeted casually. “Any more wagers on your mind to-day?”

“Yes,” said Carver. “Step outside. I’m going to make you another little bet.”

He stepped aside as the marshal passed through the door, then followed and closed it behind him.

“This wager’s not going to be in money,” Carver said. “If I lose I’ll look you up and explain to you what the stakes are. I’m betting that you don’t ever pass out any remarks about Bart Lassiter or his sister. The bridle’s off

as far as the other two boys are concerned. You can go as far as you like with them.”

Freel sized him up, sensing a new quality in the man before him, a certain tenseness which Carver concealed beneath the cloak of casual speech.

“You drop out of this,” he advised. “I was offering to marry Miss Lassiter when you romped in.”

“Offering to,” said Carver. “I thought maybe you was threatening to.”

“Any girl of the Lassiter tribe ought to be damn glad of an opportunity to marry and live respectable,” Freel stated, and was instantly aware that he had made a grave mistake, for that quality which he had sensed in Carver was now quite openly apparent in his eyes.

“So you’re going to make her respectable,” Carver said. “That’s real generous of you, I’d say. It’s rumored around that you set up to be a bad one. I just heard you confess it. Let’s see how wicked you can be when your badness all boils over.”

He took a step toward Freel and the marshal backed away, reading Carver’s purpose in his eyes.

“It’s never my policy to start a quarrel without good reason,” he announced.

“I’m laying myself out to supply the reason,” Carver said. “I always did want to see a regular desperado working at his trade.” He removed his hat with his left hand and brought it with a back-handed slash across the marshal’s face. “You’re wicked clear through,” he said. “You’re just as bad as you can be.”

He swung the hat twice again but Freel turned and walked toward his horse.

“You’re not bad; you’re just tainted,” Carver stated. “I always felt that about you and now I know for sure.”

The marshal mounted and turned upon Carver a face set in lines of stern disapproval.

“I refuse to force an issue except in the regular routine of duty,” he proclaimed. “This is not a matter of official business. Otherwise——”

He intended that the unfinished statement should carry an impressive implication of power held in reserve and which he controlled only with the greatest difficulty. He turned and rode off down the bottoms.

“I feel like I’d just come in off a spree,” Carver told himself. “It shakes a man up something fearful to let his temper go running wild all over the lot. I oughtn’t to have lost hold of myself.”

He regarded the closed door. A sharp rap sounded from the inside of it and Carver smiled as he speculated as to how many people of his acquaintance would have respected his unspoken wish that the door remain closed. The rap sounded again.

“Come in,” he called.

She opened the door and answered his smile, her eyes following the marshal as he disappeared in the scattering black-jacks of the bottoms.

“Thank you,” she said. “I’m glad you came just when you did. But I’m sorry if you made an enemy of him. I really don’t mind him—much.”

“He’s right harmless,” said Carver. “But apt to be annoying. I don’t surmise he’ll be turning up here again.”

He knew that the marshal operated only on safe ground. Freel had known that both elder brothers would be entirely indifferent to any course he might adopt toward Molly Lassiter if only it afforded a measure of protection for themselves; and she would not mention any such occurrence to Bart lest it precipitate trouble between himself and Freel.

The girl motioned him to a seat on the bench.

“You did remember your promise of the other day,” she commended. “About Bart, I mean. He said you’d pointed out the narrow pathway and invited him to join forces.”

“I never did set up as a reformer,” Carver admitted, “and it likely sounded a mite unnatural, coming from me.”

“Bart was a little vague about the plans,” she said. “Do you mind telling me what the proposition was?”

“I couldn’t say any offhand,” he confessed. “You see I just put it up to him and was intending to work out the details later on. There, now!” he

complained, as she laughed at this lack of definiteness. “You’re doubting my stability again. There’s numerous ways open for me to follow.” He checked them off on his fingers. “I might get appointed marshal in Freel’s place and there’s any number of folks would contribute to my success. I could assist Crowfoot to fill his beef contracts; or I could get the job of hide inspector and Crowfoot would then assist me.”

Beneath this facetious recitation of possibilities she read in his reference to Crowfoot a deliberate intention to apprise her of the fact that the man’s methods were open to question, leaving her to devise her own means of utilizing the knowledge in so far as it related to Bart’s employment by Crowfoot.

“The boys are all leaving for the X I L in a few days now,” she returned.

“This man Bronson that owns the X I L—he’s someway related to Crowfoot,” said Carver. “Seems like I’ve heard he was. Anyway, there’s some connection. I spoke for a job for Bart with the Half Diamond H wagon and was hoping he’d take it on.”

When Carver rose to leave he rested his hands on her shoulders as she stood facing him.

“The round-up will cut into our conferences but I’m looking forward to resuming them after it’s over.”

She stepped back and shook her head as he leaned toward her.

“Don’t forget how much I’m like Bart,” he urged. “And you know you’d do that much for him. You might try it on me once, just for similarity’s sake.”

The girl faced him gravely.

“I’m going to absolve you from that promise,” she said. “Try and forget all about the Lassiters. We bring bad luck.”

“It’s too late to start forgetting; and besides, I cut my first baby teeth on a horseshoe,” he returned; “and from that day on down to date I’ve been the greatest sort of a hand to counteract bad luck. It positively refuses to settle in my neighborhood. I’ll tell you all about it, Honey, as soon as the round-up’s over.”

She stood and watched him ride off up the country, returning his salutation when he turned in his saddle and waved to her as he reached the rim of the pocket.

He spent the night at a line camp and the next day made a long ride into Caldwell, dismounting before his little cabin in the early evening. A blanketed figure prowled uneasily at the far side of the street as Carver unsaddled, then crossed over and padded silently along the path that led to the house.

“Me like whiskey,” the Indian stated.

“Yes,” said Carver. “So do I. But they do say it’s a sinful appetite.”

The red man pondered this.

“Me buy whiskey,” he amended, exhibiting a gold piece.

“I’m just out,” said Carver. “Try next door.”

The Indian departed, only to be replaced some few minutes later by a second applicant. Carver recalled the incident of the two black bottles on that other day when he had first met Bart Lassiter in the Silver Dollar.

“Bart has been up to some more financing,” he reflected. “While Molly was downtown somewhere, he was busy irrigating the Cherokee nation at a profit. I’ve heard somewheres that if you do any one thing better than your neighbors the world will beat a pathway to your door—and this path looks well-worn and much-traveled. I’ll have to speak to Bart about this.”

He retired for the night after a third thirsty soul had made the pilgrimage down the pathway to the door.

“Before I can straighten out Molly’s affairs,” he said, “it does look as if I’d have to discharge a marshal, reform one brother and practice homicide on another.”

With this disquieting reflection he dropped instantly asleep. An hour later his awakening was equally abrupt. It is given only to those who live much in the open to wake suddenly from profound slumber with every faculty alert. When Carver opened his eyes he was conscious that something was amiss. He continued his regular deep breathing as if still wrapped in sleep. His horse fidgeted nervously in the lean-to shed behind; but he knew that

this sound, being one to which he was accustomed, would not have roused him. The spring lock on the door had clicked slightly as if under the manipulation of a stealthy hand and the sound had penetrated his consciousness even while he slept. Probably another parched but hopeful Cherokee, he reflected, but he rose noiselessly and stepped to the window.

“I didn’t start discharging and homiciding soon enough,” he told himself.

Freel and Noll Lassiter stood outside in the bright moonlight, the latter having just stepped back within Carver’s range of vision after testing the spring lock on the door. Carver turned swiftly and donned shirt and trousers. The latch clicked again as he pulled on his chaps; then came a sharp knock at the door. Carver did not answer but finished buckling his belt and drew on one boot. The rap was repeated.

“Ho!” Carver called loudly, as if suddenly roused from heavy sleep. “What’s going on?”

“It’s Freel,” the deputy’s voice answered.

“Oh,” said Carver. “Come on in. I’m in bed.”

“Door’s locked,” Freel returned.

“Must have blown shut,” Carver stated. “There’s a spring lock on it. Wait a minute and I’ll pile into some clothes and let you in. What do you want, anyway, at this time of night?”

“There’s been complaints lodged against you for selling whiskey to the Cherokees,” Freel explained apologetically. “I don’t suppose there’s anything to it but I was ordered to make the arrest. You can clear yourself likely.”

Carver laughed easily.

“Why, man! This is the first time I’ve been here in two months,” he scoffed. “They won’t keep me overnight.”

“I hope not,” said Freel. “It’s the pen if they cinch you—Federal law, you know. I didn’t like the idea of coming after you but I was ordered to do it.”

“I’ll be with you in a minute,” Carver answered cheerfully. “I can explain it easy enough.”

He thumped the bed with the edge of his hand in imitation of a bare foot descending upon the floor.

“Killed while resisting arrest,” he said to himself, his mind working swiftly. “This is just a plain old-fashioned killing. Freel knows I wouldn’t be so simple as to start shooting over being picked up on a fool charge like this. I’d take it more as a joke. He’ll step in to talk it over while Noll pots me from outside. Neighbors hear shots—a regular battle in progress—and later, at the inquest, it transpires that my gun’s been shot empty. They can prove that Cherokees have been buying bottles here, whether I did it or not, and Freel, having heard about it, had come out to investigate. I put up a desperate fight but went down in the smoke—died hard as it were, but real dead. But they wouldn’t do it before I was dressed. That might appear like they’d slaughtered me in my sleep.”

Meanwhile he commented in disjointed fragments to Freel.

“I’ll go on down with you and explain it. It’s a right foolish charge.” He was now fully dressed. “They’ll let me out by to-morrow so it don’t matter any.” And to himself, “After Noll’s first shot there’s two from inside. Neighbors look out into the moonlight. Freel has ducked back outside and they see him prone on the ground shooting into the house. He rushes the open door, calling out to me to surrender in the name of the law, and the neighbors all hear him. There’s sounds of a struggle inside; chairs overturned, and there’s shooting. A regular hell-roaring combat—and me dead on the floor all the time.”

He moved to the window. Lassiter was nowhere in sight.

“Flat against the house between the window and the door,” he decided; then aloud to Freel, “Anyone with you?”

“Not a soul,” Freel lied.

“Better so; maybe we can figure out some little bet whereby it would be to your advantage to help me come clear of this charge.” He was now fully clothed and he crossed to the door without permitting his boot heels to touch the floor. “Can’t find a match,” he complained, fumbling at the catch. “Come in and strike a light while I hop into my clothes. I’m in my nightie.” He opened the door, standing back from the streak of moonlight which

streamed through. Freel would shoot if he saw that Carver was already dressed.

“I’ll just wait here,” Freel said.

“And pot me as I step out,” Carver mentally completed.

“You’ll be out on bond in an hour,” Freel resumed. His head was within a foot of the door as he attempted to peer inside.

Carver swung his gun with deadly precision and Freel collapsed without a word as the heavy weapon descended solidly upon his skull. Before the deputy had fairly struck the ground Carver was peering round the door jamb with the gun levelled on Lassiter who was flattened against the house some three feet from the door.

“Steady! Let it slide out of your hand!” Carver ordered.

Lassiter’s slow brain had scarcely grasped the fact that his plans had gone amiss, and even as the hand which held his gun relaxed in response to the order, Carver took one swift half step round the door and swung his own weapon again.

Ten minutes later he had saddled and was riding out of town. As he cleared it, he chanted a verse wherein the tumbleweed rebuked the sluggish pumpkin for sticking to its garden patch as Thanksgiving day approached.

“You can lay right there and wait
To be turned into pies and tarts,
But me, I’ll jump the fence right now
And head for other parts.”

“Freel’s bringing me in feet first, like he’d planned, could be easy explained,” Carver reflected. “But a live active prisoner is different. The last thing in this world he’d want is to book me for trial. I couldn’t force myself on him as a captive. Next time I meet Freel out in company I’ll surrender and insist that he puts me under arrest.”

IV

THE cook wagon lumbered down Cabin Creek toward the Salt Fork of the Arkansas. A dozen hands, riding in couplets, straggled irregularly behind. The bed wagon followed and the horse wrangler brought up the rear with the *remuda* which numbered some two hundred head of horses, including the string of extra mounts for each round-up hand who rode with the Half Diamond H wagon.

A rider waited on the far bank of the Salt Fork with his string of extra horses and the men speculated idly as to whether he represented Crowfoot or the Coldstream Pool, it being the custom to exchange “reps” to ride with neighboring wagons. The horseman proved to be Bart Lassiter, repping for Crowfoot. Carver’s intimation as to Crowfoot’s methods and their possible connection with the X I L trail herd, dropped on the occasion of his last visit with Molly Lassiter, had borne fruit. The Half Diamond H crew had been full-handed but the girl had induced Bart to ride with their wagon as Crowfoot’s rep instead of accompanying his half-brothers to the X I L.

Lassiter threw his extra mounts in with the *remuda* and joined Carver, who opened up on him without parley.

“I tendered you the key to my little house so that you could use it for living purposes,” he said, “but without any notion that you’d start up in business. From all that I can gather you set out to abate the thirst of the whole Cherokee Nation.”

“Well, the poor devils are fixed up every other way,” Bart explained. “They draw beef rations, flour rations, blanket issues and so on, but nobody’s ever been thoughtful enough to provide them with licker rations, so they’re forced to live a one-sided, unbalanced kind of existence and I was striving to supply the lack and sort of round out their lives.”

“An’ you came near to finishing mine,” Carver stated.

“It was only that once,” Bart defended. “I did dispose of several cases at a right handsome profit and you’ve no notion how much they enjoyed themselves the next night. It would have done your heart good to have heard

it. All Caldwell turned out to listen to the expansive sounds emanating from the Cherokee camp south of town.”

Carver had placed that first illusive impression that Molly Lassiter was in grave need of something without which her life was not quite complete. It was no material requirement but a need that was deeper than that. She despised the ways of the two older half-brothers, who had been practically strangers to her during her own early life, showing up at her father’s home but infrequently. Later, after her own mother’s death, they had returned and made it their home. There had never been any bond between them and herself, and she had feared the effect their ways might exercise upon Bart. Freel had spoken the truth when he asserted that she knew what it was to have the law always barking at her door. Carver knew now that what she most needed was peace,—assurance that the same old conditions would not pertain to her life and Bart’s.

“Why do you put Molly up against that sort of thing?” he demanded.

“She didn’t know,” Bart returned.

“But she’d know if they happened to clamp down on you for it,” Carver insisted. “And that’s what she’s guarding against. She’s always had that sort of thing to fight off.”

“She has for a fact,” Bart admitted. “The old man was a hard citizen himself, way back in his youth. He’d quieted down for a good many years but after the two boys came back he sort of leaned their way again. There’s been times when Molly and me was kids, and left all alone in the house or wherever we happened to be at the time, that folks would come round inquiring about his whereabouts, and the old man hiding out in the hills about them. She thought a lot of him, Molly did, and hated Milt and Noll for leading him off.”

“Then why don’t you shake them?” Carver demanded. “There’s no common bond between you and them, and Molly would be way better off.”

“I’ve made the break now and again,” Bart explained. “But they always turn up. Our family line-up is fashioned after that fabled joint snake. You can disrupt the critter but the pieces crawl back together again and all stand united.”

“If there’s any more midnight visits made at my cabin,” said Carver; “there’ll be one middle joint absent from the next family reunion.”

“I take it you’re referring to Noll,” said Bart. “If you’ll only accept my earnest advice you’ll decoy Noll off to some quiet spot and snap a cap at him. I promise it won’t upset me a bit.”

On the third day out from the ranch Carver rode with Nate Younger along a low ridge studded with a straggling stand of black-jack timber. The old man’s face was stern and set as he viewed the procession filing for two miles along the open bottoms below them.

A dozen round-up crews made up the picture, for this was a coöperative move by all the outfits ranging in the Strip, the great final combing of stock from the unowned lands.

Far up the valley, a mere speck in the distance, the Half Diamond H wagon led the way while the others trailed at intervals. Two hundred riders, the personnel probably including the most efficient body of cowhands in the world, straggled up the bottoms in irregular formation. The extra horses, if combined into one *cavayado* would number over two thousand head. A group of riders hovered near the last wagon, it having encountered difficulties in making the crossing of the Cimarron, resuming their way as the quick-sands relinquished their sucking hold upon the wheels and the floundering horses snaked the lumbering vehicle out upon the solid shore. A band of twenty Cherokees flanked the *cavalcade* and dashed from one outfit to the next, begging food from each wagon boss in turn. Midway of the procession a detachment of cavalry rode in double file while the officer in command conferred with the man in charge of that particular wagon. As Carver watched they dropped back abreast of the next in line and he knew the message delivered to each one in turn by the soldiery,—the instructions to make a thorough sweep and clear every head of stock from the Cherokee Strip.

The Indians, having gathered contributions sufficient for the moment, including a steer which was pointed out to them by the owner of the brand worn by the animal, hazed this moveable meat supply to the crest of an adjacent knoll and there dropped it with an accompaniment of rifle shots. Younger waved a hand toward the scene spread out before him.

“That’s the way I saw the Old West first,” he said. “The picture is mighty near identical; the wagons rolling along just like that, only drawn up in more tight formation; the *cavayado* trailing under guard, holding all the extra horses of the settlers; maybe a band of marauding reds clustered off to one side like them that are hacking up that steer; sometimes a little escort of troopers helping us at bad crossings where the Kiowas and Comanches was most liable to jump us while a part of the train was bogged down in the sand. The wagons was more likely dragged by bulls than horses then, and buffalo was scattered round the landscape in place of range cows, but on the whole the picture tallies close enough.” The old man turned his gaze away. “That’s the way we was first ushered into the Old West, son. Maybe it’s fitting that we’re being similarly ushered out of the last bit that’s left for us.”

They rode on in silence and regained the head of the line. The various wagons made camp at intervals sufficient to permit the *remudas* of different outfits to be held on good grass at widely separate points to prevent the possibility of their mixing. On this occasion the men rode from one night camp to the next to renew old friendships, fraternizing with the hands who rode for rival brands. Another crew of similar magnitude had assembled at another point in the Strip and during this same hour these men too were mingling from one outfit to the next. Perhaps among the entire three hundred odd gathered at these two points there was not one man who fully realized that this meeting was to be the last of its sort; not one who could even partly vision the circumstances of the next.

Never again in history were these men to gather as a whole on the open range. This night was the last. Many would meet in the future; others would never meet again. Some would be neighbors for a lifetime and it was slated that the trails of others should cross in far places. Perhaps it is well that it is not given to man to look far into the future. This last occasion was not marred by any thought that the summons for the next gathering would not go forth for more than a quarter of a century. There were many present who would heed that plea which would one day be issued for all the old-time peelers and bronc fighters of the Cherokee lands to assemble for a final rally. They would not then travel across the open range with chuck wagons and saddle horse. Some would be carried in luxuriously appointed coaches that roared along steel rails; others in glittering vehicles that purred swiftly

along fenced and well-kept highways; some would arrive in strange craft that swept across the skies above thriving western cities situated on spots now widely known as ideal cow-camp sites. A few indeed, but very few, would come in buckboards or ride in on horses, their ropes coiled on ancient saddles; and it would be these latter ones who would then appear strange and out of place. But no such glimpse of future actualities troubled the men as they sought friends who worked with other wagons. There was a general disposition to scoff at the notion that there would be no more cows ranged on the Strip. Even if it were opened for entry it would be long before there were sufficient settlers to take up any great percentage of the range. The settlement of any country was a slow and tedious process. In any event there were long years of life in the open—the only sort of existence which they could endure with satisfaction—stretching forth ahead of them; so why concern themselves over vague possibilities of the future? That was the general attitude of them all, excepting old Nate and his contemporaries, men who, like himself, were being ushered out of their domain as they had been ushered in a generation past. Their day was passing and they knew it.

Throughout the following day various wagons turned aside to the right or left, branching away toward some far spot allotted to them, there to begin the first actual work. In the late afternoon the Half Diamond H wagon made its stand on a creek that flowed to the Cimarron from the low watershed between that stream and the North Fork of the Canadian. The cook's summons brought the men tumbling from their bed rolls an hour before dawn. The night hawk hazed the *remuda* into a corral fashioned by a single rope stretched between stakes sledged solidly into the sod, and after breakfasting the men entered in pairs, each to rope a circle horse of his own particular string. In the first light of day Younger led off up a ridge to the main divide flanking the creek to the left and turned upstream along it. Other reps had joined the wagon and there were now nearly twenty riders following where he led. At the head of each draw he detailed one or two men to work it. When half of the crew had been assigned to cover certain stretches Younger dropped again to the bottoms, mounted to the opposite divide and moved downstream in a similar fashion until even with the wagon, working the last draw himself.

The riders combed the scrub-oak side hills and the gulches, shoving all stock before them to the bottoms and heading them upstream. The first

riders to finish their details were stationed across the valley to halt the cows brought in by others. The chuck wagon had lumbered on up the creek to the point from which the next circle would be thrown. The night hawk had gone off duty with sunrise but the wrangler held the *remuda* in a rope corral. While a part of the men held the herd the others repaired to this enclosure and caught fresh horses, those who were to engage in the next gathering swing putting their ropes on circle mounts, while those detailed to bring up the day herd caught trained cow horses belonging to their individual strings.

In a breeding-ranch country the herd would have been worked on the spot, calves roped and ironed with the brand worn by their mothers, and only the beef steers cut into a day herd, the she-stuff and all stock younger than two-year-olds being allowed to scatter once more on the range. But there were no calves to brand, no she-stock on the range, for of late the cowmen of the Strip had come to follow one set rule in accord with the transition of the cow business, forming an intermediate link between the old-time cattle kings of the open range and the modern feeders of the corn belt. For beef raising, instead of a one-outfit business from start to finish, had come to be a business of progression induced by the necessities of later-day conditions. Big breeding ranches were now mainly confined to the vast wastes of Texas and the Southwest and to similar stretches in the ranges of the Northwest.

The breeding ranches of Texas and New Mexico now gathered their steers as two-year-olds and sold them to the intermediate beef-brands operating in the Strip, the short-grass plains of Western Kansas and the Sandhill country of Nebraska. Here they were ranged on grass till they had turned four-year-olds, then resold to the feeders of Missouri, Iowa and Illinois, who corn-fed and fattened and finished them for market. Except for one breeding ranch confined to a great fenced-in pasture, there was only beef stuff in the whole expanse of the Strip, which rendered the round-up a comparatively simple affair. This last event in particular was simplified by the orders which had just gone forth from governmental sources, and every head of stock gathered in each circle was held in the day herd.

The rope corral was dismantled, ropes and stakes loaded on the bed wagon which promptly headed up country, trailed by the wrangler with the *remuda*, and Carver led all the hands except those detailed with the day herd up the bottoms toward the new stand of the cook wagon. It was but ten o'clock when they dropped from their horses and fell ravenously upon a hot meal

which the cook had already prepared, for while the cowhand's day begins an hour before dawn his nooning comes at ten and his knock-off time is seldom later than five P. M.

The second circle of the day was completed in the late afternoon. The hands feasted to repletion and lolled about for an hour, buzzing angrily over a new rumor which had just reached camp. The men spread their bed rolls on the ground and retired with the setting sun.

Carver dropped instantly asleep but contrary to his usual custom he waked within an hour and sleep would not come to him as he tossed restlessly in his blankets. The turmoil of the round-up, the hoarse bawls emanating from the throats of five hundred steers, the shrill yelps of riders, the stifling dust of daytime activities; all these had been superseded by the night sounds of the cow camp in the open. A cool breeze stole across the range which now seemed mysteriously hushed. Occasionally some night horse on picket or tied to the stake ropes shifted uneasily and stamped a restless foot. The night hawk held the *cavayado* on good grass somewhere down the bottoms and his voice drifted faintly to Carver as he sang to while away the lonely hours. The night guards on duty with the herd were likewise singing to soothe their charges on the bed ground a few hundred yards above the wagon, and fragmentary snatches of their melodies floated down to Carver's ears as he blinked sleeplessly up at the stars. He remained awake till the hour came to stand his turn on second guard and he rolled out, mounted his night horse and rode with several others to relieve the weary riders who had stood the first shift of the night after a fourteen-hour day in the saddle.

As Carver circled the bed ground his thoughts were still concerned with the text of the rumor so recently set afloat. It was said that not only cows, but men would be ordered from the unowned lands; that every foot of fence must be removed from the range and brand owners forced to abandon home ranches. Bart Lassiter joined him.

"Well, what do you think of our latest bit of news?" he asked. "Think they'll go through with it?"

"It don't seem reasonable that they'd put over any such drastic measure," Carver said. "They might. It will be hard on the old man if they do."

A figure rode toward him in the moonlight and the old man in question joined him as Lassiter departed. Nate too had been restless and had found himself unable to sleep. As Carver had reflected that such a move would inflict an undeserved hardship upon his employer, so Nate was wondering as to what effect it would have upon his hands, for in common with all cowmen of his type, Younger was proud of the accomplishments of his riders.

Every brand owner would stand back of the men who rode for him; every rider evidenced a similar devotion to the owner's interests,—a loyalty to the brand for which he worked. Perhaps in all history there has never been another calling which has inspired the same allegiance throughout its entire personnel. A man must be proficient in many lines to qualify as a cowhand. First of all he must be a horseman capable of mastering any horse on the range and of training his mounts to perform the various and intricate duties required of them; a roper of parts, able to front-foot a calf or to rope and hog-tie a mighty range bull with equal facility; sufficiently skilled in blacksmithing to shoe his own horses; for these and many other acquirements, working at them sixteen hours a day, he was paid a lesser sum than any unskilled laborer received for ten hours of far less gruelling work. It was the wild free life, not the pay, which held him to his chosen calling. The driving spring rains which soaked his bed roll as he slept on wet ground in the open; the shrivelling heat of summer and the shrieking blasts of winter blizzards; the congenial companionship of round-up days and the long lonely vigils at isolated winter line camps; all these he chose in preference to the softer life and greater pay of other less strenuous pursuits.

“What will all the boys be doing in another season?” Younger asked. “Where'll they all go when there's no more range work for them to do?”

“Texas maybe,” Carver predicted. “Or New Mexico.”

“Both those countries are coming to be overrun with nesters,” Nate returned. “The big brands are getting their range cut up right now. They've been forced to reduce the size of their outfits in proportion to the decrease in their range. There's more cowhands down there now than there are jobs to go around.”

“Then maybe the Northwest range country,” Carver suggested.

“The surplus bronc peelers of Texas and New Mexico have been drifting up there for the last ten years,” Nate stated. “They’re a drug on the market right now, cowhands are. And they’re irrigating that Northwest country rapid and cutting up the range. Once they settle the Strip, all the boys down there will have to go into other lines. That’s sure.”

The herd was worked and reworked almost daily as cows wearing brands that ranged in different parts of the Strip were culled out and turned over to some wagon crew whose ultimate destination lay in that direction. All along a two-hundred-mile front more than a score of wagons were operating in unison. Owners ranging south of the Strip sent parties up to trail-herd back any of their stock that had wandered to these parts. These men brought with them little bunches of Half Diamond H cows and others that had drifted from the Strip to southern ranges. Some came from beyond the Canadian and at least one little assortment had been combed from the distant Washita. Younger, in common with other large owners of his neighborhood, maintained drift fences and line camps to prevent the drifting of his stock from the home range. Even with these precautions there was a certain annual leakage, but the percentage of Half Diamond H cows gathered south of the Cimarron was small.

Day after day as the round-up progressed the men threshed out the fate of the unowned lands. It constituted the sole topic of discussion whenever two riders met on the circle or paused to converse as they stood their turn on night guard. It filled that brief period of general indolence in which they indulged each evening before taking to their beds with the setting sun. Carver, perhaps to a greater extent than any of them, had anticipated certain transitions. He had correctly interpreted the presence of those white-topped wagons camped along the line and knew what they portended, yet even now he found it impossible to give credence to such drastic changes as were predicted by old Nate and others of his kind. He sought for an analogous example and found it in the settling process which Kansas had been undergoing for a period of forty years; yet throughout the whole western half of that State ranches of five to fifty thousand acres were the rule. In view of this circumstance he could not quite conceive of the vast expanse of the unowned lands being cut up into quarter sections in the space of a few short years. It would all take time. He advanced this idea to Younger on a day some three weeks out from the ranch.

“All this talk about men being ordered out of the Strip,” he said. “How are they going about that? I’ve seen the squatter outfits rolling up to the line and making camp. But we’ve had similar demonstrations before now; that year the boomers fired the grass for one; and nothing came of it. They were ordered out. Even if they let ’em in it will take years to settle up the Strip.”

Younger nodded abstractly. Since that event had cost him a thousand head of cows it was but natural that the incident was still fresh in his mind. A few years past a swarm of squatters had invaded the unowned lands in the face of all regulations. When the cowmen had sought to expel them after they had refused to obey the government’s order to move out, the boomers had scattered and fired the parched fall grass and stock had died by thousands throughout the burned areas. The negro cavalry had been sent in to enforce the regulations and were thereafter stationed at Caldwell, patrolling the line and turning back all insistent settlers who would enter. Now the Negro troopers had been withdrawn and a second invasion seemed imminent.

“I know, son; but this time things will be reserved,” Nate prophesied. “Then they ruled the squatters out and stood by us. This time they’ve ruled us out instead.”

“They’ll open it for entry,” Carver agreed. “It’s come to that and it’s likely we can’t postpone it. But this notion that the whole of the Cherokee country will be settled up solid in a few years’ time seems overdrawn.”

“A few months’ time, boy,” the old man corrected. “More likely a few weeks will do the trick.”

Carver’s thoughts reverted to a similar prediction made by Hinman, “It’ll be one hair-raising, mad stampede,” old Joe had said. But Carver still dissented.

“It’ll take nearly fifty thousand families to file on every quarter section in the Strip,” he said. “They’ll come eventually. I know that. But where will that many come from in a few weeks’ time?”

“Son, they’ll come from every odd corner of the country,” Younger stated. “They’ll swarm in and settle down in clouds like blackbirds in a cane field. She’ll be the damndest, wildest scramble a man will ever live to witness. I’m telling you.”

V

THE stockyards had been the scene of feverish activity for weeks. The loading pens were crowded to capacity and throughout every hour of the day and night there sounded the bawls of thirsty cattle and the shrill yelps of cowhands as they urged unwilling steers through the loading chutes. Long trainloads of cows rolled out of Caldwell in swift succession and loading was resumed as soon as empty cattle cars could be obtained. An antiquated switch engine wheezed noisily as it shunted cars along the switches and spotted them at the chutes. Day by day the congestion increased. The quarantine belt swarmed with stock, as some two hundred thousand head had been gathered from the Cherokee lands for shipment. In addition to these the regular run of summer business from the south continued as the trail herds from Texas and New Mexico came plodding up to add to the congestion.

Money flowed back into Caldwell in steady streams as trainloads of cattle were converted into cash on the Kansas City and Chicago markets. Many owners, having been deprived of their range by the stringent orders, found themselves unable to reinvest in cows the funds received from recent shipments. In their restlessness many of these turned to the green tables for relaxation and there were stud games where hundreds and often thousands were wagered on the turn of every card. All the cowhands of the Strip were banked up in the quarantine belt, holding the cows of their employers on grass until such time as they could be cleared and shipped. In their leisure hours they swarmed the streets of Caldwell. Added to these were the trail-herd crews from the whole Southwest, among them many Mexican peelers with their tremendous hats, silver-mounted saddles and three-inch silver rowels.

Four troops of cavalry were camped along the line and troopers mingled with the crowds. Caldwell, the last of the old-time cow towns, had now entered upon her last wild fling. It was now definitely known that in three months' time the Cherokee Strip would be thrown open for settlement and the homeless from all corners of the country were already beginning to

assemble. For weeks on end there was not a room available in town and men spread their campbeds in vacant lots. Eating places were crowded to capacity and new restaurants were being opened up in frame shacks or even in tents wherever vacant sites were available. As always, where business is rushing and money freely flowing, there were symptoms of a boom. It was openly predicted that the settling of the country to the southward would throw Caldwell into the enviable position of the one logical metropolis of the whole Southwest.

Cowmen cursed the troopers, seeing in them the visible symbol of that authority which had excluded them from their rightful domain. The unowned lands were thoroughly patrolled and detachments of cavalry were camped at strategic points throughout the Strip. It was this latter circumstance which had upset Carver's calculations. He had planned with Bart Lassiter to hold a bunch of six hundred of Younger's three-year-old steers on the forbidden range for a period of one year, receiving a substantial proportion of the increased price which they would bring as four-year-olds. Both Carver and Nate Younger had seen the futility of the attempt. Others had entertained similar ideas but had abandoned them as events moved swiftly past the farthest bounds of their previous comprehensions and rendered their hopes untenable.

Carver, once assured that his plans for the immediate future must be relinquished, cast about for some substitute occupation which might prove equally remunerative. He rode away from Younger after their mutual decision, spinning his lone coin into the air and catching it as his horse jogged slowly across the range.

"It appears as if it's going to be real difficult to provide you with all the company I'd counted on," he said. "Time is skipping right along and here you are—occupying my pocket all by yourself without even one mate to jingle up against. Only last week I had it all mapped out to gather in several thousand of your sort to keep you company. But that plan's flown out the window and here I am without one idea to work on."

He turned along the south line fence of the Half Diamond H leases.

"Little lonely dollar, you must mount up to a million," he asserted. "But we've got to insert our wedge somewheres right soon and start to mounting."

His eye traveled along the fence line to where it disappeared in the distance, and suddenly he turned and rode back to where the outfit was camped and sought out the boss.

“About those fences being ordered down,” he said. “What arrangements have you made?”

“Not any,” Nate admitted. “What with gathering eight thousand head of steers and shipping ’em I haven’t taken time off to worry over fences. We’ll have the last steer headed north in a few days now. Then I’ll see about scrapping fences—or let the squatters tear ’em down when they come in to roost.”

“It won’t leave you short-handed now if Bart Lassiter and I lay off,” Carver suggested. “You lend me a team and wagon from the home place and we’ll snatch out those fences for what material there is in them.”

“The fence is yours,” Younger agreed. “Provided the other half-owners of any stretches are agreeable. Go get it.”

Lassiter assented instantly when Carver stated the proposition.

“I always did feel suffocated in a fence country,” he announced. “I was always so much opposed to seeing every fence go up that I figure it will be a real entertaining pastime to help tear ’em down.”

This spirit of optimism lasted during the two days required to hunt up other part owners of certain stretches and get their endorsement of the plan, his enthusiasm lasting through the first few days of actual work. They were out before sunrise and knocked off after dark, pulling posts, coiling wire and freighting the materials to the Half Diamond H home ranch. His interest lagged but he did not openly rebel until after two thirds of the fence had been salvaged. Carver roused him one morning for breakfast and Bart blinked sleepily at the smoky lantern that lighted the sod hut in which they had stayed overnight.

“We’ve got enough wire piled up to enclose the State of Texas,” he stated. “There’s thirty miles of three-wire fence we’ve collected if there’s a foot. That’s twenty-nine miles more than both of us will ever need. Let’s leave the rest of her set.”

“But we contracted to scrap the whole of it,” Carver dissented. “Another week will see us through.”

“A week!” Lassiter moaned. “I just can’t face it, honest. I’ve reformed. I hope I hang if I ever extract another staple.”

“A week’s not such a long stretch,” Carver urged.

“Donald, I’ll break down and cry if you lead me up to just one other measly fence post,” Lassiter announced. “You take my half and let me off. I’ve got to amble over to Crowfoot’s and draw my spring wages. Then, too, I’d ought to collect Molly and get her settled somewhere in Caldwell. She’s all alone over on Turkey Creek.”

“I’ll pay you thirty dollars for what time you’ve put in—sometime when I’ve got it—and take over your wire and finish the job myself,” Carver at last conceded. “You can locate Molly in my little plant in Caldwell; only mark me now! There’ll be no more balancing of Cherokee rations conducted on the premises. I’ll remonstrate with you at some length if I catch you at it again.”

Carver worked on alone and at the end of another ten days he viewed with satisfaction the numerous coils of fence wire and the great stack of posts neatly corded behind the deserted buildings of the Half Diamond H.

“At present that assortment is only wood and iron,” he said. “But it’s a real imposing pile nevertheless, and I can likely convert it into dollars when the squatters come romping in.”

When he rode into Caldwell he was amazed at the swift transitions. The incoming transients had trebled the population in the last two months. Being unprepared for this sweeping change he was all the more prepared to lend a willing ear to the prediction that Caldwell was to become the metropolis of the whole Southwest. There was a conversational boom in progress and Carver, looking upon the crowded, teeming streets, the numerous tent houses everywhere in evidence and the new frame shacks in the process of construction through the town, divined the possibility of actual boom days just ahead. He rode out to his little frame cabin to visit with Molly Lassiter whom he had seen but three times in as many months. He found neither Bart nor Molly at home but the door was unlocked and he entered.

The two rooms of the bare little shack had been transformed. Two worn Navajo rugs were spread on the pine-board floor and soft curtain materials were draped across the windows.

“She’s made it all homelike,” Carver said. “Just with a touch here and there. What couldn’t she do with things to work with and a real house to operate on? We’ll give her one some day if only she’ll agree.” He drew forth the lucky dollar and consulted it. “Let’s you and me hatch out a new idea,” he invited. “We can’t be loafing on the job.”

While the idea was hatching he sat peering abstractedly through the doorway, rousing from his reverie only when he found his gaze riveted on the girl as she turned into the pathway leading to the house. Molly halted suddenly when within a few feet of the door, as she saw him sitting just inside it.

“I hadn’t expected you this soon,” she said.

“Bart told me the fence job would keep you another month at least. Did you decide not to finish it?”

“It’s salvaged to the last strand of wire,” he returned. “I speeded up some so as to have it over with.”

“I’m sorry Bart quit,” she said. “You see he won’t stick at anything.”

“Don’t know as I blame him,” said Carver. “The last few days I’ve developed a downright aversion to the sight of fence wire myself. Glad to see me?”

“Yes,” she said. “I’ll be out of here and established in a room of my own so that you can have your house by to-morrow, Don. I’ve been waiting for the present occupants to vacate.”

“You stay right on here,” he insisted. “I won’t be needing it.”

“Thanks, Don, but I can’t do that,” she said. “I have to stop floating and find some nook of my own. I can’t follow Bart around any longer. For three years now we’ve drifted from one spot to the next; sometimes in line camps; more frequently in some rooming house in any town where we happened to be, always knowing that wherever it was it wouldn’t be home for long. I didn’t mind at first, for I was trying to keep Bart away from Milt and Noll; but they always turn up again and he follows them off. I’d love

even a sod house if only I could call it my own and know I wouldn't have to move out on an hour's notice. I'm sick of gypsying. I want to feel settled—feel that I'm attached!"

He reached over and rested a hand on her shoulder.

"I know, Honey," he said. "So do I. That's exactly my own frame of mind. The best way all round is for you and me to get attached and settle. Won't you?"

She felt that he had failed to grasp the fact of what a sense of permanency would mean to her after the nomadic existence she had followed for the past few years.

"Listen, Molly," he said, divining something of her thoughts. "It's not the way a man says a thing but the way he means it that really counts. And I was meaning that a lot."

"But you don't even know to-day what you're going to do to-morrow," she said. "It would be only exchanging one state of gypsying for another. Don't you see that?"

He did, at least, see that the moment was not right and he settled back into his chair and twisted a cigarette.

"You always lean to the dark side of things," he accused. "Most complaints I've heard about family strife was occasioned because menfolks generally were so occupied with business that they didn't spend much time at home. Now with me not having any special business it would leave me free to put in most of my time around the house. There's that advantage."

"Yes," she laughed. "There's that. Sometimes, Don, I almost wish you really were a settled sort of a soul; but that time will never be."

Carver crooned softly:

"Oh, I'm a rolling Rambler,"
Said the speeding tumbleweed.
"The prairies are my race track,
The wild wind is my steed.

"I never cease my roaming;

I'm always hard to catch,
But the pumpkin stays forever
In the same old garden patch.

"But I'd rather be a wild, wild weed
Than a sluggish yellow squash:"

"And I'd so much rather be a pumpkin than the wildest of all wild weeds," she said. "There's only that little difference between the two of us."

"Tell me," he urged, "what sort of a quiet home life do you pine for most? Does your preference run to a cottage in town or stray off towards a dwelling in the country?"

"The country," she returned. "Somewhere on a farm where I could watch things grow."

"That's my choice too," he confessed. "Whatever business I settle on will have to be at the source of things. Like you said, I want to watch things grow—calves or crops, it don't much matter which. I'll start casting about for a farm right off."

After leaving her he mingled with the swarming crowds on the main street. The conversational boom was in full swing and he heard it discussed on all sides. There were but few who dissented from the general prediction that an era of great prosperity lay ahead for Caldwell. Carver put in three active hours, then sought out Nate Younger to draw his back wages for the spring work, a sum totalling a trifle less than two hundred dollars.

He found Younger in his room at the hotel in conference with Joe Hinman. The two old cowmen had pooled resources and formed the Plains Land and Cattle Company, Younger having purchased grasslands adjoining Hinman's holdings. They planned to make the new concern a beef ranch straight through instead of a breeding ranch as now operated by Hinman.

"We'll be the biggest outfit in this end of the State," Hinman was predicting, as Carver thrust his head through the door. "Come in, son, and set on the bed. The Plains Land and Cattle Company is going to be the biggest of the lot."

“I’m counting some on organizing a similar concern myself,” said Carver. “Maybe a trifle smaller than yours just at first; and in order to make the start I’ve got to borrow somewhat. I’m owning a nine-hundred-dollar equity in that bunch of calves we made the deal for last spring. How about your lending me eight hundred against it?”

“But that would leave you owing me thirteen hundred on the bunch,” Hinman objected. “And right now those calves wouldn’t fetch that price on the market.”

“Set the date for maturity of the loan far enough ahead so they’ll grow into it,” Carver suggested. “Before it comes due they’ll have advanced way beyond that figure. Then if I don’t pay up you can close me out at a profit.”

“Now ain’t that a fact!” Hinman exclaimed admiringly. “There was a time, Buddy, when I marvelled at your ability to shed a season’s wages overnight. It does look now as if you might also learn me a few tricks on the reverse side of things. You’ve got a business mind.”

He produced a check book and a stub of pencil.

“How long do you want this loan to run?” Carver asked.

“According to your own figures the longer it runs the more I stand to make,” said Hinman. “So I don’t know as it makes much difference. It does appear as if you’d let me in on a pretty good thing—so set the date yourself.”

“One year from to-day,” Carver decided.

“What do you aim to do with all this money?” Hinman inquired. “Setting out to break the bank in the Gilded Eagle?”

“I’ve purchased a building,” Carver proclaimed.

“You’ve which?” said Hinman. “What building?”

“Pirie’s place; down in the next block,” Carver informed. “It’s got a grocery business on the ground floor and the grocer’s wife rents room upstairs.”

He extended a contract and Hinman perused it, observing that Carver had agreed to purchase at three thousand dollars, paying six hundred down and a like amount each year.

“I’d rented my little shack,” Carver explained. “Only to find that there wasn’t a room for rent in town; not one! It was either buy a place of my own or set up.”

“It’ll save you considerable room rent,” Hinman agreed, “you being in town easy three nights out of the year. But what’s the final object?”

“Each season those calves will be worth more and I can borrow enough additional against them to meet the payments,” Carver pointed out. “Meantime the grocer pays me thirty dollars rent money every month, which gives me a steady income to live off till such time as I can turn the building at a profit and buy a tract of land to run those calves on.”

“I didn’t know your ambitions run toward owning land,” said Hinman.

“But now since I’ve come into so much surplus fence wire,” Carver explained, “it looks like the only economical thing to do is to acquire a piece of land to set inside it.”

“Son, you’ve mapped out a self-operating business,” Nate Younger congratulated. “All you have to do now is to stand back and watch it ripen. Meantime why don’t you read up on Belgian hares?”

He handed over the sum due for back wages and Carver studied the two checks reflectively.

“This surplus now,” he said. “I was figuring to put into horses. They’ll almost give you horses nowadays just to come and drive them off. If you don’t mind my throwing a few head up on your range, I’ll buy up a little bunch and pay you fifty cents a head for pasture fees, agreeing to get ’em off your grass November first.”

“We’d better let him put ’em on, Joe,” Nate agreed. “It’s that much more security for that loan.”

Even under favorable circumstances the horse market was poor and now with all those recently combed from the Strip as a surplus, horses could be purchased at one’s own price. For a week Carver rode early and late. The average run of Indian ponies were selling for less than five dollars a head but it was not this class of horse flesh which Carver sought. He selected young mares and geldings, ranging from eleven to twelve hundred pounds in weight, which would serve for light work stock, and eventually he drove

fifty head well toward the northern extremity of Hinman's range. They had cost him an average of ten dollars apiece and he had paid cash for half of them, issuing verbal promises to pay for the rest. He rode back into Caldwell with something over a hundred dollars in his pocket.

The equipment of all the deserted ranches in the unowned lands was banked up in Caldwell. From the Coldstream Pool Carver purchased ten sets of harness at fifteen dollars a set and three heavy wagons at forty dollars each, paying his last hundred down and his personal note for the balance.

Hinman witnessed this last transaction.

"Considering the size of your original stake you've stretched it to cover considerable territory in the last few months," he said.

"It's only my surplus I'm spreading out so thin," Carver explained. "My capital is still intact." He exhibited his silver dollar. "My one rule of life is never to impair my principal."

"Fine," Hinman encouraged. "That's conservative business. I was satisfied you'd play it slow and safe."

"Now if you'll do me just one more little kindness I'll be grateful," Carver said. "You and Nate engage Freel in conversation up on the corner where he's standing and inside of five minutes I'll saunter up and direct the course of the interview."

"I'd like to hear it," Hinman said. "We'll detain him."

Carver joined them before the appointed space of time had elapsed.

"Freel, I've been feeling real contrite about resisting arrest a few weeks back," Carver said. "I've decided to surrender and stand trial."

The deputy marshal glanced apprehensively at the two old cowmen.

"Oh—that," he said. "Why, I've let that matter drop. That's all closed."

"And it was real accommodating of you to close it," Carver returned, "but I can't stand by and see you get in trouble on my account. Orders are orders, and you had yours. That's the reason I wrote this letter to Art Webb." He tendered an unsealed letter to the deputy. Webb was Freel's chief, the head United States marshal of the district. "Webb is a good friend of mine and I'm demanding that he inform me just why he sent an order down here to

you to pick me up. That will put you in the clear for not rearresting me since that night I escaped.”

Carver turned to his two friends.

“You’ve both known Webb for years,” he said. “Did you write him like I asked you?”

“It clear slipped my mind,” Hinman apologized. “I’ll get it off this evening.”

“Mine goes on the same mail,” Nate concurred. “We’ll sift this thing right to the bottom layer and clear Freel of any possible blame.”

“Freel will be on my side himself if it comes to a showdown,” Carver asserted. “He’ll be the first to testify that I’d been away from home for a solid month prior to the time that charge was lodged. Some one’s tried to deal me from the bottom, and between the four of us we’ll discover who it is.”

Freel laughed and slapped Carver on the shoulder.

“Matter of fact, that inquiry was for another party, wanting to know if he’d turned up in these parts,” he said. “I went and got the names mixed. The joke’s on me—likewise the drinks, and I’ll buy right now.”

He slowly tore up the letter to Webb.

“And here I’ve been worried almost sick,” Carver said. “It’s a big relief to have it all cleared up. I still owe you fifty on that little bet. Here’s an agreement to pay in ninety days, just as an evidence of good faith.”

He handed Freel a folded paper and the marshal frowned as he read it.

“You’ll notice I stated why I owed it,” Carver amplified. “You’ve always played square with the boys—and there’s maybe a half dozen that’s willing to step forth and declare how you’ve always met them halfway the same as you did with me.”

During the next hour Carver accosted a dozen intimate acquaintances and told each in turn, quite confidentially, that there was a rumor afloat to the effect that Freel was about to resign as deputy marshal and that Mattison was making application for the post.

“By this time to-morrow every man in Caldwell will have commented on this matter to Mattison and Freel,” Carver said to Hinman. “Not because they take any special interest in it but just to make conversation. But the principals, being only human and therefore self-centered, will decide that the whole town is breathless over their affairs. Mattison will feel his ambition mounting and Freel will suspect that there’s been a fire kindled under him. Now if only you and Nate will put in your pull with Webb to give Mattison the appointment, it looks as if things would come out right.”

He rented an extra saddlehorse and invited Molly to join him in an afternoon ride. They jogged out past the stockyards where cowhands prodded unwilling steers through the loading chutes, on beyond the sound of the wheezing switch engine and the rattle and smash of cars, then angled westward through the quarantine belt where riders guarded thousands of head of cows. In the gathering dusk they rode out on the point of a lofty knoll which afforded a view throughout a great expanse of country.

“Have a last look at all this, Molly girl,” Carver said, extending an arm to the south. “There’s yesterday.”

The green summer range stretched away to the far horizon with never a plow furrow to break it. Two trail herds had been bedded for the night at widely separate points. A third, whose trail boss had evidently made a hard day’s drive to reach the quarantine belt in hope of an earlier clearance and shipping date than that accorded to his slower fellows, passed below the two on the knoll and plodded northward. Two men rode the points, the right and left forward extremities of the herd, guiding the foremost animals on the chosen course. One man skirted either flank and two others rode the “drags” in the rear of the herd to press forward any stragglers as the weary cattle drifted slowly toward the chuck wagon which was stationed a mile or more ahead and where the rest of the trail-herd crew had already gathered.

“That’s yesterday, girl,” Carver repeated. “Remember all this as you see it now; the green range and the trail herds coming up from the south. Have a last look at it—for here comes to-morrow,” and he pointed off to the northward.

Miles away across the quarantine belt a slender ragged line extended either way beyond the range of their vision. A thousand ribbons of white smoke writhed aloft and glowed in pallid outline against the darkening sky. For

two hundred miles along the line, wherever water was available, there was one continuous camp of squatters, and still the land seekers increased at the rate of two thousand families a week, all the landless of a mighty nation gathering here to participate in what would go down in history as the Cherokee Run, the most frenzied stampede of the century.

Both watchers felt a sudden tightening of the throat as they gazed upon the scene, their feelings much the same but occasioned by different viewpoints. Carver's sympathy was with the riders who handled the cows on the near side of that continuous camp, men who, like himself, had loved the old open range, the range that was passing for all time. The girl's heart went out to those homeless hosts outside the line, for she herself was homeless and could understand the longing which had brought them to this spot to join in a mad and desperate rush on the chance that they might be among the fortunate locaters who should be first to drive their stakes on any scrap of ground which would constitute a home. Perhaps they too were tired of gypsying, she reflected, and yearned for some one spot which they might call their own.

He pointed to the tiny scattering specks that were riders moving from point to point, then on beyond them to that stolid line.

"Yonder come the pumpkins to crowd out the tumbleweeds," he said.

The soft summer night shut down and transformed the pale smoke columns into a tortuous trail of twinkling fires which extended for two hundred miles along the line.

"We'd best be going now," the girl said at last. "There's a fifteen-mile ride ahead. I'm glad you brought me here to see all this. It means one thing to you, Don, and exactly the opposite to me. But it's something we won't forget."

"No," he said. "We'll not forget."

They rode on in silence, the girl occupied with her thoughts of the homeless legions who would soon have homes, Carver content with the mere fact of her nearness. When he decided that this thoughtfulness had claimed her for too long a time he recounted his transactions of the past few days.

"About those responsibilities I promised you I'd acquire," he said, "I'm taking them on rapid. In addition to both residence and business property

here in town, I'm owning a considerable number of horses and a hundred head of calves, not to mention harness, wagons and a few score miles of good barbed wire. I'm accumulating responsibilities so fast that there's times I can't be real sure whether they're mine or some one's else."

VI

A STRAY steer moved out of a coulee and bawled lustily for company. The animal traveled at a fast walk, occasionally breaking into an awkward trot but halting frequently to loose a plaintive bawl.

“He’s lonesome, that old fellow,” Carver surmised. “And hunting hard for company.”

As he watched the animal he speculated idly as to the probable number of stray steers scattered throughout the Strip. Always there was a certain small percentage overlooked in the round-up, those feeding in choppy timbered breaks or bedded in scrub-oak tangles and missed by the circle riders who covered such stretches. These missing ones were caught in subsequent roundups, so it mattered little. But on this occasion they could be charged off, Carver reflected, for there would be no future round-up. The owners could not afford to outfit parties to cover such a great stretch of country for what few were left, yet Carver estimated that there would be well over a hundred steers still ranging the rougher parts of the twelve thousand square miles of the unowned lands. He pulled up his horse and looked back at the bawling steer, then drew forth his silver dollar and addressed it.

“An idea just hit me,” he asserted. “You and I don’t believe in taking chances. Conservative, slow and safe, like Hinman said; that’s us every time. But we’re going to make one more little investment in tumbleweeds before we settle down.”

A few hours later he went into conference with Nate Younger.

“If you’ll get most of the brand owners that operated in the western half of the Strip to sign an agreement whereby I get half the market price of any of their stray steers I bring into Caldwell I’ll outfit a combing party and go in after them,” Carver offered.

“They’d sign up quick enough,” Younger stated. “Jump at the chance in fact. But if the owners themselves figure they can’t prorate the expense of a trip like that and come out ahead, how does it come you see a profit in footing all the expense for only half the proceeds?”

“Just a whim of mine,” Carver answered.

“Another point you’re overlooking is the nature of a steer,” Younger protested. “Once he gets lonesome he’ll bawl and travel and attach himself to the first trail herd that drifts through. Did you ever consider that little kink in the make-up of a steer?”

“It was through studying over that very point that I acquired the notion,” Carver said.

“Oh,” said Younger. “Yes, I see. All right, son, I’ll sign them up.”

“There’s the trail bosses of forty different Texas brands in town,” Carver continued. “And there’s a dozen or so I’d like to sign up on the same basis. I’ll go out and interview them while you fix up the others.”

“But you won’t find any Texas strays in this end of the Strip,” Younger predicted. “A trail boss isn’t so much averse to letting an off-brand join his herd, but he’s dead set against letting one of his own steers desert it.”

Carver knew that this rule was true. Trailherds, traveling as they did through cattle-populated ranges, experienced a certain accretion of numbers through the joining of curious or lonesome cows and it was no infrequent thing for a drove to reach the shipping point a number of head stronger than on the start. The foremen of trail crews were supposed to use every effort to avoid such accretions and to work their herds at intervals and throw out any off-brands. Many, in order to save time and trouble, waited until reaching the quarantine belt before cutting their herds. The brand owners grazing in the unowned lands had formed the Cherokee Strip Cattlemen’s Association, and this organization maintained brand inspectors at the Caldwell stockyards to guard against the possibility of any of its members’ cows being inadvertently shipped with droves that had been trail-herded through their ranges.

“No, the trail herds don’t usually drop many of their own steers en route,” Carver agreed. “It’s more apt to be reversed. But the rule holds good in Texas as well as in the Strip, so I’ll go out and sign up a dozen or so of them, even if the paper proves to be only a futile sort of a document in the end.”

Some three weeks thereafter Carver rode with Bart Lassiter up a scrub-oak side hill. A little camp nestled in the draw below them where two other men

rode herd on a dozen head of steers.

“It appears to me like you’d staked a losing venture,” Bart asserted, “with three riders and a cook on your payroll and only a dozen steers in camp. We’ve covered this whole neighborhood thorough and yet you stay round. Why don’t we move to some more likely piece of country, say toward the head of the Cimarron?”

“But it’s so much simpler to let all those strays have time to come down here and join us than by our rushing things and trying to ride that whole big country in search of them ourselves,” said Carver.

They topped the ridge and Carver pulled up his horse behind a scrub-oak thicket. A trail herd streamed down the far slope of the valley and was halted in a meadow that opened out in the timbered bottoms of Turkey Creek two miles above Crowfoot’s ranch, the one place in the Strip not yet deserted. Crowfoot, having beef contracts to fill, had been permitted to retain a number of steers on the Turkey Creek range with the understanding that the last of the animals was to be slaughtered and the place vacated thirty days prior to the date scheduled for the entry of the Unowned Lands.

“Just consider the amount of territory that herd has covered,” Carver commented.

Bart recognized the herd as that of X I L with his two half-brothers in charge, and, as Carver had remarked, the drive had covered considerable territory. It suddenly occurred to Bart that the trail bosses whose signatures Carver had obtained were those representing Texas brands ranging south of the Washita or between that stream and the Canadian, the country through which the herd had passed. After entering the Strip it was not Milt’s custom to follow the regular trail-herd routes but instead he drifted his charges slowly down the North Fork of the Canadian, then across to the Cimarron and down that stream.

“I expect strays have been joining them all along the line,” Carver observed. “Now if they’d just happen to work the herd right here on Turkey Creek instead of waiting till they reach quarantine it would be right handy for us.”

Bart turned and regarded him, the main purpose of Carver’s venture now quite clear to him. Milt would cut his herd here on Turkey Creek and

Crowfoot, having still time for one last turn in inexpensive beef, would present him with ten dollars for every off-brand thrown out of the herd. Bronson, the owner of the X I L and whose trail herd was the medium for this traffic, probably received a like sum from Crowfoot.

“It’s been a nice safe occupation for a trail boss,” Bart said. “He’s privileged to work his herd at any point he elects. It’s even considered the honorable thing to do if he’s willing to take the time. If by any chance some outside party gathers in the off-brands he’s throwed out of the herd, it’s no fault of his.”

“That’s why I’d decided to gather in those off-brands myself,” said Carver. “See how simple it is?”

“Oh, quite!” said Bart. “And also if I ride down with you on that errand it will create a rift in my family tree.”

“You once remarked to me that your family relations had been strained before now but that the breach had later healed,” said Carver. “This will likely leave a permanent scar, but I’ll pay you three dollars a head for all the off-brands we collect down there.”

“I value the esteem of Milt and Noll but I’m needing the money bad,” said Bart. “Let’s you and me ride down.”

“Not right this minute,” Carver dissented. “Let them finish working the herd. Then all we’ll have to do is to drive off our meat.”

“Or it’s just possible that we’ve mapped out quite a chore for ourselves,” said Bart. “Milt is in charge down there. He’s easy to get along with, mostly, but deadly as hell when he ain’t. I’m wondering how he’ll take it.”

“Being a person of fair average brains, and not a haphazard homicide like Noll, he’ll take it easy,” Carver said. “I’m armed with a permit from the military authorities to conduct my work in any part of the unowned lands. I represent half the brands that ranged in the Strip and hold a like authority from the trail bosses of a dozen Texas outfits.”

He pointed to the work in progress in the bottoms. Riders were stationed at intervals round the herd to hold it. Others entered and singled out off-brands and once a trained cow-horse had spotted the animal wanted by his rider, he

followed doggedly, never losing his prey, and when near the edge of the herd he crowded it out with a sudden swift rush.

“They’re throwing them off up the bottoms,” Carver said. “In a few hours we’ll get Bradshaw and saunter down. After chatting with them for a spell we’ll mention that we’ve been sent in by the Cattlemen’s Association. Their hands are tied.”

This assumption proved correct and Milt Lassiter, silent as always, failed even to comment upon the matter when, some hours later, the three men casually made known their errand and rode off up the bottoms in search of strays. Three days later Carver reached the stockyards with a hundred and twelve head of steers that wore brands of owners whom he represented. The majority of these bore the insignia of Texas outfits but there were some forty steers wearing the mark of Strip owners, strays which had been run into the herd on its way down the Cimarron. He was cleared and given immediate shipping facilities, for the congestion of cows in the quarantine belt had passed, only to be replaced by an even greater congestion of packed humanity just outside.

Thirty thousand souls had come to swell the transient population of Caldwell. A like number were camped along the line and Caldwell drew their trade. Day by day the jam increased. Incoming trains were packed and roads converging upon the town were filled with a solid procession of vehicles which bore families of hopeful home seekers toward the edge of the unowned lands. Caldwell, three months since a little cow town of but two thousand souls, was now doing business on the basis of a hundred thousand population. Property prices doubled overnight and still the swarm increased at the rate of a thousand a day.

And beyond, across the dead line which held the mob back from its goal, the cause of all this rush and turmoil basked in peaceful serenity, twelve thousand square miles of it, untenanted by a single soul. The soldiers rode the line on all four sides of it to hold the over-anxious back; on the west there were troopers stationed at intervals of a mile the length of the Cherokee-Texas border, and on the south along the Oklahoma line. To the east the Arkansas River, separating the Strip from old Indian Territory, was similarly patrolled; yet with all these precautions there were scores of sooners who had slipped through and secreted themselves inside. On the

appointed day they would come forth from their retreat and drive their flag on some choice claim as the horde rushed in.

Late summer droughts had claimed the country and the range was parched and brown. Registration booths were erected along the line in the glaring heat and as the day of entry approached there were long strings of men, some extending for upwards of half a mile, lined up to await their turn for registration. They camped in the line, sleeping where they had been standing when night shut down and the registration booths were closed, some reposing on bare ground, others in campbeds which they rolled and utilized as seats throughout the day, dragging them along as the line progressed. Wives and daughters carried meals to their menfolk and vendors plied the line to peddle food and drink.

Every conceivable variety of business had opened up in Caldwell to cater to the ever-increasing throngs. It was the wildest of all frontier booms. Carver's profit in stray steers had netted him something over eighteen hundred dollars. He disposed of his business building at a net profit of fifty-six hundred and sold out his three lots and little house on the outskirts of town for an even thousand. After clearing his indebtedness on calves, horses and equipment he had something over sixty-three hundred left. He then entered into consultation with Younger and Joe Hinman.

"How much would you figure the best of the bottom land in the Strip will bring when it's proved up?" he asked.

"Not much over eight or ten dollars at the first, maybe twelve an acre for the best of it," Hinman estimated.

"But if I live a long life I'll see every foot of it touch fifty," said Carver. "Don't you think?"

"And if you live a while longer than that you'll see it top a hundred," Hinman stated. "It'll take some time but it will get there. I've seen it repeated before now as a country settles up."

"I've made my last bet on tumbleweeds," said Carver. "And I'd as soon start my pumpkin patch down there as anywheres. It would be right nice to have something over a thousand acres of good land down on Cabin Creek, the old site of the Half Diamond H."

“It would,” said Younger. “Only it can’t be done. A man can only file on a quarter section and he has to live there to prove up. Even if you could buy his relinquishment you couldn’t live on but one place at once.”

“Last year when I went up to Kansas City in charge of a train-load of your steers a banker showed me a collection of scrip he’d made,” said Carver. “It was Civil War Scrip, issued to veterans in lieu of pensions, or maybe on top of pensions, I don’t know which. Anyway, it entitles the holder to lay that paper on any tract of government land and get a patent to it without having to live there and prove up. A number used it on small plots left open round where they lived and sold off the fractions left over for whatever they could get. On and off in the last ten years this banker has accumulated such fractions to the amount of seventeen hundred acres. He intimated that he’d let them go for the price of the raw land. If he’ll sell for three dollars an acre he’s found a customer.”

“But the Strip won’t be opened for entry till a certain hour,” Hinman objected. “And right then there’ll be three men for every claim turned loose across the line at once.”

“There’s thousands making the run that don’t consider proving up,” said Carver. “They’ll relinquish for whatever they can get. I can furnish them with scrip to get their patent and they can deed it right back to me.”

Carver returned a week later, owner of scrip to the extent of nearly two thousand acres. As he stepped from the train he noted Bart and Noll Lassiter conversing, Bart grinning as usual while Noll’s face expressed black wrath.

“Noll is a trifle upset over our turn in off-brand steers,” Bart told Carver as he joined him. “He considers me a traitor and is deciding which of twenty different methods will be the most painful way to kill me. Says he’s no brother of mine, which it’s a relief for me to discover the fact, since I’ve always wished he wasn’t. He seemed real irate.”

They turned to view a murky haze off to the south, a haze that changed to dense billowing black smoke as a hungry blaze licked across the parched prairies. Some thought the soldiers had fired the grass to drive out the sooners that skulked in hiding in the Strip. Others averred that the cowmen, remembering that time when the boomers had fired the range, had waited till this time to retaliate, a few days before the settlers were to take over

their old domain. Whatever its source, the fact remained that in the space of two days there were hundreds of square miles of the unowned lands transformed into a black and devastated waste.

VII

SOLDIERS sat their horses at half-mile intervals, awaiting the appointed hour to give the signal for the home seekers to cross the line.

Molly Lassiter's eyes snapped excitedly as she viewed the scene, a spectacle which has never been duplicated in all history. More than a hundred and fifty thousand souls were banked up behind the Cherokee-Kansas line and a thinner wave had assembled on the Oklahoma side, where the barrier would be lowered at the same hour as that along the northern edge.

"And six months ago I was thinking it would take years to settle it," Carver said. "There's twelve thousand square miles in the unowned lands—and within four hours from the time the pistol cracks she'll be settled solid; every foot of ground staked and tenanted, right down to the last odd scrap."

Bart Lassiter joined them as they rode along behind the line. Every sort of conveyance the West has ever seen was represented. Hundreds of canvas-covered wagons were stationed along the front ranks of the mob, their owners having camped there for days, in frequent instances for months, to make certain of holding a place in the forefront of the run. Buckboards and lumbering farm wagons, top buggies and family carriages, shining runabouts, with here and there a racing cart, the slender, high-strung horse between the shafts fretting restlessly for the start. Saddle horses of every conceivable size and color. Scores of Kentucky thoroughbreds had been shipped in to make the run and even now, two hours before the start, their riders were maneuvering for favorable positions as formerly they had jockeyed at the wire.

Individuals reacted differently to the strain of waiting. Some genial souls called encouragement to others and optimistically predicted that there would be claims for all as they motioned some anxious newcomer in the rear to some gap nearer the front. Others glared suspiciously at all about them and resented every shift of their neighbors lest the movement provide space for another hopeful soul. Many men seemed anxious and careworn. Most of these had families and the next few hours would mean much to

them, their every hope based upon staking out a claim. Some feverishly discussed their chances while others were quite stolid; many were boastful, announcing for the benefit of all within earshot that they knew exactly the best piece of ground in the Strip and would beat all others to the spot. One woman called out hysterically to a friend some yards away as the three riders passed behind her,

“Have your man stake the claim next to ours,” she screeched. “Then we can neighbor back and forth. Watch now and pull right in behind us,” she urged, as if the start were but two seconds off instead of as many hours. “Don’t let any one wedge in between.”

There were already a half-dozen vehicles in between and their occupants fidgeted irritably under the constant scourge of her insistent screech.

One ample soul fanned her infant while answering the questions showered upon her by the rest of her brood, smiling meanwhile at all who caught her eye and occasionally dropping a word of good cheer to the tall lean man who occupied the seat beside her, his eyes roving moodily off across the burned and blackened area of the promised land. A meek little woman near by cried quietly while her man awkwardly sought to dissuade her, speaking gruffly in his concern over this unforeseen situation.

“Close up it sounds like a flock of chattering magpies,” said Carver. “And from a distance it sounds like the everlasting blat of a band of sheep. Whatever do you suppose brought all this swarm together?”

“The need that every human feels,” Molly answered. “The urge to have a home.”

She had pulled up her horse and Carver, following the direction of her gaze, saw an old couple on the seat of a wagon on the very front of the line. The man’s beard was white and a ragged fringe of white hair showed beneath his battered hat; one of the pioneers who had helped hew out homes in the West for others but who had neglected to retain one for himself. For a year old Judd Armstrong had been camped at various points along the line and Caldwell had come to know him. The little old lady beside him was hatless, her hair drawn tightly back from her brows and twisted in a scanty knot behind, the blistering sun falling full upon her wrinkled, weather-beaten face. She gazed serenely forth upon the restless horde of humanity around

her, undisturbed by the nearness of the hour which would determine whether at last she should have a home after having been deprived of one for all these many years. Life had handed her many reverses but she had faced them all with that same serenity, confident that old Judd would see her through.

“Is there any chance for them?” the girl anxiously inquired.

Carver shook his head doubtfully as he studied the two patient, bony horses that were destined to carry the ancient couple into the wild scramble of the most desperate stampede of the century.

“Not much, I’m fearing,” he returned. “This will be one awful tangle, with every man for himself. Poor old souls; they oughtn’t to go into it with that worn-out team.”

He turned to Molly and she was looking up at him, in her eyes that same expression which, at that first meeting, had impressed him with the thought that she was in grave need of something.

“Don’t look at me like that, Honey,” he said. “Not with folks looking on. I might lose my head and forget there was any one around. Maybe they’ll find a scrap of ground that the rest have run over without noticing. We’ll hope it transpires that way, won’t we?”

She nodded without speaking and they rode on down the line. A little knot of horsemen appeared some distance out across the blackened landscape, their progress marked by puffs of fine black ashes and tossed aloft by their horses’ hoofs.

“Cavalry patrol bringing out some sooner they’ve picked up,” Carver stated, as he watched the group approach. “There’s likely two hundred odd hiding out down there to take their pick of the claims when the run sets in.”

All through the preceding night there had been irregular spurts of rifle shots at various points along the line as troopers opened up on sooners that had watched their chance to slip through the cordon of guards and make a run for it.

“Did you hear the shooting last night?” she asked, and Carver nodded.

“Tumbleweeds drifting through,” he said. “Most of them urged on just for the love of taking chances—others on the chance of making a few dollars

by selling out.”

“Are there many like that?” she asked. “I mean ones who are doing it for the sake of a few dollars instead of with the idea of living on their claims.”

“Thousands,” Carver testified. “Every puncher that ever rode in the Strip will stake a claim and there’s not one out of ten that would live on the place a week. Most of them are going in for the sport of making the run.”

“And they’ll stake the best tracts,” she said.

“They will,” Carver agreed. “They know the country and are equipped to get there first. But there’s such a scattering few compared to the size of the country that their filings all combined won’t make a pin-prick on the map.”

“And where will you file?” she inquired.

“The Half Diamond H,” he said. “That’s my destination. Every ranch down there stands just as she was left when the cowmen vacated the Strip. Owners are privileged to move their improvements off but they’re mostly sod buildings. The parties filing on them will be saved the trouble and expense of erecting new sod huts.”

“But there’s a frame house on the Half Diamond H,” she said.

“Four rooms—the only one in this end of the Strip,” he returned. “Old Nate said he couldn’t move it off with any profit and that whoever staked it wouldn’t likely offer any sum to speak of, so it was mine if only I’d stake the place myself.”

“But won’t all the boys that used to ride that country be heading for that same spot?” she asked.

“The old home-ranch sites will be the plums,” he admitted. “They’re located in good country and all the peelers will line out for them. If one of the boys beats me to it, I’ll give him a hundred to move on and stake the next. The Half Diamond H sets in twenty sections of rich bottom land in the Cabin Creek valley. There’ll likely be thirty or more old friends of mine head right into that bottom to file, and I can buy the big part of them out. They’ll sell to the first man who appears and puts in a bid. That will be me.”

“You’ve found one customer now,” Bart announced. “You can buy me out cheap.”

“Pick your places in the line and hold them,” Molly urged. “You’ll have a bad start otherwise.”

“Plenty of time,” Carver said. “We couldn’t get into the front rank or anywhere near it, so I’d as soon start from behind. A fifty-yard handicap won’t matter much in a long pull. Those thoroughbreds will stretch out in the lead for the first couple of miles and give their riders a chance to stake, but they wouldn’t last on a long hard drag. One of them would run my horse off his feet in the first three miles and mine would kill him off in the next ten or twelve. You notice the boys aren’t much concerned over places,” and he motioned toward an irregular string of riders well back of the congested throng banked up along the Cherokee-Kansas line.

All the old-time cowhands of the Strip were prowling here and there, inspecting those who were so soon to swarm in and take over their old stamping ground.

The crowd tightened as the hour approached, squeezing a few feet toward the front as if every inch in the direction of their goal would count for much in the final frenzied spurt of the get-away. Carver looked at his watch and snapped it shut.

“Five minutes,” he announced. “You follow along to the Half Diamond H if you lose us, Molly. I’ve got a food cache there.”

They pulled up their horses, having returned to the point of their original stand. Judd Armstrong seemed never to have shifted in his seat and the emaciated horses drooped contentedly, unmindful of the sudden tenseness that gripped all those around. The more high-strung horses sensed it and fidgeted nervously. The ample soul still mothered her infant and smiled while her man sat as stolidly as before, gazing somberly out across the blackened waste that stretched out ahead. The troopers had ceased patrolling the line and now sat their horses at half-mile intervals and faced the eager horde they had held in check for so long a time. The hysterical lady cut short a screech of advice to her neighbor four rigs away as the strains of a bugle sounded faintly from afar, penetrating the buzz of conversation and silencing it. A second note, far to the westward, joined the first and in a space of two seconds the clear ringing strains of the bugles pealed the same message along a front of two hundred miles.

There was a sudden tense hush, the troopers sitting rigidly in their saddles. As the last notes died away each soldier fired a single shot, and with a tremendous sullen roar the most spectacular run of all time was off to a running start.

VIII

A SLENDER thoroughbred leaped forward with the shots, his rider crouched low along his neck. Carver had a brief glimpse of hundreds of saddle horses fanning ahead of the main bulk of the stampede. Then his view was cut off by the dense fog of black ashes churned aloft.

“Look!” he exclaimed.

In either direction, as far as the eye could reach this murky cloud was sweeping forward. As it eddied and curled he could catch glimpses of the swaying gray tops of covered wagons and the glittering flash of newly painted runabouts. It seemed that a black cyclone belt a hundred yards in width had sucked up thousands of strange land craft and churned them across the prairies over an endless front.

Men shouted frenzied encouragement to their horses, their voices lifting above the rattle of the laboring vehicles. Not infrequently there sounded a splintering crash as some outfit was piled up in a wreck or the sudden smash and subsequent groaning screech which announced that two rival wagons had collided and locked hubs. A shrill cowboy yelp of exultation rose high above the uproar.

“Now we can break through,” Carver stated, and they urged their horses into a lope and passed the wagons that lagged behind, darting past others as opportunity offered.

The girl saw humanity in the raw, the bars of convention lowered by excitement and each man’s true nature standing forth undisguised. She was treated to kaleidoscopic flashes of human avarice and sublime generosity. A heavy wagon came to grief as its owner lashed his horses over the four-foot bank of a dry wash. The tongue was stabbed into the earth, buckled and snapped, piling the outfit up in a tangled heap in the bottom of the dry gulch. A man in a light rig cheered the accident as he made a safe crossing of the wash at a point some few feet away where the banks were less precipitate, shrieking a derisive farewell to the unfortunates as he passed. A chap-clad rider set his horse back on its haunches and dismounted.

“Crawl him, stranger,” he invited. “Give that pony his head and he’ll take you where you’re aiming for. I’ll help the woman straighten out this tangle.”

The man boarded the horse and darted off, leaving the cowboy to care for his wife and children and the struggling team.

Just beyond the wreck a man had leaped from a wagon to plant his flag while his wife held the horses. A single man had unloaded from a runabout with similar intent and as the girl passed them the two were fighting savagely, endeavoring through the medium of physical combat to settle the question as to which one had first placed foot upon the ground. While the wife and family of the one gazed upon the scene from the wagon, the horse of the other was running away with the runabout which was lurching perilously across the dips and sways of the prairie.

They passed old Judd Armstrong, his bony horses surging on at an awkward gallop. The little old lady gripped a staff topped by a white scrap of cloth with which she intended to flag the first scrap of ground they crossed where she could see no others out ahead. But always there was a swarm of scurrying shapes far out in the lead.

Just as Carver pulled out ahead of the last fringe of wheeled conveyances the girl heard again the shrill exultant cowboy yelp and saw the man riding just ahead of them. He was a big fellow with a week-old growth of beard, mounted on a rangy bay horse that wore a Texas brand. He had given the animal its head and was half-turned in the saddle, looking back at the sea of lurching, swaying vehicles. His mouth was extended in a grin and he waved his gun aloft.

“Charge!” he bellowed. “Charge!”

He emptied his gun in the air and waved them on as if he were leading the line into some desperate affray. He bawled facetious commands to all within earshot. His noisy clamor reminded the girl of Noll, and she hated the big Texan from the instant her mind conceived this fancied resemblance. She herself read the pathos that was written in every movement of the mad scramble, the hungry rush of the homeless; and she told herself that the noisy horseman viewed it in the light of a screaming comedy.

A wave of ground cut off her view toward the east, but as the slight crest flattened to merge gradually with the surrounding prairie the objects on the far side reappeared, at first merely the heads and shoulders of those who traveled a parallel course, then their bodies, then the mounts that carried them. One form seemed to progress smoothly but there was a queer crouch to the head and shoulders. As more of him rose into her level of vision, she saw that he rode an antiquated bicycle with one huge wheel in front and a tiny one trailing in its wake. The man was hunched over the handle bars and was pedalling desperately, a grotesque figure with coattails streaming out behind, a water bottle slung across his back with the shaft of a small flag thrust through the strap.

“Oh, Don! Bart! Do look,” Molly implored. She was laughing in sheer delight yet she was conscious of a swift, hot resentment when the big Texan raised his voice in a joyous whoop as he sighted the strange apparition and gave chase. He veered his mount to the left, unbuckling his rope strap, and as the animal stretched into a full run behind the speeding cyclist he shook out a few coils of his rope and whirled his loop aloft. He did not make his throw but contented himself with giving voice to a wild yelp with every jump of his horse. His victim turned to cast an apprehensive glance over his shoulder and the front wheel collided with a dog mound and threw him. Even in the act of rising he thrust his flag into the ground and staked his claim, the big fellow cheering him as he passed.

Hundreds of riders were scattered out in the lead of the line of oncoming vehicles that was strung out as far as the girl could see toward the east and west. Whenever one horseman attained the lead in his own particular section of the field he flung from the saddle and planted his flag. Scattered at intervals through it all Molly could make out moving specks of color—bright reds and purples, brilliant orange and softer effects of lavender—and she knew these for the gaudy regalia of the cowboys. These were not dismounting but riding steadily ahead, each with some particular destination in mind, saving their horses for the last wild spurt. Little by little the field thinned out. Some few of the cowmen had dashed suddenly ahead to stake their claims in some of the better valleys but the majority of them were still holding on. They swept down into a wide brown valley untouched by the fire and three times during the crossing of it Molly saw riders dismount far ahead—too far; and she knew that these were sooners who had

been hiding in the unowned lands and who had now put in an appearance as the peak of the run came in sight.

The Texan had lost ground in his chase of the cyclist but eventually Molly heard him off to the right and rear, his big voice raised in a song which she thought fitted him exactly.

“I’m a wild, wild rider
And an awful mean fighter,
I’m a rough, tough, callous son-of-a-gun.
I murder some folks quick
And I kill off others slow,
That’s the only way I ever take my fun.

“I’m a devil with my quirt,
A terror with my knife,
A fearsome fiend when out for pistol practice,
I wield a wicked spur,
Twirl a nasty ten-foot loop
And curry out my red mane with a cactus.”

When they had covered some ten miles Molly noted that the brilliant specks were forging steadily forward through the scattered ranks of their more somberly clad fellows and gradually attaining the very fore fringe of the run. Another two miles and the bright dots were out in the lead and it was apparent that many were converging upon the line which Carver followed toward a distant dip in the landscape. Every cowhand was up on a horse that had proved its speed and endurance in many a hard round-up circle. The clatter and crash of vehicles had died out behind. Carver glanced both ways along the line.

“The boys are drawing in toward the Cabin Creek bottoms,” he called to Molly. “Best land in the Strip. There’ll be many a friend of mine in the lot. Here’s hoping they stake near the old home ranch.”

He glanced along the scattered line again as they rode across a low wave of the prairie and the broad bottoms of Cabin Creek opened out below them, spared by the fire and carpeted with grass that was only now turning brown.

“Now!” he said. “Run for it!” and they let their horses out and raced down the gentle pitch.

Carver kept his eye on the low point of a ridge that thrust its nose into the edge of the valley three miles below. Just beyond that shoulder the Curl Fork of Cabin Creek joined in and the buildings of the Half Diamond H nestled under the hill. Below that point the bottoms widened out to twice the width of the part they now traversed. More than thirty riders were strung out across the level floor of the valley, careening down both sides of the creek.

Some dropped from the saddle and drove their flags, but a dozen or more on Carver’s side of the creek held straight on. This last spurt was a contest between seasoned riders and tried horses. Carver urged his mount and the animal drew on his last reserve of speed. Molly felt the smooth play of powerful muscle sweeping her on toward the goal as her own horse, fresher from having carried less weight over the long miles, ran nose to nose with Carver’s. Bart was twenty feet to their left and as far in the rear.

As they thundered down upon a tiny spring-creek flowing on the near side of the shoulder Carver waved a hand.

“Up there!” he shouted to Bart. “Flag it!”

Bart whirled up the course of the spring-creek and the girl wheeled her horse to follow him while Carver held the straight course for the low jutting point. As Bart and Molly turned aside, the big Texan dropped from his horse a hundred yards down the little stream and planted his flag.

A dozen riders were almost abreast of Carver as he rounded the point and flung from his saddle in the ranch yard of the Half Diamond H. He had staked the old home ranch.

He turned to watch the rest flash past and recognized a big paint horse as a circle mount of Bradshaw’s string. The group that had clung so persistently instead of staking farther up the valley was composed of old friends to a man. He picked them one by one as they fanned out through the widening bottoms and staked them from the creek to the valley slope for two solid miles below the Half Diamond H.

“Box T riders or former Half Diamond hands,” he said. “Every man. I needn’t have put on such a strenuous last spurt if I’d only looked back to

see who made up the bunch that was crowding me so hard on the final lap. I see old Joe Hinman's hand in this."

He turned at a sound behind him. A man stood calmly by a lathered horse some thirty yards back among the sod outbuildings.

"You'll have to get off," the stranger announced. "This is my ground. I staked it first."

Carver stared for a brief space, unable to grasp the fact that another had rounded the point ahead of him. He certainly had not arrived since Carver reached the spot so he must have been there first. Then Carver's comprehension cleared and he led his horse back toward the other.

"Looks like you had beat me here for a fact," he said.

"By three minutes," the stranger stated.

Carver glanced at the man's horse. The animal's shoulders and flanks were lathered white, as if from a long hard run, but its breathing was smooth and regular and its sides were steady. He glanced at his own mount with its heaving flanks; listened to the animal's heavy labored breathing.

"Beat you by three minutes," the stranger reasserted.

Carver touched the lathered horse with one forefinger, carried the member to his mouth, then spat the soapsuds out.

"Yes, you beat me by three days," he said. "Which is just a shade too broad a margin. Now you step up into the middle of that pony, and start working up a real sweat on him while you're getting away from here."

The sooner faced him defiantly, a black scowl on his countenance, but he read the same purpose in Carver's eyes that Freel had discovered in them on the day the marshal had offered to make Molly Lassiter respectable.

"I'll sell out for five hundred," he offered.

"In less than that many seconds you'll be headed for some place where money can't follow you," Carver returned evenly. "You climb that horse and amble."

The sooner swung to the saddle and rode off toward the eastern slope of the valley. It would have availed him little to head down country, for already

the bottoms were filled with riders. Those left behind in the last mad dash for the Half Diamond H were now pouring through in hundreds. The side hills that flanked the western edge of the valley were being staked and other riders streamed along their crests.

When Carver looked again he saw that the sooner had planted his flag a half-mile up the little spring-creek that trickled past the doors of the ranch house and on down to the parent stream, a mate for the one that flowed on the far side of the ridge where he had sent Bart Lassiter. The sooner's present holding would be just across the ridge from Bart. But Carver was not concerned over the future actions of the man. If he succeeded in holding a piece of ground which should have gone to some legitimate stamper it was no affair of his, Carver reflected, and dismissed it from his mind. For thirty minutes the home seekers continued to pour through in gradually diminishing numbers. Most of the wheeled conveyances had dropped out, their owners either having won their goal at some point farther back or given up the race, but a few buckboards rattled past in the wake of the last straggling horseman.

Then Carver turned to the work in hand. Those in his immediate vicinity who had made the run for the purpose of realizing a quick turn on their relinquishments were the ones he sought. The cowhands were the logical parties to interview.

Bradshaw was sprawled comfortably on the ground on the next quarter section below.

"Old Joe is responsible for this," Carver said, as he rode down toward his friend. "He sorted out the Box T boys that were going to make a filing just to sell it, and such of the old Half Diamond H boys as he could locate. This way it helps us all. They find me a ready buyer and I find them ready sellers, roosting on the very ground I want. Then, too, Joe was thinking of old Nate. Younger lived here for twenty years. With me on the Half Diamond H he can come down and find at least a part of it the same."

Bradshaw grinned as Carver neared him.

"What's your offer?" he demanded. "Speak in big figures now or I'll stay here and farm this piece myself. Joe tipped us off to swarm in and settle in a flock just below Nate's old home ranch. Well, what do you bid?"

“Two hundred and fifty,” Carver stated.

“Too much—but I’ll take it,” said Bradshaw. “Give me a commission and I’ll buy the others out for you anywheres from fifty to a hundred.”

“Two hundred and fifty is my flat price to every man,” said Carver. “That’s a good fair figure for both sides. They’ll have to take my notes for it, dated eighteen months ahead at six per cent. They can either wait and live off the interest meantime or discount them at the bank—provided they can locate a banker who’s optimistic enough to make an investment in my paper.”

“I’ll ride along with you to see the others,” Bradshaw volunteered.

“You all can go and make your filings in the next few days,” Carver said. “Then I’ll furnish each of you with scrip to lay on your quarter. You can deed it over to me when you get your patent.”

Two hours later Carver rode across the low ridge in search of Molly Lassiter.

“Ever see a prettier nook than this?” he asked, as he dismounted. “I told Bart I had just the place picked out for you and him.”

A few trees, somewhat gnarled and stunted—but every such growth is noteworthy in a treeless country, and the black-jack belt did not extend so far north as this—sprouted in a little dent in the base of the ridge, a level floor of rich ground spread out before them. The little creek, fed by side-hill springs, purred merrily along the foot of the slope.

“It’s wonderful here,” she agreed. “I’d love it if only Bart would stay here and prove up instead of selling out.”

“Maybe we can exert a little pressure and make Bart come to his milk,” said Carver. “This is too good a place to sell out offhand. Wait till I scour a few layers of ashes off my face and we’ll ride up to the ridge so you can see my layout.”

His face was still black from the ride across the burned areas and he repaired to the little creek and splashed face and hands in the clear cold water. The big Texan had come part way up the creek to converse with Bart and his voice carried to Carver as he made boastful comments upon his own farsightedness.

“I don’t know this country but I staked as good a piece as there is in the whole twelve thousand miles. That’s me! Know how? I’ll follow the leather-legs, I decides; the peelers that has rode this stretch. They’ll know where the best ground is. I’ll trail along and be there, for there ain’t no man can outride me when I’m up on this bay horse.”

His voice followed them as Carver and Molly rode up the gentle slope of the ridge and the girl hoped she would not have this man as a neighbor for long. His bluster made her feel that Noll was near at hand. There had been a clean break in their relations since Carver’s recent turn in inexpensive beef, and Noll had asserted that Bart was no relative of his. If only he could convince others of that, she reflected, she would be far better satisfied.

“See,” Carver said, pointing as they topped the ridge. “I’ve bargained for eleven quarters besides my own. That gives me eighteen hundred acres in one block. I’ll leave that first piece in front of the house in grass, just like it is now. Then when old Nate comes down to visit round with me it will seem almost like the same old place he’s lived in for the past twenty years or more.”

“I’m glad, Don,” she said. “But how can you be sure they’ll deed the land over to you after they get their patents. There’s no possible way to pin a man down to turn over his homestead to another.”

“Not a way in the world,” he conceded. “They could keep their place or sell it, once the patent’s issued, and I couldn’t lift a hand. I’d counted on losing maybe a quarter or two that very way. But not now; not with those Box T and Half Diamond H boys on the other end of it. Wouldn’t one of ’em throw me if he was offered ten times the price.”

She hoped that he had gauged them rightly but her experience had taught her to doubt this class of drifting, homeless men. She had met a number of such during the last few years of drifting with Bart, mainly the associates of the two elder half-brothers, and she had come to believe that trustworthiness was an infrequent trait among their kind.

Bart mounted the ridge and joined them.

“What’s offered for my farm?” he greeted.

“I’m not buying on the far side of the ridge,” said Carver. “Only down below.”

“Then I’ll present it to you,” Bart returned cheerfully. “By the way, you’re owing me three hundred or thereabouts on our little flier in steers. If you could let me have a piece of it I’ll trickle into Caldwell in the morning. I’ve got pressing business there in town.”

“I’ve invested that money for you,” Carver said. “I’ve reserved scrip to cover your hundred and sixty acres. I’ll turn it over to you when you make your filing. They’ll issue a patent and then you and Molly will have some place to come back to whenever you get weary of moving round. You’ll be owing me a little extra on the cost of the scrip but you can pay it off whenever it comes handy in the future.”

Bart sighed gustily.

“I always did lean towards owning a farm that I didn’t have to live on,” he stated, “and you’ve showed me the way. You always did treat me all right, Don, and I thank you. As long as I already owe you money I’d as leave owe you more. I’ll remember it better that way. Lend me twenty. I suspect the boys will be looking at their hole cards somewhat in your bunk house this evening and I’m always curious to see which one of the fifty-two cards each man has got in the hole.”

Carver laughed and handed him the money.

“We’ll turn the house over to Molly to-night,” he said. “I’ve got a tent cached in the bunk house that you can pitch over there on your place tomorrow.”

The girl rested her hand on Carver’s arm as Bart left them.

“That was a wonderful thing to do for Bart,” she said. “Oh, Don! Don’t you suppose he’ll stay there and keep it?”

“Sure, Honey,” Carver assured her. “You can’t clamp down on a range colt too sudden and put him on the picket. We’ll keep an eye on him and gradually decrease his range. Don’t you fret about Bart.”

He was peering off across the country and she followed the direction of his gaze. A wagon had just crawled into view on the ridge on the far side of Bart’s filing and near the upper edge of it. The last rays of the setting sun caught the tattered canvas top. Even at a distance of three quarters of a mile

both Carver and the girl recognized the outfit as old Judd Armstrong's, the horses moving slowly, their heads drooping dejectedly.

"You wait here, Molly," Carver said. "I'll ride over and help them pick a good place to camp. Then we'll stir up a bite for the boys to eat."

He intercepted the outfit as it pulled into the bottoms. The little old lady still clasped the staff of her flag.

"Staked your piece yet, Uncle?" Carver greeted.

"Not yet," said old Judd. "We'll likely locate one to-morrow. These horses is about played out and we'll have to make camp here, I reckon."

The woman nodded serene agreement. Ever since she could remember they had been making camp.

"Maybe they can make one more drag of it over this next rise," Carver said. "It's not much of a pull. There's a nice little creek over across and a ripping good piece of ground that hasn't been staked. They all run clear on across it and never noticed. It's the next piece up the creek from mine."

He uncoiled his rope and made it fast to the wagon tongue, took a short snub on his saddle horn and pulled in ahead of Judd's weary team. The horse buckled sturdily to his task and they made the crossing.

"You make camp right here on this creek," Carver instructed. "This is your claim. I'll see you to-morrow, Aunty."

"Thank you, son," she said. "You've done us a big favor. This is better ground than any we've crossed through. I was beginning to be just a mite worried for fear we mightn't find a piece. It was real nice of you to tell us."

Carver turned his horse up towards where the sooner reclined on the creek bank.

"I instructed you to high-tail it out of the country," he announced. "So you put forth from here sudden."

"Do you imagine you're in charge of this whole territory?" the man demanded.

"I was once," said Carver. "Foreman of the old Half Diamond H. In lack of any better authority I've elected myself temporary head of the district so I

can choose my own neighbors. I don't pick you."

He handed the man a ten-dollar bill.

"I'm sorry to see your efforts wasted but maybe you can drown your grief in that," he said. "There's not a chance in the world for you to make your claim stick—and I'll see that you come to a bad end if you try to file. You can use your own judgment about when you flit from these parts."

He turned back toward Molly but the girl had gone down her own side of the ridge as a second wagon rolled into the bottoms and halted on the upper end of the Texan's filing. The outfit of the ample soul and her solemn spouse had been wrecked in the early stages of the run and the repairs had required too great a time to permit of their overtaking the other stampedeers. As Molly joined them she heard the voice of the Texan lifted in his war song as he returned from a boastful visit with some near-by homesteader.

"I'm a wild, wild rider
And an awful mean fighter——"

The song ceased abruptly as he spied the wagon on his claim and headed his mount for the spot. He leaned from his saddle and inspected the ample lady who still smiled through the grotesque mask of black ashes that had settled on her face, then let his eyes rove over the children in the depths of the wagon.

"This your claim?" the solemn man inquired. "We just want to wash up a bit and camp here for the night."

Molly waited for the abrupt refusal. The Texan gazed helplessly from one to another of the group.

"Mean to say you didn't get a piece of your own with all this stretch to choose from?" he demanded.

The man shook his head.

"Have this one," the Texan invited. "I've been wondering what the hell I'd do with it."

The woman still smiled but a tear squeezed through and trickled down, leaving a trail in the grime of ashes on her face. She leaned over the infant in her arms to hide the evidence of weakness, speaking a word to the child.

The Texan shifted uneasily in the saddle and Molly saw him in a new guise; not as a big ruffian but as an overgrown, kindly boy, helpless to extricate himself from this trying situation. A happy thought struck him.

“I’d cry too if I thought I had to live here,” he said. “I’d trade this whole damn country for a square rod in Texas,” and he headed his horse back down the creek.

Hours later Molly Lassiter reclined on Carver’s camp bed which he had spread for her on the floor of the Half Diamond H ranch house.

The Cherokee Run was over. At noon there had been a vast tract of virgin territory, twelve thousand square miles of untenanted lands,—and within four hours of that first bugle call it had been settled, staked to the last square inch. The wildest stampede that the world had ever seen was a matter of history.

A variety of sounds floated through the open window. The long, many-roomed bunk house in rear of the frame building was crowded to overflowing. All the cowhands for miles around had followed the old custom of dropping in at the nearest ranch when caught out on the range at night, certain of finding a welcome and a feed. They had feasted unreservedly upon Carver’s food cache which he had planted at the ranch weeks before.

Molly heard two voices raised in the chant of the tumbleweeds as two belated riders approached. Always these men sang when they rode at night, having acquired the habit on many a weary circuit of the herd, singing to quiet their charges on the bed ground.

The big Texan’s voice carried to her from the bunk house.

“Now when I play poker with strangers I first state the rules,” he announced. “The way stud poker is dealt is to hand out the top card first and the next one next, and so on down to the bottom card which comes off last and is not to be removed prior to its turn.”

“It’s nice to have some one who actually knows how the rules run,” another voice answered. “If any little squabble crops up we won’t have to debate the question but just ask you and find out for sure.”

“I’ll settle all arguments,” the Texan volunteered. “You’ll note that I’ve stuck my knife here in the table and I’ll certainly remonstrate with the first party that introduces any irregularities.”

The two newcomers rode into the yard, unsaddled and turned their horses into the corral. One of them answered the questions regarding his claim as he appeared in the door of the bunk house.

“I quit it,” he announced. “A wagon came dragging along an hour ago with a wild woman aboard. Leastways she was talking wild—and frequent. They’d locked hubs and piled up on the start. I presented them my place. I hadn’t no use for it. All my life it’s been all I could do to scratch a living off the face of the whole outdoors, so there wasn’t a chance for me to scrape a income off one little quarter section anyway.”

“I had the piece next to his,” the second cowboy stated. “But the other set of locked hubs came dangling along. The woman ahead would screech back that the tangle was all her fault from keeping too close, and wouldn’t the other party be sure to stake the next piece to theirs so’s they could neighbor back and forth. Just to quiet her down I handed mine to the parties she was so hell-bent to neighbor with. I was afraid she’d have a headache in the morning if she kept at it; and besides I couldn’t lay out there and listen to that gabble.”

Molly burrowed her face deep in the pillow. During the day she had seen much that was gold beneath that rusty exterior of the tumbleweeds and much that was dross beneath the golden surface of many of the pumpkins. These men who rallied to Carver, drifters all, were a different breed of drifters than those she had met as friends of her two half-brothers. And now the tumbleweeds had been cast out of their domain.

“Hand me them cards,” said the big Texan. “Now we’ll have an honest deal. I’d trust myself further than any other man I ever met.”

IX

CARVER looked from the window of the Half Diamond H. All down the valley were twinkling lights which denoted the presence of the homes of early-rising settlers. Off to the east and west there were lights resting at higher levels, these from cabins on side-hill claims on the rising flanks of the valley. As the morning glow flooded across the country the lights paled and the habitations themselves appeared, first as darker blots emerging gradually from the surrounding obscurity, then in distinct outline as the shadows lifted. Some were tiny frame cabins, the most of them unpainted. The greater number were sod huts, some few merely dugouts. Poor habitations these, no doubt, yet they were homes and as circumstances permitted they would be replaced by more pretentious ones.

The virgin stretches of the Cherokee lands had been transformed into a solid agricultural community overnight. The run was not quite two months past, yet even the style of expression, the customs of speech and the topic of general conversation had experienced an alteration as decided as the physical changes in the countryside. No more the heated arguments over the relative merits of two cow horses but instead a less spirited discussion concerning the desirability of Berkshires over Durco-Jerseys. The never-ending controversy as to the superiority of the center-fire as against the three-quarters' rig had been supplanted by an interchange of advice as to the seeding of crops and the proper care of hogs. Where but a few weeks back the bronc fighters had met to exchange bits of range gossip, housewives now visited back and forth to exchange recipes for making jell.

Conditions had favored late plowing, a fortunate circumstance in view of the late date of the opening, and a part of the settlers had made every effort to seed a certain acreage to winter wheat. Carver had not wasted a day in his endeavor to get a portion of his holdings broken out and in shape to produce the following season. Circumstances had favored him. Cash was a rare commodity among the majority of the homesteaders and in lieu of it they frequently effected an exchange of work. The spirit of coöperation was large. Homesteads must be fenced and materials were expensive. Many

could not afford such a drain upon their finances until such time as they could harvest a crop.

Carver had supplied needy neighbors with posts and wire from the great store he had salvaged from the line fences of the old Half Diamond H, requiring of each man in return that he should start at once upon the task of plowing, harrowing and drilling in winter wheat on a certain specified acreage of Carver's holdings. Most of the settlers had implements of a sort. All had plows, some few possessed drills, and what one man lacked he borrowed from his neighbor, the favor to be later returned in like service or in labor when occasion should offer and so all were enabled to perform the tasks which Carver required of them in return for their fencing. He now had eight hundred acres seeded to winter wheat, planted somewhat later than was customary but with an even chance of making a crop.

The transformation of the unowned lands had been sweeping and complete. One now rode between fences along section lines that would soon become graded highways. Towns were springing up with mushroom suddenness and country schoolhouses were in the course of construction at many points. A picture of rural activity stretched away on all sides, yet through it all a vague whisper of unrest persisted, as if the spirit of the old days refused to be cast off so entirely.

The cowhands who had ridden the Strip continued to ride it. Always there had been a surplus of riders during the winter months and these jobless ones had grub-lined from one ranch to the next, certain of finding a welcome and a meal at any spot where circumstance or fancy led them. They continued to act upon this supposition, sanctioned by long years of custom, and the settlers looked with disfavor upon these rovers who dropped in at their cabins and expected to be fed as a matter of course, deeming them parasites upon the community, drones who were unwilling to work and produce; for the cowhands scornfully refused to milk or follow a plow in return for their board. From the first they had swarmed in upon Carver, overjoyed at finding one man of their own sort among all this clutter of aliens,—one man who understood.

Carver had fed all comers, knowing that while they would neither milk nor plow, they would willingly turn their hands to any task which had been part of their regular duties with a cow outfit in the old range days. They had

stretched every foot of his fences. When there was freighting to be done there were always willing volunteers. Some he had sent north to Hinman's range to bring back the fifty head of horses he had purchased before the opening. The boys had gentled these green colts and taught them the feel of harness. Always there were a dozen grub-liners stopping at the bunk house overnight. Every evening Carver recited the tasks of the following day and the men apportioned these chores among themselves through the medium of freeze-out poker. Carver had never cooked a meal or washed a dish since the day of the run.

He now thrust his head from the back door.

"Ho!" he called. "Roll out!"

There were sounds of instant activity from the bunk house.

Carver tapped on a door in the ranch house.

"Coming, son," Nate Younger answered. "Be with you right off."

The original owner of the Half Diamond H had come down to view it under the new conditions. He had found his old room fitted up in much the same fashion as when he had occupied it in the past. A hundred acres of grassland, untouched by the plow, spread out before the house.

"Don't find things so much changed right in the immediate foreground, do you, Nate?" Carver asked.

"Not much," said Nate. "Looks pretty much the same. It is real white of you to reserve the old man's room for him."

He listened to the drone of voices from the bunk house.

"Must be considerable of a drain on your finances to feed all the grub-liners these days," he said.

"Somewhat," Carver admitted. "But I somehow can't gather courage to shut them off. Half of them are still conversing about when work opens up in the spring, same as they've always talked in winters. They don't realize yet that spring work won't ever open up for their sort again."

After breakfasting Carver rode up the trail that threaded the low saddle in the ridge back of the house and dropped down to the Lassiters' claim on the far side of it. Bart, fired by the example of those around him, had worked

steadily since the day of the run. Cowhands stopping at Carver's place had helped Bart fence his claim. With two of Carver's teams he had broken out a forty-acre piece and seeded it to winter wheat. Through the medium of the nightly poker game in the bunk house of the Half Diamond H he had accumulated enough cash to purchase the materials for the construction of a three-room frame house to supplement the sod hut in which he and Molly had been living since the run. But now his enthusiasm had waned and Carver found him seated on a pile of new lumber, gazing moodily off across the country.

"I'm needing relaxation bad," Bart greeted. "Why, I wouldn't be able to find my way around Caldwell, it's been that long since I've been in town. Isn't it about time you're getting that hundred head of yearlings off Hinman's range and bringing them down here?"

"In a few days now," Carver admitted. "I'll be starting up after them before long."

"Why don't you send me?" Bart suggested.

"With you in charge they might increase too fast on the homeward way," said Carver.

"I'll guarantee not to arrive with one extra head over the specified number," Bart offered. "I'll go up and get them, just as a sort of favor in return for many a kind deed you've done for me."

"Not you," Carver declined. "Anyway, you've got all your lumber on the ground now and you want to stay on the job until you've built the house. I'll send over a few volunteers from the bunk house squad to help you throw it up."

"That lumber is too green to work up just yet," Bart objected. "I'll rest up in town till the sap quits flowing through those boards and they season up till a man can run a saw through 'em. The birds were singing in those very trees last week."

It was evident that Bart was bent upon having his vacation under any possible excuse.

"All right—go ahead and relax," said Carver. "Only don't be gone too long."

“I’ll be drifting over to Casa and see how the County Seat ruckus is coming on,” Bart decided. “I’ll report on the latest developments when I come back.”

A thriving town had come into being on the site of the box car which had once borne the name of Casa and which had been sacked and burned. A bank and a frame hotel, two general merchandise establishments, a hardware and implement concern, grocery stores, restaurants, saloons, two livery barns, a drug store, barber shop and pool hall, all glaringly new and mostly unpainted, made up the business district of Casa, which now numbered a population of four hundred souls. Various businesses were conducted in board-floored tents until such time as the proprietors could secure more permanent quarters.

Casa, by virtue of both population and location, had considered herself the logical choice for County Seat. The government appointee charged with such locations had listened and agreed, provided only that a personal bonus of one thousand dollars be tendered him along with the other arguments. Graft was open and flagrant in the early days of the Strip and communities as well as individuals paid the price for official favors. The citizens’ council, a volunteer body of Casa business men, had flatly refused and the locator had thereupon designated Oval Springs, a little camp some miles to the south as the legal center of county government. This move was destined to precipitate one of the bitter and enduring county-seat wars for which the West is famed. Casa was not alone in her troubles, for this was but one of three such controversies at various points in the Strip.

The railroad had backed Casa in the feud from the first. At the time of designation Oval Springs could boast neither a side track nor a station and the railroad had steadfastly refused to halt its trains. The citizens of Oval Springs had hastened to erect a large frame building to serve as a courthouse, a second to serve as county jail, this last edifice complete except for a few exterior touches and a coat of paint. The steel-framed cells were already installed and the jail was open for business. The trains still rolled through and eventually Oval Springs took matters into their own hands and elected to make that point the terminal from both ways by tearing up two hundred yards of track. A stock train had been piled in a gulch, a passenger train derailed. This last had constituted a case of obstructing the delivery of the United States mail and Carl Mattison, appointed deputy

marshal in the post from which Freel had resigned, had been sent in with a posse to straighten out the tangle.

Alf Wellman, who had staked his claim adjoining the present town site of Oval Springs, had been appointed sheriff until such time as an election could be held. It was freely stated in Casa that the sheriff and his deputies declined to interfere with the lawless element that sought to destroy railroad property and so force the railroad company to halt its trains. The feud was destined to be bitter and sustained and it was slated that another fifteen years should pass before Casa should come into her own as the permanent seat of county affairs.

Two days after Bart's departure he rode up to the Half Diamond H at daylight.

"Just dropped by for breakfast and to report on the general situation," he informed. "I changed my mind after leaving the other day and dropped down to view the new county seat. Quite an alteration in those parts since the night you and me camped there during round-up without a house anywheres in sight. There's trouble brewing down there in quantities."

"Then how did you happen to leave?" Carver inquired.

"Last night some unknown parties staged a midnight battle with the marshal's posse that's guarding the relaid tracks, during which it's reported that one of the posse was killed and two others damaged. Under cover of this ruckus some others succeeded in blowing up the bridge just south of town and traffic is once more suspended."

"And which side were you on?" Carver asked.

"I couldn't hardly determine," Bart confessed. "I was maybe just a trifle lit."

"Being one of our leading lights in that respect," said Carver, "I expect maybe you were."

"As near as I can make out, I was on the side of the law," Bart stated. "Leastways I was in the powder squad that wrecked the bridge and the sheriff headed the party. My participation was accidental. I saw Wellman and another man easing out of town and I trailed them, arriving just as they touched off the charge, so you might say I acted the rôle of the passive

spectator. The whole town boiled out and we dispersed among the crowd. I was dead anxious to be lined up with law and order, but with the law on both sides I couldn't quite make out which one was proper, so I flitted."

"Any idea who led the fight against Mattison?" Carver asked.

"Not a guess—unless it was Freel," Bart denied. "He's Wellman's head deputy and it might have been him—only I can't somehow picture Freel as indulging in a fracas where other folks will be shooting back at him."

"There's quite a bunch of boys in the bunk house," Carver said. "Right after breakfast I'll send over a bunch to help you start the house."

"Right after breakfast I'll be riding toward Caldwell," said Bart. "In proportion to the way Oval Springs has grown, I'd judge that Caldwell would be bigger than London by now."

"Caldwell has about a fourth the population she had three months ago," Carver informed.

"I'd as leave see a town that's shrunk as one that has grown," Bart philosophically decided. "I'm not particular, and I'm bound to find it filled with new interests. Just two days; then I'll be back."

In the early evening Carver mounted the cow trail that threaded the low dip in the ridge between his place and Bart's claim. As he topped it he could see Molly coming up the hill from the cabin. They frequently met here for a brief chat in the evenings.

"You mustn't mind Bart's rambling off for a few days," he said, as the girl joined him. "He's stayed with it in good shape and it's only in the last week he's been restless. He'll be back on the job in a day or two."

He allowed his gaze to drift across the broad acreage of plowed ground in the bottoms,—his ground, seeded to winter wheat.

"Eight hundred acres seeded to wheat," he stated. "All put in by trading around. I've got considerable of a farm, but don't even own one plow of my own—nor a drill. The grub-liners put up my fences and broke all my horses to work. So far I've worried along without much of an outlay of cash; not one cent paid out for labor. But I'm in debt somewhat for seed wheat and provisions to feed the bunk house occupants that turn up every night."

He directed her gaze over the rich bottom land extending for five miles down the valley to a point where the little town of Alvin had come into being.

“The best land in this whole country,” he stated. “Every acre of it will bring from twelve to fifteen dollars the day a man gets his patent. I’ll buy it up piece by piece, a quarter at a time, as fast as any party wants to sell; mortgage a part of it to buy more and turn back every dollar that comes off of it into more land. Some day I’ll own all that lower valley with the Half Diamond H at the head of it so we can look out across it all from the house. I’ll follow the price up till it touches forty and then stop buying. Then there’ll come a day when we can stand there at the old ranch house and know that every acre between it and the flourishing city of Alvin will be worth a hundred dollars flat.”

As he sketched his plans she could vision thousands of acres of ripening grain waving in the bottoms; the huge new barns of the Half Diamond H groaning with hay and forage crops for feeding the hundreds of sleek thoroughbred cattle with which the place was stocked. But all that was a matter of the future and the present was sufficiently amazing in itself.

A few months back she had resided in an isolated line camp on Turkey Creek with no other habitation within a dozen miles. Now she was blocked in on all sides by neighbors; Mrs. Cranston, the ample lady who resided on the next claim below Molly’s,—and her husband was not really a gloomy soul. He had merely been over anxious during the days preceding the run, harassed by a haunting dread that he would not be successful in locating a home for his family. He was in reality a rather genial party, Molly had found. Then there was Mrs. Downing, the hysterical lady, who was not in the least hysterical but quite normal since Molly had nursed her through an illness brought on by the excitement of the stampede; the Lees, with whom Mrs. Downing had been so anxious to neighbor, had proved to be delightful neighbors indeed. There was Orkstrom, the big Dane whose wife toiled with him in the field; Arnold Crosby, fresh from school, who had brought his girl bride to share his little frame homestead shack; old Judd Armstrong and his serene little mate. The whole countryside for miles around was peopled with a motley assortment ranging from retired professional men to foreigners who spoke scarcely a word of understandable English.

“You told me once the sort of quiet home life you pined for most,” he said. “And I volunteered to set out in search of it. This is it, all round us, just as you pictured it to me on that day in Caldwell.”

“Yes,” she said. “This is it—exactly what I’ve always been wanting.”

She watched the smoke spirals rising from a hundred cabins; the stretches of black plowed ground enclosed by long lines of fence posts. Far down the valley the new buildings of Alvin showed as white spots in the waning light. The new schoolhouse in the bottoms was nearly completed, the school in which Molly was to teach; all these evidences of an old civilization fastening upon a raw new country and lending an air of permanency and peace.

“We’ve found what we were looking for,” he said. “What more peaceful scene could one find?”

But Molly, too, was aware of that vague rustle of unrest, even a froth of lawlessness, that seemed to pervade it all; the jobless cowhands riding their old domain; the bitter county-seat feuds in progress. Over the line in the Territory two trains had been held up and looted. Banks in small towns along the southern fringe of Kansas had been subjected to a series of daring raids. The forces of the law were imperfectly organized, frequently leagued with the lawless. Many old-time riders of the unowned lands were living on claims and their cabins were ever open for any of the boys who sought safety there. They asked no questions, these men, and answered none. The Osage Hills in the Territory afforded a safe haven for those who were hard-pressed and the way of the transgressor was not difficult. The girl commented upon this to Carver.

“That’s only the ghost of the old days hovering over the corpse of the unowned lands,” he said. “A passing phase. It’s only a froth, like bubbles and trash on the surface of a deep pond when it’s stirred by the wind.”

He waved an arm toward the peaceful rural scene unrolling all around them. “All that is the solid, enduring part. That will last. The other is just the last feeble rustle of the tumbleweeds we’re hearing now.

‘All tumbleweeds hail from nowhere,
Their one favorite residence;
But all are bound for the same graveyard—

Hung up in a barb-wire fence.'

"That's the finish of all tumbleweeds, girl," he said. "Soon or late they get crowded into some fence corner and their travels cease. Now me, I'm pocketed that way too, only I've taken root. Aren't you about ready to come over and ride herd on me, sort of, and see that some strong breeze doesn't uproot me and blow me off somewhere?"

"Not that, Don. I can't," she said. "I'm sorry. I want to go on just as I am for a while. It's too perfect to disturb. You haven't an idea how much I'm enjoying it, visiting round with Mrs. Downing, the Cranstons and the Lees and all the rest, exchanging recipes and listening to all the family woes and triumphs. You wouldn't find much excitement in hearing for the fourth occasion just what a frightful time Johnny Downing had when he cut his first baby teeth; or about that historical event when Ella Cranston essayed her first barefooted venture outside and stepped on a hornet, and what a fearful expense it's been to keep her in shoes ever since,—just refuses to go barefooted even in summers, since that day, Ella does. But I positively revel in all that. It's been so long since I've had many women friends. I don't want to lose a minute of all this."

"I'd contract not to spoil it for you," he offered. "You could go right on doing the same things you do now. Maybe I'd learn to tingle and thrill over Johnny's teething myself. He set them in my thumb the last time I'm over at Downings so I take it they all come through in good shape. Couldn't you learn to be loving me just a trifle if you'd make a real earnest effort?"

"A lot—without the least effort," she frankly admitted. "Don't you know, Don, that every real woman is always just on the verge of loving some tumbleweed? She doesn't have to try loving him but to try to keep from it. That's the difficult part."

"Then why not take the easy trail out?" he suggested.

"All women lean toward the wild weeds—they've got that in them," she said. "But the ones who listen to that call always pay in the end. Oh, I don't mean that you'd ever do anything I'd be ashamed of," she hastened to add. "You wouldn't. It wouldn't be distrust of you, but fear for you, that would be my lot if I let myself get to caring. Don't you see? I've loved two tumbleweeds before now—Dad and Bart—and I don't feel quite up to

loving a third. It's a woman's portion to sit and wait for bad news. So let's go on just as we are."

Three wagons rolled up the valley and pulled into the Half Diamond H.

"There comes Thanksgiving dinner," said Carver. "Old Nate was down with us overnight. Likely he knew that I couldn't afford to feed the grub-liners indefinitely so he said he'd ride down to Alvin and send up a bite for the boys. It appears like he'd sent it in tons; enough to run to next August. We'll be expecting you and Bart over for a turkey dinner to-morrow."

X

THE one business block of Wharton, a little town twenty miles north of the Cherokee-Kansas line, seemed almost deserted. Four men sat on the edge of a raised-board sidewalk midway of the block. Two others leaned against the support posts of a wooden shelter which roofed the sidewalk before a hardware store. Four horsemen clattered round the corner, their black masks furnishing a sinister contrast to the quiet village scene, and the few citizens of Wharton who chanced to be abroad witnessed the advent of the modern bandit, come to replace the road agent whose day had passed when railroad transportation superseded stage-coach travel on the overland trails.

Three of the men dropped from their saddles before the Wharton bank, two of them entering while the third stood guard before the door and the mounted man held the horses of the other three.

The man in the saddle addressed the startled spectators and his voice, although not raised above a conversational tone, carried the length of the silent street.

“Take it easy,” he advised. “No one’s going to get hurt unless you start acting up.”

He spoke with quiet assurance but the man on the door was of a more blustering type.

“All you cattle stand dead quiet,” he threatened. “Not a sound there! You!” he bawled as a man shifted his position; “what did I tell you about keeping quiet.”

“Keep quiet yourself,” the man on the horse advised. “You’ll stampede the lot of them with your gab.”

Those within the bank reported later that one of the inside men was silent throughout the affair, never speaking a word but instead making his wishes known by motions of his hand. His companion seemed nervous and excited.

The pair emerged from the bank and the three dismounted men swung to their saddles. As the quartet jumped their horses down the street the door of

the hardware store opened and the reports of a rifle rolled forth in swift succession. The man who had held the horses lurched dizzily, sprawling forward over the saddle horn, then fell to the street as his mount jumped sidewise. The silent man set his own horse back on its haunches, seized the reins of the loose animal and leaned from the saddle to help the fallen man to remount. The blustering party whirled his horse and emptied his gun at the front of the store from which the concealed riflemen operated. Spectators, galvanized into action by the splintering glass of store windows, ducked hurriedly for cover. As the fallen man regained his saddle the three men rounded the corner and followed after the fourth, who had held on without slackening his speed.

Near noon of the following day Carver was well on his way toward Hinman's range to bring back the hundred head of yearlings he had purchased in the spring. The news of the Wharton raid had been carried to the bunk house by a grub-liner the night before and Carver turned it over in his mind as he rode.

"The blustering man on the door was Noll Lassiter," he mused. "And the silent man inside was Milt. The nervous party—I can't place him. I'm wondering about the casual individual who held the horses. It certainly does look as if they'd cancelled the family feud."

For Bart Lassiter's two-day trip to Caldwell had lengthened into a week and he had not yet returned. The name of Lassiter had been whispered in connection with recent misdeeds but the raids had been frequent and at widely separate points. It was certain that Milt and Noll Lassiter had not participated in some of these, their whereabouts at the time having been definitely established, and there was no proof that they had been connected with any one of the numerous affairs.

Carver angled slightly westward as he reached the sand-hill country near the line. This was the poorest land in all the Strip, yet in common with better stuff it had been staked solidly on the day of the run. The majority of these sand-hill claims were destined to change hands many times before prove-up work would be completed and patents issued for the land. Carver found this country unfenced and the few homestead cabins were mainly deserted. The surface was rough and choppy, a veritable maze of dunes, some covered with tufts of tall red grass and studded with clumps of

dwarfed brush and needle-leaved yucca plants. There were ridges and domes of white blow-sand, worn by the action of the wind. These stretches of sand had retarded the progress of the fire which had swept the country in late summer and the most of it was covered with grass. There were occasional flats carpeted with short, wiry salt grass. As Carver neared the edge of one of these basins he suddenly pulled up his horse and peered through the fringe of tall grass that graced the crest of an intermediate ridge.

"Here comes the casual party now," he commented. "Wounded as stated in the reports, and with a posse right at his heels."

Two hundred yards out in the flat a rider was pounding down toward the possible cover afforded by the rough country which Carver had just traversed. His left arm hung stiffly at his side and he turned in his saddle with an effort as he gazed back at a group of horsemen, some eight or ten of them, that were surging out into the far edge of the depression a mile or more behind.

As Bart crossed the low ridge he started to whirl his horse at the sight of the man posted in his line of flight, then recognized Carver and held straight on. Carver turned and rode with him, noting that Bart's horse was almost spent.

"I'd trade mounts and let them pick me up instead. I could furnish a perfect alibi," Carver said. "But that wouldn't do. They'd trace the ownership of your horse."

"Don't let that point deter you," Bart returned easily. "This is no horse of mine. I wouldn't own him. I borrowed him, sort of, on the spur of the moment."

"But the saddle," Carver insisted.

"Goes with the horse," said Bart. "You're not up to yourself or you'd recognize that it ain't my outfit."

"All right. Let's switch. Quick!" Carver ordered. "Duck up that coulee to the left and keep on the grass where it won't leave any tracks," he advised, when the change had been effected. "Push him hard and hold to the bottoms."

Carver veered off to the right. He had covered something over half a mile when the posse sighted him as he crossed a low ridge. For another three

miles he maintained a lead, then rode out on to a high point of ground and halted his weary mount. The posse had fanned out over a half-mile front to guard against their quarry's doubling back through the choppy breaks. One after another of the man-hunters sighted the solitary figure on the ridge and headed for the spot. Carver turned and regarded the first two that approached. They pulled their horses to a walk, allowing time for another pair of riders to draw in from the right.

"Sit tight there," one man called. "No queer stuff now!"

"Where did all this delegation spring from?" Carver demanded.

The sheriff reached the spot and assumed command.

"You, Ben, get his gun," he ordered and one of the four crowded his horse closer to Carver's and reached to remove his gun from its holster.

The sheriff reigned over a Kansas county and his jurisdiction did not extend to the Strip, a fact which had not deterred him from crossing the line with his posse when hot after his man. The men were regarding their catch with some doubt.

"Was that buzzard wearing chaps?" one man asked of the others.

Carver grinned and answered the query as if it had been directed at him.

"I couldn't say as to the style of his pants," he returned. "But his headgear was black."

"It was for a fact," one of the posse testified, eyeing Carver's battered gray hat.

"What's all this?" the sheriff demanded. "What about a black hat?"

He too was studying Carver's apparel.

"This fellow's not dressed the same," he admitted. "But the horse looks like the one he was up on."

"It's the selfsame horse he was straddling," said Carver. "He's got a better one under him now."

"Did you trade?" the sheriff demanded.

"No, he did," said Carver.

“Speak up! Get it out quick,” the officer ordered.

“I was off prospecting around on foot,” Carver explained. “As I sauntered back I observed this crow-bait standing where my horse had been. I caught one brief glimpse of a black hat through the grass on a ridge and knew that the party under it was making off with my horse. I crawled this old wreck and took in behind him. Never did see him again—which isn’t surprising in view of the fact that he’s up in the middle of the best horse in three States. That was one good horse of mine. I’ll back him against any mount in these parts. That miscreant made a good trade. One time during round-up last summer that pony packed me seventy miles in one day and wasn’t even breathing hard.”

“Oh, damn your horse and its virtues,” the sheriff interrupted. “We’ll take you along, anyway. How do I know you wasn’t planted out here to help him make a get-away?”

“You don’t,” Carver admitted. “For all you know, why he might have sent me word about whatever misdeed he was planning, stating the exact spot where your posse would jump him and outlining his route of escape from there on, so’s I could be posted just where his horse would play out and he’d be needing a fresh one.”

The officer frowned at this absurd line of deduction and Carver grinned at his discomfiture. The three additional members of the posse, having ridden well off toward the left, had now sighted the group on the ridge and were approaching the spot.

“If you want me for exhibit A in the evidence I don’t mind going along,” Carver added.

The three additional members of the posse rode up and two of them greeted Carver by name.

“Whenever did you elect to turn outlaw?” one man asked. “Sho! We’ve snarled things up,” he added. “Carver wasn’t into this mess.”

“Do you know this party?” the sheriff inquired.

“Do I?” the man laughed. “If I had a dollar for every one I’ve borrowed off him I’d pay half of ’em back.”

Carver's name was known to the sheriff. It was certain that he could be found if his testimony was needed later.

"No use holding you," he said to Carver. "He's made a clean get-away. I'm a little off my range—no authority here in the Strip; but I wasn't going to let the line stop me when we was right on his heels."

"Why were you wanting him?" Carver asked. He raised his eyebrows in evident surprise as the officer gave the details of the Wharton hold-up and announced that the man they had hunted was the wounded one of the quartet.

"They holed up somewheres till dark but we got word they'd headed down this way in the night," the officer explained. "Likely this fellow was feeling sick and had to hide out. He'd spotted us riding into the sand hills and was just climbing his horse to make a run for it when we sighted him over a mile ahead. He'd posted himself on a ridge so's he could watch all ways. He's up on your fresh horse and miles off by now. No use for us to go on. I'll send word to Oval Springs to the sheriff there that he's down in this country."

"Any idea who he might be?" Carver inquired. "Anyone along the line get a look at him?"

"Not one," the sheriff denied. "He's in the clear as far as identity is concerned. Nobody's set eyes on him from the time they rode out of Wharton till we jumped him this morning—excepting the man who reported that he'd seen four men ride this way after night. That crippled shoulder may give him away. We'll be riding on back. I'll want that horse you're on so we can trace its ownership. May get it on him that way."

"I'll nurse him along over to Engle's place on Slate Creek," Carver offered. "Engle will lend me a horse to ride home."

When Carver reached the home ranch a man waited there to inform him that Carl Mattison desired his presence in Oval Springs.

"Tell him I'll be with him between now and to-morrow noon," Carver instructed the messenger.

Bart Lassiter rode up to the house an hour before dark. Carver had expected him to wait until after nightfall before riding in and had planned to intercept

him before he reached the house.

“Why didn’t you lay out somewhere under cover till it was dark?” he demanded. “Any of the neighbors see you straddling my horse?”

“A few of ’em, likely,” Bart returned. “What if they did? I was half starved and got dead sick of waiting out there in the creek bottoms.”

Carver took him into the house and dressed the wounded shoulder. It proved to be a clean hole, the ball having passed through the fleshy parts without touching a bone. Bart spoke but seldom while the wound was being dressed. He seemed gloomy and morose, his usual carefree outlook entirely lacking for the time.

“It was the devil’s own luck, getting jumped just when I did,” he stated at last.

“Your bad luck set in prior to that,” Carver returned. “It started when you met Noll and Milt.”

Bart nodded, then suddenly gazed at Carver in surprise.

“But how did you know I’d met them?” he asked. “I didn’t have time to tell you back there where we changed mounts.”

“It wasn’t hard to guess,” Carver said.

“Then you must know Noll better than I do, if you guessed that,” said Bart. “I didn’t think the poison hound would shoot me down without a word.”

“What?” Carver asked. “Noll, you say! D’you mean he shot you?”

“No other,” Bart affirmed. “The four of them rode up on me before I knew they were anywheres within fifty miles.”

“What four?” Carver inquired.

“Milt, Noll and Freel,” Bart informed. “I don’t know who the fourth was. Didn’t hear his voice. I was afoot and looking for my horse when they came riding along. I couldn’t see who they were but Noll was talking to Freel and I knew their voices. They were riding in front. I asked ’em to raise another horse and save me a twenty-mile walk and they halted without a word at the sound of my voice. Then Noll shot. He cut down on me twice more after I hit the ground. One shot was close enough to fill my right ear full of sand.

Milt jumped his horse against Noll's, cussing him meanwhile, and they was off at a run before I could pick myself up."

Carver was conscious of a vague sense of relief coupled with knowledge of previous deductions gone astray.

"Where were you yesterday?" he asked.

"Sleeping in the house you once owned in Caldwell, with my horse in the shed out behind," Bart informed. "It's untenanted now so I entered by the simple process of breaking a window. I recall that it had been a wild night in Caldwell and was near daylight when I went to bed. It was equally near dark when I waked. The festivities had palled on me and I was ready to go home so I rode out of town."

"But how did you happen to be way off to the south?" Carver asked.

Bart's moroseness was dissipated by a grin, the scowl which had stamped his face vanishing before the advent of some happy recollection.

"I had two pints in the saddle pockets for medicinal uses. After taking one of them it occurred to me what a nice thing it would be to surprise you by bringing down those yearlings of yours so I headed for Hinman's west place. After taking the other I evidently dismounted thereabouts for a nap; and after napping I couldn't locate my horse. I'd left the reins looped on the horn, likely, and he headed for home. While I was hunting round for him I heard folks riding toward me and angled to cut their trail and get help, like I told you. Instead I got shot. Then I rambled on afoot for a couple of miles and arrived at a house. Some one is making a late evening call and has left his horse tied outside, so I borrowed the old wreck and headed toward home. I was feeling faint-like and weak, so I tied him up to a plum bush and slept. I made another start about daylight and then got off for a rest. It was then I see a dozen or so riders surging down on me. With half the county out on the hunt thataway it come to me that maybe my motives in borrowing the critter had been misunderstood so I made a break to escape."

Carver leaned back in his chair and laughed, swayed by a mixture of irritation and relief.

"Could you, by any off chance, prove that you were asleep in Caldwell yesterday and didn't ride out till dark?" he asked.

“Positively not,” Bart stated. “No one will ever know who entered that ex-house of yours by way of the window. My tracks are well covered.”

“Which is unfortunate in this particular instance,” Carver remarked. “You’ve stepped into it up to the armpits. I had been wondering how to help you avoid serving ten years for something you did. Now I’m wondering if you won’t get twenty years for something you didn’t. Did you happen to hear of the little event up in Wharton?”

“I’ve heard of the place,” said Bart. “But I thought it was against the rules for anything to ever happen there. What did?”

Carver told him and Bart nodded as he listened. The black frown once more stamped his face.

“And we know who it was,” Bart said. “But I hope they don’t get caught. Noll might get sent up for twenty years—which span of time I’d find tedious waiting for him to get out again. I’d hate awfully to shoot him in the courtroom or through the bars. My fancy runs toward killing him somewheres outdoors, so I better get started before he’s apprehended.”

Carver knew that Bart meant exactly what his statement intimated. The breach in the Lassiter family was now irreparable but its operation might prove to be even more detrimental to Bart than the influence which his half-brothers had exercised over him in the old days when they had all trailed together.

“You’re never clear of one mess before you’re into another,” Carver commented. “Damn Noll! Forget him. Think what it would mean to Molly to have a shooting in the family.”

“There’s been one shooting in the family within the past few hours. She despises Noll and thinks considerable of me. Why should she feel worse about my shooting him than about his taking that shot at me?” Bart logically contended.

“Ask her,” Carver returned. “I’ll send you home now before some of the boys roll in and start remarking broadcast about your being shot through the shoulder. I have to ride over to Oval Springs sometime soon and if you don’t keep that crippled shoulder under cover meantime, so’s the neighbors won’t get to speculating about your case, why I’ll up and jail you myself just to keep you out of trouble.”

Bart faced him gravely.

“There’s not much in this life I wouldn’t do for you,” he said. “I’d ride on into Washington and loot the Mint if you was needing pin money. If you had an enemy I’d assassinate him just to save you the trouble. You’ve used me white. But there’s some things that just have to be done. This here is one. I’m out to get Noll. He’s had it coming all his life. The day Noll passes out I’ll put myself under your orders and never stray outside my homestead fence for a solid year except when you say the word. I’ll give you a guarantee to that effect.”

An hour after Bart’s departure Carver was saddling a fresh horse in the corral when a voice called to him from the edge of it.

“What’s the trouble, Honey?” he inquired, resting his arms on the top bar of the corral gate and facing Molly Lassiter across it.

“Don! Don’t let Bart go out after Noll,” she said. “Before I have time to thank you for helping him out this morning I’m asking you to do something else;” she essayed a laugh which ended in a sob. “But don’t let him do this. Can’t you think of some way? I never knew him to be in this mood before. He’s so quiet about it that I know he means to do it.”

“Likely it will wear off before morning,” Carver encouraged, but he knew that morning would find Bart in the selfsame mood. Only years would suffice to alter the determination he had read in Bart’s face an hour past. “He’ll forget it in a day or two.”

He spoke unconcernedly to reassure the girl for she was nearer the breaking point than he had ever seen her. Her habitual self-control had broken down.

“You know he’ll never forget,” she said. “But I can’t have that—a shooting between brothers—don’t you see? Not that Noll really is a brother; but people will always think of it that way. I wish something had happened to Noll before I ever saw him—just for what he’s done to Dad and Bart. I’m wicked enough to wish him dead; he should be; he’s not fit to live. But Bart mustn’t do it. He’d never live it down.”

She spoke disjointedly, her voice high-pitched and unnatural. Carver vaulted the corral bars and laid an arm about her shoulders.

“Sho! That’ll all pass off,” he said easily. “Bart wouldn’t—not after he’d thought it over. He’s excited about it now.”

She knew that he spoke only to quiet her fears, that he himself lacked the convictions which he expressed.

“He’s not excited,” she insisted. “He’s thought it all over now and made his decision. Oh, anything but that. It’s the one worst thing I can think of. There must be some way. Honestly, Don, I couldn’t stand that after all the other things the name of Lassiter has been linked with.”

“Then we’ll put a stop to it,” he said. “We’ll just fix it so he can’t.”

She noted the change in his voice. He was no longer speaking merely to reassure her. This knowledge exerted a quieting effect. She somehow had vast confidence that Carver would find a way out. Bart’s quiet insistence had terrified her but Carver had thought of some means to dissuade him.

“I’ll be riding on into Oval Springs now,” he said. “Meantime you put your mind at ease.” He drew her to him and when she made a motion of dissent he gave her shoulders a little shake. “Right now,” he insisted a trifle roughly, and she lifted her face to him.

“You promise you won’t let him?” she implored.

He stood looking down at her with a queer little smile.

“Rest easy,” he said. “I’ll take a contract to that effect.”

He dropped the corral bars and a moment later she watched him ride off through the night toward Oval Springs.

XI

THE atmosphere of Oval Springs reeked of new lumber and fresh paint. A dozen business buildings were being hastily constructed and new houses were started daily in the residence district of the town.

Carver strolled down the main street. Shafts of light, emanating from store fronts, splashed across the board sidewalk and relieved the gloom of the street. Scores of horses stood at the hitch rails. The blare of a mechanical piano sounded from an open doorway, accompanied by the scrape of boots and clank of spurs. The shrill laughter of a dance-hall girl rose momentarily above the din. From another door there issued the clinking of glassware at the bar and drunken voices raised in song; the smooth purr of the roulette wheel and the professional drone of lookout and croupier. The new county seat was a wide-open town.

Carver visited one place after another in search of Noll Lassiter. He discovered him in a saloon near the end of the street but the man he sought was in the center of a group near the bar. Carver nodded but did not join them. What he had to say to Noll must be imparted when there were no others to hear.

Noll was discoursing at some length to his companions and at the sight of Carver he raised his voice with palpable intent to include Carver in the circle of his hearers,—wherefore Carver listened.

“They hadn’t no business to throw me in,” Noll stated aggrievedly. “I ask you now! Of course Crowfoot and Alf Wellman never was any special friends of mine but they had no call to lock me up.”

“This may prove worth while. He’s anxious to have me get it,” Carver decided, and as the case was restated he gathered the cause of Noll’s grievance.

Two days before, in mid-afternoon, the two Lassiters had become openly conspicuous and Noll had indulged in target practice in the street, whereupon Crowfoot, acting town marshal, had declared that such sports were out of season during the daylight hours and with the help of the sheriff

had conducted the two Lassiters to the county jail—that structure serving also as a city prison—where they had languished till noon of the present day. Their urgent representations, delivered verbally to acquaintances who had chanced to pass the jail during the morning, had resulted in their release at noon.

“The alibi club is in session,” Carver told himself. “It’s real accommodating of Noll to stage a monologue just to deceive me. It’s cleared up some points I was hazy on. The town marshal, the sheriff and his deputies are still trailing with the old crowd. It works out like this: Wellman and Crowfoot jail the two Lassiters in view of the populace. After nightfall the two prisoners depart by the back stairs and make a hard ride to some point near Wharton, hole up there till afternoon and raid the bank, hide out again till after dark and make another hard ride back to Oval Springs. They’re safe in jail before dawn. This morning they comment through the bars to pedestrians passing the jail. A perfect alibi—unless Noll overacts his part and talks himself into trouble.”

He mused further on the subject as he waited for Noll to detach himself from the group.

“This deal signifies that every man round the sheriff’s office is cutting in with the boys,” he reflected. “Wellman has appointed the two Ralston brothers deputies in addition to Freel. The fourth party in that Wharton hold-up was likely one of the Ralston boys.”

Noll eventually moved toward the door but the others accompanied him. Carver followed them out and called to Noll.

“Just a minute,” he said. “I have a bit of news to impart.”

Noll turned back and stood facing him while the others halted a few feet away. Carver lowered his voice so his words would not reach them.

“You’ve tried for me twice,” he said. “From now on it’s reversed.”

“What d’you mean?” Noll demanded.

“That I’m going into action the next time you loom up anywhere within range,” Carver stated. “I’m just telling you so that you’ll know how to act the next time we meet. Right soon after we next sight each other there’ll be one of us absent from human affairs.”

The group on the sidewalk saw nothing unusual in this interview,—merely a low-voiced conversation between two acquaintances.

“Absent!” Noll repeated. “That one will be you!”

“Maybe,” Carver assented and turned off up the street.

He spent the night at the hotel and in the morning sought the deputy United States marshal whose posse guarded against the destruction of railroad property and the consequent interference with the delivery of the United States’ mail.

“You helped me into this job,” Mattison greeted. “Now it’s up to you to help me hold it. You’re to be my right-hand assistant until this mess is cleared up. Did you know it?”

“Not for sure,” Carver said. “But I suspected it somewhat when you sent over for me. I’ll make a deal with you. You can deputize me now till we iron out this fuss, provided that some future time you agree to let me deputize myself on some occasion when I may have to go into action right rapid and you not at hand; when it’s a case where county officers wouldn’t fit in and a deputy marshal would. I’d proclaim that I was acting under orders from you, meantime having dispatched word for you to make haste toward the spot. You arrive and assume command.”

“What’ve you got in mind?” Mattison inquired a bit doubtfully.

“Not anything special,” Carver returned. “I may never avail myself of my end of the bargain. If ever I do I’ll guarantee that the parties I move on will be eligible to arrest for shattering some Federal law and I’ll be able to prove it. That will let you out.”

“Yes. Likely it will let me out of my job,” Mattison said. “But you’re responsible for my getting it and I oughtn’t to object if you should also be responsible for my losing it. We’ll close the deal.”

“One more small favor before you put me to work,” Carver requested. “I wish you’d pass out the word, quiet like, among the boys that the first time Bart Lassiter shows up here he’s to be arrested and sent up to Caldwell.”

“What have you got against Bart,” Mattison asked. “I thought you was friends.”

“That’s why I want him tossed into jail and kept out of trouble till I give the word to free him again.”

“All right. We’ll toss him if he shows up in town,” Mattison agreed. “Let’s head for the tracks and I’ll explain your job as we travel.”

For the next three nights Carver patrolled the railroad tracks for a distance of over a mile north of town, visiting the six men stationed in couples at intervals throughout that stretch. Mattison conducted a similar patrol to the south. Throughout that period no move had been made to tear up the tracks. Trains rolled through without a halt and no incident transpired which would furnish the least surface indication of the existence of a bitter feud. But both Carver and Mattison knew that the undercurrent of lawlessness had not subsided; that it merely smoldered, waiting an opportunity to break forth.

During the past month there had been five men killed and as many wounded in the progress of the county-seat war. Three of the slain had been members of the marshal’s posse, for Mattison’s operations were handicapped by red tape, his instructions prohibiting the firing of a shot except in case his own men were attacked. The participants on the reverse side of the question were burdened by no such restrictions. The marshal was unable to gather a single shred of information as to the identity of the men concerned in any one of the wrecking parties. The population of Oval Springs was solidly in favor of any move whatsoever, if only it should result in the stopping of trains at that point.

In mid-afternoon of the fourth day Carver sat cross-legged on the ground in the marshal’s camp beside the tracks a few hundred yards north of town. He leaned back against a bed roll and inspected the general surroundings through half-closed eyes. There was the usual congestion round the three town wells which furnished the only supply of water for the county seat. Tank wagons plied between these wells and the surrounding country, supplying settlers with moisture at fifty cents a barrel. Carver straightened, suddenly alert, as a rider dropped from his horse at the end of the street. His left arm was bound stiffly at his side.

“Bart couldn’t wait for that shoulder to cure before he started hunting for Noll,” Carver said. He noted that two men had stepped in behind Bart. They were Mattison’s men and Bart had not progressed a distance of fifty yards from his horse before he was under arrest.

“That much accomplished,” Carver said. “Bart’s safe out of the way as soon as they get him to Caldwell. Now it’s narrowed down to Noll and myself. I don’t care overmuch for my job but she’d rather it would be me than Bart to go through with it—some one outside the family; and this will rule me outside for all time.”

Bradshaw rode into camp and joined Carver, leaving his mount with several other saddled horses that grazed close at hand. Mattison’s posse, down to the last man, was composed of old friends of Carver’s, former riders of the Strip. Their old calling gone, they now gravitated to any point which promised to afford a touch of excitement.

“They’ve let us alone for quite a spell now,” Bradshaw said. “Time something was breaking.”

A stiff wind screeched across the country and the two men sought shelter behind a pile of baled hay, sprawling comfortably in the sun until Mattison located them there and reported a bit of news.

“Headquarters has thrown off the bridle and issued orders to shoot down every man that tampers with the tracks,” he informed. “I just got the word. Now that we’ve got free rein we’ll clean up this mess.”

These instructions were passed out to all of the marshal’s men. Two hours after midnight Carver stood on the tracks with Mattison.

Both men turned to view a vague light that seemed to flicker up from near a string of buildings at one end of the main street. The high wind which had prevailed throughout the day had died down within the past hour and in the resulting hush sounds could be heard at a considerable distance. The light increased and shed a pinkish glow over a portion of the sleeping town. A similar light, smaller and less evident, as if but a reflection of the other, appeared near the courthouse at the far end of the town. From somewhere there sounded the muffled thud of many hoofs.

“I wonder now,” Carver said, as he caught this sound. “An hour ago, before the wind went down, a fire would have wiped Oval Springs off the map—no water.” He listened again to the rumble of hoofs. “It’s come,” he announced. “Casa has been in a ferment for weeks, threatening to ride over and sack Oval Springs. Now they’re at it.”

Black smoke rolled above the pink glow which was rapidly swelling into a lurid glare. Tongues of scarlet flame now leaped above the buildings as the fire, started in the rear of them, licked hungrily up the back of the frame structures. There was a sudden clamor of voices as sleeping citizens were roused by the glare of the fire, then a roar of hoofs as forty horsemen thundered the length of the main street and emptied their guns at the store fronts. They wheeled and rode back through the street, shooting as they came, this last demonstration for the purpose of keeping citizens within doors until the flames had attained sufficient headway to spread beyond control.

The rumble of hoofs died out as the raiders pounded away toward the north and the population of Oval Springs boiled out to check the spread of the fire.

“It’s no affair of ours,” Mattison said. “Dog eat dog. Let ’em go. Wellman, our good sheriff, hasn’t exerted himself to help find out who’s been shooting my boys at night. Let him handle this deal himself.”

The Casa raiders had planned well and if the wind had held Oval Springs would have been reduced to ashes in an hour. But the fates had intervened. The wind had slacked off, then died, and now a reverse wind blew up and piled the flames back upon themselves. The fire at the courthouse had not attained sufficient headway and a determined body of citizens checked the spread of the flames. The blaze at the north end of town was confined to the one section in which it started, the strong wind from the south beating back the flames which leaped high above the buildings. Men on adjacent structures stamped out the sparks which were belched far and wide as each burning roof sagged and fell with a hissing roar.

The conflagration lasted till dawn, was still smoldering when Carver retired to the bed tent where he slumbered till high noon. An hour after rising he sauntered along the tracks to the north for the purpose of chatting for an hour with Bradshaw, who was stationed within a short distance of camp. His friend was nowhere in sight.

“The sun’s nice and warm,” Carver said. “I’ll find Brad napping on the sunny slope of the grade.”

A bare flat extended for four hundred yards on the east side of the tracks. Beyond it the country was broken and rolling, studded with dwarf brush and scattered thickets of scrub oak. Carver located Bradshaw reclining on the west slope of the railroad embankment in the sun, his hat pulled over his eyes. When within a few feet of Bradshaw's position Carver flinched convulsively as a rifle ball snapped past within a foot of his head. The thin crack of a rifle accompanied the sound and a faint spurt of blue smoke drifted hazily from a black-jack clump on the far edge of the flat. Carver cleared the edge of the grade at a bound.

No matter what else might occupy Carver's mind, the thought of Noll Lassiter was ever in the foreground of his consciousness, would remain there until the matter between them was settled, and he knew without question who had fired the shot from the black-jacks.

"Close shooting for four hundred yards. That didn't miss me an inch," Carver said. "Get down!" he called sharply; for Bradshaw, thirty feet farther north, had been roused by the sound of the shot and Carver's plunge down the sheltered side of the grade, and he had risen to his knees to peer off to the east. "Down, Brad! Duck under the bank!"

The warning command came too late. Bradshaw sprawled on his face and slid loosely down the embankment as the rifle spoke again from the thicket. Carver ran to his friend but Bradshaw was beyond need of assistance. He opened his eyes with an effort as Carver knelt over him.

"I'm sorry, Brad," Carver said. "He was out after me and got you instead when you raised up in sight. I'm sorry, old man."

Bradshaw essayed a smile and made a feeble move to extend a hand for a farewell shake with his friend.

"It's all right," he said—and passed out.

Carver ran back toward the camp, keeping under cover of the embankment. Several men had heard the two shots and had mounted the tracks to determine their source. They saw Carver running toward camp and knew that the two stray reports had carried at least some significance.

"What's up?" one man called as Carver came within hailing distance.

He did not answer till after reaching the spot where a half-dozen saddled horses were grazing just outside camp, his own mount among them. He slowed to a walk lest he stampede the horses by a too precipitate approach. Mattison had come from the bed tent. Carver jerked a thumb back in the direction from which he had come.

“Some one downed Brad from the bush out across the flat,” Carver informed. “I’m going out to bring in the party that did it.”

The marshal turned to the men standing round.

“Saddles!” he ordered. “On your horses! Go bring him in!”

But Carver lifted a hand.

“This is my job,” he said. “I want him myself. He was trying for me—and Brad’s been my friend for fifteen years. Hold ’em back!” he insisted, as the men headed for their horses. He swung to the saddle. “Send up word to let Bart Lassiter out,” he called back, as he jumped his horse toward the tracks.

Mattison countermanded his previous order and the other men stayed in camp, cursing fretfully over this sudden turn in affairs which prevented their going.

Carver rode without caution, knowing that Noll would have departed immediately after firing the shots. The man would have a mile lead by now. The country to the southeast was a stretch of good land, solidly settled and thoroughly fenced. A rider heading that way would find his route confined to fenced section lines. Noll would head northeast where the country was rough and mostly unfenced. Carver lined his horse out at a run and after two miles he sighted his man, off to the left and a half-mile ahead.

When he saw him again the distance between them had lessened. Noll would hold on without stopping till he discovered the fact that a man followed him. Even then he would hesitate to dismount and attempt to bushwhack his hunter through fear that Mattison had turned the whole posse loose on his trail. Another half-mile and Carver glimpsed him again, this time less than four hundred yards in the lead. They passed out of the brush-covered area into a country that, while still rough, was covered only with coarse grass. It occurred to Carver that another few miles would bring them out into a good-land district, settled and fenced. Noll would never be crowded out into that section if he knew Carver followed, for he would be

forced to travel along fenced roadways and settlers would witness his flight, establishing his identity.

As Carver crossed over a ridge he saw Noll again, only his head and shoulders visible as he rode straight away a scant two hundred yards ahead. Apparently he had no suspicion that there was a man on his trail, yet it seemed certain that before now he would have halted under cover of some ridge to scan his back track and ascertain if he were followed. If he discovered a rider behind him he would halt again at some other point to determine if others rode with the first.

It suddenly occurred to Carver that the swift lessening of distance between them was occasioned by this very thing. Noll had stopped under cover to view his back track; had halted again to make sure that but one man followed his trail. Even as this thought flashed into his mind Carver flung from the saddle and dropped flat on the ground.

He had ridden the length of a shallow draw and he left it only to discover that the landscape had flattened out into low waves of ground. It was the sight of the upper half of a riderless horse standing in the shallow depression beyond one of these waves which had occasioned his sudden fling from the saddle. Noll had dismounted in the next dip ahead, intending to shoot as Carver rode into sight.

Carver lay flat on his face and crawled thirty feet to the north through the shallow basin that sheltered him, then lifted his head cautiously and inspected his surroundings. His range was limited to a distance of fifty yards north and south. He might crawl back west for some twenty yards. The character of his surroundings rendered it impossible for him to move beyond this restricted area without showing himself to the man who was cached in a similar depression somewhere less than seventy yards east of him. And in all the shallow dip there was not one point of sufficient depth to permit of his straightening up on his knees without danger of bringing his head into view of the man who waited for him over across.

Inch by inch, Carver worked his way toward a spot where a few straggling stems of tall grass were scattered about. Poor cover this, yet even a few spears of grass break up the view to a surprising extent when one is prone on the ground. In thirty minutes he had covered as many feet. He removed his hat and elevated his head.

First he studied the character of Noll's retreat,—a depression similar to the one which afforded him shelter, a trifle deeper perhaps and of slightly greater area. But Noll could not progress a hundred yards in any direction without coming into his view. Carver knew that somewhere over there Noll was watching for the first glimpse of him. He could see the empty scabbard on Lassiter's saddle and knew that he was armed with a rifle. His own rifle remained on the saddle of the horse he could not reach without showing himself to Noll and he was armed only with the gun on his belt.

"He's got me handicapped a trifle on location and weapons," Carver reflected. "It'll narrow down now to which one has the other out-guessed for patience. What happened to Brad has put me in the humor to go through with my job."

There was no breath of wind and the sun glared down into the depression with summerlike warmth. Carver crawled back to the lowest point in his basin and divested himself of his jacket. An old brake block, dropped from some chuck wagon in the old days of the round-up, was grown half over with grass. He pried the block from its resting place and regarded it, then set to work, first draping his jacket the length of the twenty-inch slab of wood and observing the effect from one side. Then he padded one shoulder with matted dead grass. His knife, its point stabbed solidly into one edge of the block, served as a handle. He crawled north through the depression, one arm extended, his hand clasping the knife and holding the contraption two feet before him and elevated to a point some ten inches higher than his own head as he lay flat on the ground. He progressed slowly, squirming forward a few inches at a time, wondering meanwhile if any one peering through the grass from a short distance away would mistake it for the flat of a man's back and the hump of his shoulders. He covered ten feet; fifteen. When one peered through the grass from a prone position the view was none too distinct at best. He hitched forward another two feet. Surely he was holding the decoy sufficiently high to bring it into Noll's range of vision. Another hitch of two feet, and suddenly his wrist was jarred by the sharp sidewise wrench of the knife as a rifle shot crashed forth from sixty yards to the eastward and the heavy ball tore through the jacket and the block across which it was draped. Carver emitted a single coughing gasp. A split-second later he flung one arm aloft, the fingers outstretched, closing them tightly as the hand was withdrawn. Then he turned back and crawled to his first point

of vantage where the scattering stems of coarse grass would tend to break up the view.

An hour passed without a sound save the stamp of a hoof or the creak of leather as the two horses moved about a few yards away. A huge black buzzard wheeled high overhead. His spirals narrowed and a second vulture joined him. The two great birds soared on motionless wings a half-mile above the two quiet figures sprawled in the grass a stone's throw apart, each invisible to the other but quite visible to the carrion birds that hovered over the spot. Carver longed for a smoke. The craving for a cigarette became almost irresistible and in order to combat this urge he forced himself to speculate as to the sensations of the man in the opposite dip in the ground. He concentrated on this line of thought until the study assumed actual interest.

Noll, being uncertain on several points, would soon become restless, Carver reflected. He was half-convinced that Carver was dead. His thoughts would constantly revert to that coughing gasp that had followed his shot, that up-flung arm with the fingers clutching spasmodically at nothing. Carver had no such uncertainty to disturb him and congratulated himself upon this fact. Point by point he compared his own plight with that of the enemy.

Time was passing,—time which meant nothing to him and meant much to Lassiter. Noll must be wondering if any others of Mattison's men had set forth on his trail. Perhaps they were working it out bit by bit and were even now nearing the spot. A dozen other contingencies might arise. A stray horseman might sight the two riderless horses and set forth to discover the reason. Carver had nothing to lose by discovery. He would profit from such intervention instead, but the injection of any such chance element would seal Lassiter's doom. By thus dwelling upon Noll's discomforts Carver was able to partially assuage his own,—all save that gnawing desire for a smoke. Another hour had passed. Then Carver's mind snapped back from abstract imaginings to the world of realities.

A tuft of grass over across twitched sharply. It jerked again and Carver slid his gun out before him to the length of his arm. For a space of five minutes there was no other move and Carver relaxed, that insane urge to have a smoke at all costs mounting again. A bird hopped close to inspect him, its bright little eyes fixed on his own as it turned its head from side to side for a

better view of him. The peak of a hat appeared above the grass tops sixty yards to the east. More of the hat was lifted slowly into view until the whole crown was visible. Carver pictured Noll's eyes just beneath it, peering from under the brim.

But of course the thing was a plant. Noll would not lift his head with eight inches of hat above it to announce his position. He was raising the hat into sight with a stick to lure Carver into firing as Carver had decoyed him with the coat. Carver restrained the desire to shoot through the grass tops four inches below the crown of the hat. The thing disappeared only to come into view once more at a point some ten feet from the first. Again the move was repeated and this time the hat was thrust up abruptly as if its wearer could no longer exercise sufficient restraint to elevate it an inch at a time. Noll was becoming nervous, breaking under the strain. On the fourth event Carver saw a clear space between the grass and the hat. It dropped back but the crown remained in his range of view and for a space of ten minutes he kept his eyes on that dark spot in the grass.

A movement ten yards to the left of it challenged his attention. A second dark blot showed in the brown of the grass. It moved upward a fraction, the top of a head. Carver noted the slight sidewise motion as the man shifted for a better view. His gun hand contracted as he lined down the barrel but he loosened his fingers again. It would not do to shoot until he was sure, leaving him in the same state of uncertainty which now handicapped Noll. The sun was swinging low in the west. Another two hours and it would be too dark to see. If Noll could hold out until then he could make a clean getaway. If Carver gave a sign too soon Noll would know that his shot of two hours past had failed to locate its mark and he would stay under cover till nightfall and then make a run for it. It was the uncertainty that was breaking him down. Noll couldn't go against another two hours of that sort of thing, Carver told himself.

He repeated this assurance a score of times after the head disappeared. Two hours of uncertainty for Lassiter—two hours of craving for just one cigarette for himself—which would win out? He composed himself for another long wait.

Then Noll's head and shoulders appeared as he rose to his knees, only to be as quickly withdrawn from view as he dropped once more on his face. His

voice rose from the opposite depression, hoarse and unsteady as he reviled Carver, hoping to taunt him into some answer,—the first sound of a voice in nearly three hours. There came a crashing report from the dip and Carver's horse went down in a heap, shot through the shoulders. The animal screamed once as it struggled on the ground. A spurt of blue smoke revealed the rifleman's position but Carver knew that he was well below the danger line. The horse ceased struggling. A bubbling rattle announced the death of his favorite mount. The voice of the man who had fired the wanton shot rose with the sound.

"How do you like the sound of that?" he demanded. "That's what will happen to you between now and dark."

He leaped to his feet and stood facing Carver, then dropped back out of sight.

"He's going to pieces," Carver told himself. "He'll make a break now most any time."

The exertion and relief from inaction apparently had lessened the strain under which Noll had been laboring and he made no other move for many long weary minutes. Then, without warning, he was up and running toward Carver's position, his rifle half raised before him. He was within forty yards; thirty. Then Carver lifted his forearm and fired. Lassiter tottered drunkenly and shot into the haze of smoke that floated before Carver's gun. The ball plowed a furrow three inches from Carver's ear and spattered fresh earth in his face. Carver shot twice again. For a space of twenty seconds he held his place in the grass, then sat up on his heels and twisted a cigarette.

XII

MOLLY LASSITER followed her usual daily routine, visiting back and forth with the Cranstons, Lees and other neighbors, yet beneath it all she was conscious of a certain uneasy expectancy, a sense of waiting for something to transpire. There had been no word from Bart and his whereabouts were unknown to her. Somewhere Bart was making a relentless hunt for Noll and she expected hourly to hear news of their meeting. She knew of Carver's having joined the marshal's posse at Oval Springs and there was ever the possibility that she would get word that he had fallen in the county-seat war. She had once told Carver that it was the woman's portion to wait for bad news,—and now she was waiting. In another three weeks her school would open for the mid-winter term. A few days past her interest had centered entirely on this great event but now she found it had been relegated to a position of secondary importance in her mind; would retain its minor significance until such time as both Bart and Carver were safe home once more.

Then a sympathetic grub-liner dropped past with the word that Noll had been killed in the county-seat fight. The bearer of the tidings, in an awkward effort to lessen the shock of what he must impart, prefaced his announcement with a rambling admonition to prepare herself for the worst, and she was ready to shriek out to him to hasten on to the point of his message. She found time to wonder at the fact that her chief concern was a terrible dread that something had happened to Carver. Then, at last, the man haltingly explained that Noll had passed out of this world, one more victim of the county-seat feud.

Her reaction was so intense that she dropped to a seat on the doorsill and stared mutely at her informer. The man rode away cursing himself for breaking the news so abruptly. After his departure she accused herself of great wickedness for the reason that she could not wring one atom of regret from the fact of Noll's passing. Rather, after the fear for both Carver and Bart which had been roused by the man's lengthy preamble, she had experienced a positive relief to find that the news concerned Noll. She

hoped that the man had not divined this, and again she accused herself of a callousness which she had never before suspected as a part of her make-up.

She had known that it was only a question of time until Noll would come to his end during some piece of outlawry, a bank hold-up or some brawl in town, and it was infinitely preferable that it should have happened in this way instead,—as the victim of the county-seat war in which good men had gone down on both sides. It eliminated the certainty of a fratricidal shooting between Noll and Bart in the very near future. It was better this way.

The following day Bart rode up the lane and within an hour after his arrival he had started upon the construction of the three-room house which he had planned a month or more back. She observed that Bart, notwithstanding the wounded shoulder which still bothered him slightly, went about his work with a purposefulness which had not characterized his activities in the past. A week had passed without his having shown any evidence of restlessness or desire to ride into town.

Now that she had Bart safe at home it seemed that her anxiety should have been decreased by more than half but instead it was augmented by each bit of news pertaining to the intensity of the trouble round Oval Springs. Another week passed without the least lessening of Bart's daily labors. The house was completed with the help of a few grub-liners who were stopping at Carver's to look after his affairs during his absence.

They moved into the new house and Molly's spirits soared. She sang light-heartedly as she went about her work. She had a permanent home of her own and Bart's tendency to roam was becoming less pronounced. There was no longer reason to dread the consequences of any possible rambles he might take in the future, since Noll's influence was now a thing of the past. Her new school would soon open; and besides all these things Molly had made a discovery which eclipsed all the rest. She had told Carver that she did not feel quite up to having a third tumbleweed on her hands to worry about, already having had two, her father and Bart, but she had found herself worrying every minute since his departure; and since it seemed that she was to have the worry in any event, she had as well have her tumbleweed too. She knew that fact now and she wanted to tell him. It was to be expected that Bart would feel the need of relaxation after completing the house and she had decided that when these symptoms became manifest

she would suggest Oval Springs as his destination and send a message to Carver. She had thought much over the substance and wording of the message. She would send merely the word that she was worrying over his connection with the marshal's posse. Carver would divine what lay behind the words and return to the ranch, she reflected; he understood her so thoroughly.

Bart, however, failed to fulfill his part in her plans.

"You needn't worry about my prowling off somewheres," he informed her one morning at breakfast. "I'm one tumbleweed that's quit roaming. There's been a windbreak erected on all four sides of me that'll restrain me from drifting for one solid year. When I make a contract I keep it—even if it only came about through a mistake in the wording."

She pondered over this assertion while Bart finished his breakfast.

"Carver tricked me, sort of," Bart amplified. "He couldn't dissuade me from setting out after Noll, but I made a rash statement that I'd stay here on the place for one year from the day Noll's case was settled, having in mind, of course, that I'd do the settling myself but neglecting to state it that way. Well, Noll's case is settled, though not just the way I'd planned it, and here I am. No more trips to town until Don says the word."

"I'm glad, Bart," Molly said. "It's so much better this way instead of your being mixed up with it yourself. Don't you see?"

He pushed back his chair and regarded her.

"I'll never be convinced but what I'd ought to have done it myself," Bart insisted. "I would have too, if you hadn't talked Don into beating me to it. He knew you'd rather it would be him than me."

Bart rose and moved about the room, commenting upon certain angles of the case and from these fragments she was able to piece out the whole picture. Bart spoke casually, believing that she had already become acquainted with every phase of the affair. The girl sat very still, her hands clenched in her lap. So it had been Carver. She had never given that a thought until now, had not entertained even a suspicion of the truth, and Bart was assuming that she knew every detail; that she was responsible for having sent Carver. An hour past she had told herself that Don understood

her so well while in reality he understood her so little that he had imagined she was sending him forth on such a mission as that.

“But why in God’s name didn’t he let the posse go out instead of going alone?” she asked at last.

“That’s just what he couldn’t do,” Bart dissented. “He knew that it was on account of his own personal disagreement with Noll that Bradshaw had been shot down, that it didn’t have any relation to the county-seat squabble whatever. If the marshal’s boys had gone boiling across into the brush after Noll there was a good chance that some other good men would go the same route that Brad had. Don couldn’t chance that. It was his own personal trouble and he felt obliged to take all the risks on himself.”

She knew that Carver’s action, judged by the standards of his kind, would command respect. But if only he had been content to stand back and let the marshal’s men go out as a whole! It would then have seemed an impersonal sort of affair instead of becoming openly known as a personal issue between the two men. Even though she herself had always refused to look upon Noll as a relative the world at large would not hold that view. Centuries of custom decreed that such an occurrence as this should operate as an insurmountable barrier between Don and herself. There would always be that between them. Tongues would wag until the end of time if they should violate that age-old tradition by permitting any relationship deeper than mere acquaintance between them. She must see Don and explain it all to him. He had made such an unalterable mistake; had understood her so little. But she could not see him till after the trouble at Oval Springs had been settled and he returned to the ranch.

Even at that moment the county-seat war was nearing an abrupt termination. Oval Springs had grown with amazing rapidity and there was no longer an object in the refusal of the railroad company to halt its trains at that point, the reverse now being true.

Carver watched the south-bound passenger train come to a halt for the first time in weeks. The assembled population of Oval Springs cheered this unexpected event. A group of officials descended to look over the ground and one man announced to the crowd that they had come to select a site for the new station, construction of which was to begin on the morrow. Surveyors were unloading equipment. A work train crawled into town and a

hundred men swarmed off the cars to begin work on a switch track. The feud was ended and Oval Springs had won out in the fight. Years later it would break out again and again until Casa should eventually come into her own.

Crowds of cheering citizens swarmed the streets of Oval Springs throughout the rest of the day and there was every symptom that it would be a wild night in town. Carver considered plunging into the festivities. Someway the thought of returning to the ranch held forth no appeal; this strange lack of interest was equally true when he contemplated joining the celebration over the victory of Oval Springs. He didn't care a hang which town had won out.

"There don't seem to be much of anything that I do want to indulge in right now," he remarked. "So I guess I'll ride home. You won't be needing me any longer," he said to Mattison. "If you don't mind I'll resign and be on my way."

He rode out of town in mid-afternoon and he failed to stop by the Lassiter's place as was his usual custom but held straight on to the Half Diamond H.

Molly heard through Bart that he had returned. She expected to see him waiting for her in the little saddle in the ridge where formerly they had met of evenings but she watched the shadows fall on three successive nights and failed to see him skylined there. Her school opened with twenty pupils of assorted sizes, ages and degrees of intelligence and she threw herself into this new work. As she rode home on the second night after the opening she saw Carver in the field. He waved his hat but made no move to cross over. The next evening she motioned to him and he joined her in the road.

"They tell me you've got a family of youngsters ranging all the way from Mexicans to Bostonese," he greeted. "How's the new school?"

"Perfect," she said. "I love it."

"Now me, I'd lose my mind after the first day," he said. "Has Johnny begun to shed his milk teeth yet? It's a downright shame the boy has to lose 'em again after all the trouble he had cutting his first ones."

The girl remained silent while he made inquiries concerning a number of her charges, recalling incidents from their past lives which she had heard from fond parents and passed on to him at various times. He had dropped

into his old casual vein as easily as if nothing of an unusual nature had occurred since their last meeting. But Molly found it difficult to meet his mood and chat on trivial topics. She was conscious of a certain restraint. It was fully to be expected that he would mention the one thing which was uppermost in his mind and hers, attempting to explain it by the code of his kind, but it became increasingly evident that he did not intend to refer to it. She cast about for something to say but could discover no topic. Her mind was too exclusively occupied with that other.

“That’s a good-looking new shirt you have on,” she stated at last, and was angrily conscious of the inanity of the observation in view of all that was left unsaid between them. But she forced herself to go on. “I like gray. You never affect red shirts like the most of the tumbleweeds wear.”

She could have screamed at the idiocy of it all and found herself unable to proceed but Carver inspected the sleeve of the shirt in question and took the conversation away from her, dwelling upon the topic as if her observation had been the most natural one in the world.

“Gray’s not a bad color for everyday wear,” he admitted. “I don’t run much to red. Reason is this: There’s eleven or twelve of us children at home; I forget without counting—but plenty—and the old man sometimes buys assorted job lots of clothing that has gone maybe a bit out of style. One day he turns up with an assortment of shoes. There’s gray, black, bay and buckskin shades in that lot—and one pair of red button shoes.”

He paused to chuckle softly at some recollection.

“The old man takes a squint at those red ones and begins to size up my feet. I stage one frenzied protest. After they’d choked me into submission and crowded my feet into those red button shoes they start me off to school and my worst fears are realized. Right down to this day I can’t set round in company without wanting to shove my feet somewhere out of sight. Well, that same night I steal the old man’s pistol and drop out the window. I ain’t ever been back. That seems to have soured me on red for all time. I wouldn’t even put red paint on my barn. That’s why I don’t run to loud colors; a quiet lavender shirt, maybe, for Sundays, or a soft black-and-orange check if I want to dress up, but no red for me.”

It was quite evident that he intended to hold the conversation to purely casual channels. She knew now that he had not misunderstood her; that he had assumed full responsibility for the affair, realizing that it would react against him but believing that it would be easier for her in the end if he were the one to go through with it instead of Bart. He had known that he was locking himself outside and that explanations would be of no avail so he was deliberately avoiding the topic.

“That’s how I came to leave home,” he resumed. “If ever you note any symptoms of madness in one of your pupils, why instead of chastizing him regardless, I’d suggest that you institute a search for the red button shoes in the background. Big events hinge on such trifles. Now if I’d have stepped on a bee like Ella Cranston did—I forgot to mention that I left those shoes behind in exchange for the pistol and set out barefooted—it’s likely I’d have turned back and developed into a first-rate barber or a banker in place of winding up as a bronc fighter. Does Ella still persist in wearing shoes even in bright balmy weather?”

“Oh, Don! Why did you?” Molly interrupted suddenly.

“It was due to come sometime; he’d already tried for me twice,” Carver said, instantly altering his vein of speech to accord with her own. “So I might as well have it out right then, I figured, and keep Bart out of it all. Then he got Brad. Brad was my friend.”

“I’m sorry, Don; terribly sorry,” she said.

“Don’t you!” he admonished. “It just had to come up the way it did, seems like. You’d rather it was me than Bart.”

“I wouldn’t!” she denied fiercely. “Oh! I wouldn’t! I’d a thousand times rather it was Bart!”

She hung her spurs up into her pony’s flanks and the little horse darted off up the road.

Carver stood looking after her.

“And I didn’t know,” he said. “I didn’t find out till it was just too late. Don’t that beat hell!”

XIII

BOTH Wellman and Freel had prospered. It was quite generally believed, though it could not be proved, that both men had “sooned” before the opening of the Strip, which fact accounted for their two filings adjoining the town site of Oval Springs, property which would eventually prove extremely valuable. However, they could not yet realize on these holdings so it was evident that their present affluence was derived from some other source.

Crowfoot, even before the run, had acquired moderate wealth but neither Freel nor Wellman had been possessed of any considerable means. Freel now owned the largest and most remunerative saloon in Oval Springs. He had occupied the sheriff’s office since the first election in the county, Wellman, the original appointee, having endorsed his candidacy instead of running for the office himself. Wellman was proprietor of the hotel, had been elected mayor of Oval Springs and was a stockholder and director in the bank, of which Crowfoot was president.

It was generally conceded that the money of the ex-cowman was responsible for the rise of the other two but there were some who, knowing Crowfoot, doubted that he would use his own means for the advancement of another. The three men were closely associated nevertheless, a power to be reckoned with in business and political circles, rated as influential and public-spirited citizens.

There was no longer necessity for Freel to associate himself closely with the wild bunch, many of whose operations he had formerly planned. The years he had served as marshal had fitted him for this work. He could visualize a scene in advance, discount its dangerous features and perfect an alibi that would stand the test. His was the mind that planned but he had seldom been present to witness the execution of those plans. His actual participation in the Wharton hold-up, the one misdeed of its kind where he had been present in person, had been occasioned by a desire to impress upon his associates that he was of the same fiber as themselves. He had gone out in a spirit of bravado and returned in a nervous panic. His main

source of revenue was now derived from protection money which he levied against the lawless who operated in the county, these assessments collected through the agency of the two Ralstons who were his deputies as they had been Wellman's before him. Protection came high and both Freel and Wellman profited accordingly. Oval Springs was a hotbed of lawlessness and a concession for any known transgression could be purchased for a price, a state of affairs confined not merely to Oval Springs alone but prevalent throughout the Strip.

The line between the law and the lawless was but vaguely defined. Instances of the apprehension of any wrong-doer were decidedly infrequent. Petty graft and crooked gambling flourished. As a carcass attracts scavenger birds so conditions in the Strip drew the vicious of the whole Southwest. Express messengers conveyed word of valuable consignments to friends who would make sure that the shipments failed to reach their destination. There were bankers who handled securities at stiff discounts without inquiry as to their source, jewelers who were equally incurious about the previous ownership of gems or gold, judges and county attorneys who were open to reason and sheriffs who followed false trails.

But all this was merely a passing phase coincident to the transition period of a new and untried territory during its transformation into an old and proven one. The background was one of enduring solidity. More than thirty thousand families had found homes in a single day and these toiled steadily on, unmindful of the wave of deviltry and corruption that swept the Strip, such circumstances having no particular bearing on their daily lives. Later, when they had more time to devote to affairs outside of the immediate problem of shaping their homesteads up into producing farms, they would rise up and cast out the parasites without apparent effort, for after all the solid citizens were many and the parasites comparatively few.

Freel rode out of Oval Springs and he traveled past occasional fields that were green with waving wheat. Spring had brought fresh evidence that the Strip, now a part of Oklahoma, would eventually prove to be the most productive portion of the State. Spring crops of all sorts were coming up in riotous profusion. Young orchards had been planted round many a homestead cabin; rows of slender saplings marked the site of future stately groves. The scattering fields that had been seeded to winter wheat gave promise of a tremendous yield and an average of more than twenty bushels

to the acre was confidently predicted. Orderly garden plots were in evidence on every homestead.

Since his occupancy of the Sheriff's office Freel had several times stopped at the Lassiters' cabin. He had haunted Molly Lassiter's footsteps for a year prior to that day when Carver's inopportune arrival had put a stop to his advances. In his new guise as a moneyed, influential citizen he saw one more chance of gaining the girl's favor. His manner was affable and without hint of previous unpleasant relations. Rather his attitude was one of friendly interest which any prosperous person might take in the affairs of a less fortunate acquaintance. Molly, believing that the past had best be left undisturbed, received him as she would any other casual acquaintance. On the occasion of this last visit Freel found Bart at home.

Bart had worked steadily, seldom straying far from home but instead finding relaxation at Carver's bunk house where the grub-liners still convened. There were times when he exhibited real enthusiasm for his work and on such days he spoke of eventually buying out one or more neighbors and operating a farm which would one day rival Carver's holdings across the ridge. There were other periods when the monotony of farm life maddened him and he grew moody and restless, conscious of the urge to straddle a horse and be off for some point where distance was not measured by neatly fenced section lines but instead was calculated in terms of a day's travel on a horse. It was during the darkest moments of one of these moods that Freel dropped in.

Bart listened while Freel commented upon various business and political ventures upon which he was engaged. Bart was frankly disinterested, his one thought for the moment being a desire to step up on a good horse and ride across a sage-brush desert in the fierce glare of the summer sun, or, as an alternative, to ride the same stretch in a screeching winter blizzard; it mattered little which so long as there would be neither fence nor human within a radius of twenty miles. All would have been well except that Freel, equally self-centered, attributed Bart's abstraction to a feeling of envy induced by the attractive word picture Freel had painted of his own successes. In parting he drew Bart aside.

"Any time I can hold out a helping hand you can count on me," he assured. "I'm in better shape to help you on your feet than any man in these parts."

Bart was not actively conscious that he was being patronized but he was aware of a sense of irritation, and the tone as well as the substance of the offer brought his ill humor to a sudden focus.

“Oh, hell!” he said wearily. “You can’t do me any favor except to let me alone.”

“That’s what I’ve been doing,” Freel returned. “Hadn’t you noticed?”

“I haven’t missed you,” Bart confessed. “But keep it up and maybe I will.”

“You’re somewhat in debt to me on that score right now,” Freel stated, and recited a few details to prove his point.

Bart’s home-coming with a wounded shoulder the day following the Wharton affair had created comment. His saddled horse had been found by a farmer near the point from which a second mount had been stolen, this last animal later recovered by the Kansas sheriff’s posse after its rider had made good his escape. Rumor had linked Bart’s name with these events and the news had trickled to the sheriff’s office.

“Do you think I’m asleep on the job?” Freel demanded. “I’ve known that all along. Don’t you call that letting you alone? It all dovetails right nicely, a clear case against you on both counts, robbery and horse stealing—two cases of horse stealing, in fact.”

“Oh, I didn’t bother to steal the second one,” Bart stated. “Don’t make your case too strong or maybe you’ll lose it. I run across Carver out there and we swapped mounts, me escaping while he led that Kansas outfit astray. Maybe you hadn’t heard that it was Carver’s horse I came riding home on—but I can cite you to a few witnesses who saw it.”

Freel pondered this point. He had not heard the name of the man picked up by the posse after the party they sought had presumably stolen his horse.

“I’ll make it a point to cover any such little details as that,” he said. “But you’re safe enough as long as you meet me halfway.”

“I’ll come the full distance and a few steps beyond,” Bart volunteered. “I could throw some light on that Wharton affair myself and some day I will.”

Freel experienced a recurrence of that apprehension which had assailed him at intervals since his participation in the Wharton event. He had never

considered it possible that Bart could have determined the identity of any one of the four men who had chanced across him that night. It had all happened with such suddenness; a voice from the darkness ahead. Then Noll had shot. Freel had been unaware of the identity of Noll's victim till after they had left the spot and Noll had announced that the voice was Bart's. Even then he had not been sure of the point until hearing the rumors which he had just now recited to Bart. It had seemed equally certain that Bart could not have recognized him.

"You'll have a chance to tell all you know to a jury," Freel predicted.

"And right after I speak my piece they'll cast a ballot to stretch your neck a foot long," Bart announced.

"Mine!" Freel said. "What fool notion are you working on now?"

"I'm not working—just resting," said Bart. "Here you come with all this patter about how you've befriended me by not having me jailed for something you did yourself. That's real generosity. Maybe it's never occurred to you that I recognized the four of you when you came riding up on me that night when Noll tried his damndest to kill me."

Freel's apprehension increased but he remained silent until Bart had finished.

"If I start remarking broadcast about that little event just how long do you imagine it would take folks to divine where the four of you had come from?" Bart inquired. "A few minutes back you was reciting about what a high place you'd attained in human affairs. Keep right on mounting—only keep it in mind that some day when time hangs heavy and I'm craving entertainment I'll pull out your props and let you down hard."

He turned his back on Freel and retired to the house. Freel returned to Oval Springs and sought a hasty conference with the mayor and the president of the bank. He was palpably nervous as he recounted the details of this complication.

"Get hold of yourself!" Wellman ordered. "You're jumpy. What does it signify anyhow? One man's wild yarn about hearing your voice in the dark wouldn't even shake that alibi. It's water-tight."

Crowfoot nodded agreement and chewed placidly at his cigar. He could face such a situation without turning a hair—as could Wellman.

“Bart’s in no shape to do any commenting,” Crowfoot amplified.

“But I tell you he will,” Freel insisted.

“Sit down,” Wellman instructed. “Plant yourself in a chair and quit prowling in circles. You’ll wear out the rug.”

“Bart might be feeling a trifle venomous since Noll tried to down him,” Crowfoot conceded. “It would have been preferable if Noll had quit living before he took that shot at Bart. But in order to link you with it he’d have to convince folks that he recognized your voice at night, then prove that you’d come from Wharton instead of any one of a hundred other points on the map. Not a chance in ten thousand.”

“But Carver’s into it now,” Freel pointed out. “You know what that means. He’s been waiting for a chance at me.”

“What you mean is that you’ve been waiting for a chance at him,” Crowfoot corrected. “And you’re crediting him with holding the same sentiments toward you.” Crowfoot was not one to allow personal differences or dislikes to obscure his judgment. “He’s the kind that’ll not interest himself in your affairs unless you go romping over onto his reservation and prod him into hostilities that he’d likely be wanting to avoid if only you’d let him. You’d better let this man Carver strictly alone. He’ll do the same by you.”

Neither Wellman nor Freel was prepared to accept this bit of advice.

“Then I’ll just tender one more suggestion,” Crowfoot announced, after finding himself overruled. “If you’re set on this business, then I’d urge that you do it yourselves, just the two of you, instead of hiring it done.” He was familiar with Freel’s roundabout methods.

Wellman endorsed this last suggestion.

“Absolutely,” he agreed. “Me and Freel will tend to this matter in person.”

Freel failed to state whether or not these sentiments met with his full approval. Crowfoot regarded him closely, then stretched and rose from his chair.

“Once there was three men in a town,” he remarked. “The rest didn’t count overmuch. One of the three had sand but no brains. Another was equipped with cunning but was totally minus of nerve. The third had both sand and brains.”

“And which one was you?” Freel inquired.

“I mentioned myself last,” Crowfoot answered without hesitation. “And being equipped like I explained, it does look like I could do better to trail by myself instead of being mixed up with a pair of rat-brained miscreants like you. If you’re set on stirring up Carver, you can just count me out.”

He departed and left Freel and Wellman to perfect their own plans.

They conferred at some length and as a result Freel spent several days in making quiet investigations among the homesteaders north and west of the Half Diamond H. Another evidence of the change that was taking place in the country was the fact that the code of silence and refusal to divulge information no longer prevailed. Many of the newcomers were willing, even eager, to impart any possible scrap of information. Freel found some who had noted Bart’s return with a crippled shoulder; others that would testify that the horse upon which he was mounted belonged to Carver. He discovered one man who had seen Bart ride up the Half Diamond H lane in the evening. In each instance Freel shook his head and commented upon the fact that it looked as if the two of them had been mixed up in it; that it certainly seemed inevitable that he should have to place them under arrest and charge them with the crime if the evidence kept piling up. In each case also he requested secrecy. In reality he gathered insufficient evidence to hold either of them overnight but he had created an abundance of witnesses to serve his purpose.

Some two weeks thereafter a man rode up to the rear door of the one saloon in the little town of Alvin a few miles down the valley from the Half Diamond H. He dropped his reins over a post a few feet from the door and entered. For an hour he loitered at a table, playing solitaire and making an occasional trip to the bar for a drink and a chat with the bartender.

“Nice place,” he commented after he felt that their acquaintance had ripened somewhat. “You own it?”

The man behind the bar nodded.

“Man by name of Carver live round here close?” the stranger inquired.

“A piece up the valley,” the bartender assented. “Not far.”

“Drop in here often, does he?” the man asked.

“Whenever he’s in town—couple of times a week average,” the proprietor informed. “Drops in for a glass of beer before riding home. Mostly he’s in of afternoons; once in a while of nights when some of the boys gather here. You wanting to see him?”

“Yes,” the other man admitted.

“You can ride out to his place in half an hour.”

“Rather see him first and size him up,” the stranger stated. “Harvest is coming on and he might use a hand. But I always like to look a man over before I hire out to him.”

The saloon keeper nodded without comment. This was no harvest hand. The stranger’s face was stamped with ruthlessness; straight thin lips, and above them a pair of wide-set cold black eyes.

“Point him out to me when he comes in, will you?” he requested. “So’s I can sort of size him up.”

Again the barman nodded. He noted the convenient arrangement; the open back door with the saddled horse just outside.

“Sure,” he laconically assented. “I’ll tip you.”

Carver failed to appear and when the usual evening crowd began to assemble the stranger departed. The following afternoon he reappeared, leaving his horse at the same convenient post just outside the rear entrance.

“You’d never recognize me if you was to see me again, now would you?” he asked the proprietor. “You couldn’t accurately describe me right now; and for all you can remember that bay horse of mine is a sorrel.”

He shoved two gold coins across the bar and fixed the other man with his black eyes. The saloon man pocketed the money.

“Correct on all counts,” he agreed.

The stranger returned to his table and the bartender, under pretense of arranging glassware and bottles, placed a long-barreled forty-five on a shelf just under the bar. One never could tell. He had been old-time rider of the unowned lands and could rightly read his signs. A few stray customers dropped in and departed. The liveryman lingered over two glasses of beer. The banker stepped in for his afternoon nip the moment the bank was closed for the day, and the keeper of the general store came in with the proprietor of the lumber yard. Three neighboring farmers entered together and shook the dice to determine who should pay for the round. The stranger surveyed each new arrival, peering from beneath the brim of his hat while apparently absorbed in his game. Each time the man behind the bar shook his head. When the last of these patrons had departed Carver came in alone.

“A pint bottle of your best beer for me, Jimmy,” he greeted. “An’ another one for you.”

As Carver crossed to the bar the proprietor noted that he was not wearing his gun. He had discarded the weapon the day of his return from Oval Springs the preceding fall and had never worn it since. The bartender gazed fixedly at the man at the table, then slowly shook his head again, a signal which Carver could not fail to observe.

Carver accorded the stranger one casual glance. He could see the rump of the horse that stood outside the open rear door. Jimmy spoke to the stranger.

“That fellow Carver you was wanting to see just rode up the street,” he said. “He’ll likely be in any time now.”

The man at the table nodded, frowning slightly at this reference before a third party. Carver turned, apparently noting his presence for the first time.

“Step up,” he invited. “I’ve only time for one; have to be dangling along toward home; but you can linger over yours. Name it.”

The stranger was anxious to be rid of him before the man he expected came in, so he moved to the bar in order to hasten proceedings. Jimmy set his drink before him. The man nodded his thanks and remained silent, not desiring to open a conversation lest it should cause his host to alter his decision to depart at once. Jimmy was slouching against the rear of the bar directly across from him, one hand resting on the shelf beneath it as if to support his weight. Carver picked up the pint of beer as if to drink from the

bottle; then, as the stranger reached for his drink, Carver swung the heavy bottle by the neck. The man went down as the weapon struck him behind the ear.

“After your opening remarks it looked like the wise thing was to lay him out first and make inquiries later,” Carver said as he retrieved the fallen man’s gun.

“He was out for you,” Jimmy informed. “I don’t know why but maybe you do.”

“Not an idea; never laid an eye on him before,” Carver asserted.

“He’s been waiting two days,” Jimmy said. He removed his hand from beneath the bar and exhibited the long-barreled gun. “I had this shoved against the front side of the bar within a foot of his vitals so I could touch it off through the wood in case of a slip. Them’s only half-inch boards there in front. You and me has been friends a long time and I was half minded to down him before you showed up; only you can’t put a man across just because he’s inquiring about a friend, no matter what you suspect about his intentions—not without getting thirty years or else take to the hills. But I was here to see that things came out all right.”

“I wonder now,” Carver said, looking down at the man on the floor. “I wonder who sent him.”

“You knew, didn’t you, that Freel has been round collecting evidence against Bart in that Wharton affair?” Jimmy asked. “I’ve been hearing that for quite a piece back. Folks get to talking over their drinks. Most always they do.” He recited a few comments which had come to his ears. “Just thought I’d tell you. If you look under that party’s vest you’ll find a deputy’s badge. That’s a hard layout up at the county seat and you’ve had words with different heads of the ring, so I gather.”

“That clears up the reason for his being here,” Carver said. “They sent him. He’d make a clean get-away if he could—flash that deputy’s badge if he couldn’t, and they’d back him up.”

“He don’t know that you’re Carver,” Jimmy said. “I’ll bring him round after you leave and explain that you was a friend of Carver’s and decided that things wasn’t right when I made that incautious remark. That will put me in the clear. I’ll announce how he’s unsafe in these parts; that you brought in

twenty-odd friends to view him laying there, face up, on the floor; that they marked well his features and declared open season on him anywheres in this part of the State. If he believes me he'll high-tail for parts unknown—and if he don't, why, I'll send him there."

Carver rode out to the Half Diamond H and entered the house. When he reappeared he was wearing his gun and he rode on across the ridge to the Lassiters. He found Bart seated on the corral bars, his chin propped in his hands as he gazed moodily across a field of ripening grain.

"How long since you indulged in some thoughtless comments about Freel's being mixed up in that Wharton hold-up?" Carver asked.

"Two weeks—maybe three," Bart returned. "He was so satisfied with himself that I just thought I'd tell him."

"And right after that he started connecting you and me up with it," Carver said. "He's been exerting himself to inquire among folks about your horse being found up near where you departed with that old crow-bait you was on when I met you; about that Kansas outfit jumping a wounded outlaw and picking me up instead, and how you turned up on my horse, you being shot in the shoulder."

"Sho!" Bart deprecated. "He couldn't make that stick. You don't imagine, now do you, that Freel's fool enough to have us jailed? Not when I could spill what I know. He wouldn't even consider it."

"That's what he wouldn't!" Carver agreed. "He's just creating a background. We're not slated to languish in jail, you and me. We're marked out for the slaughter."

Bart brightened.

"No!" he exclaimed. "Surely you can't mean that something is going to happen. It will provide me with a fresh interest in life if there's a prospect that I might possibly lose it. And how will all this come to pass?"

"Killed while resisting arrest," Carver stated.

"Sounds reasonable," Bart admitted. "I'll positively guarantee to resist."

"Before you're ever arrested you'll be much too dead to make any protest," Carver predicted. "Freel has planted the idea in folks' minds that before

long he'll have to book you and me for that deal. It's been whispered about and they're sort of expecting it. Then some day he'll drag in our corpses and announce that we'd been shot while resisting his efforts to take us."

"Interesting but only part way convincing," said Bart. "You've neglected to explain how he's to gain possession of our corpses so he can start dragging 'em in. I'll remonstrate with him considerable before I'll let him have mine."

"He won't collect it in person," Carver said.

"Maybe I'm supposed to send it to him," Bart suggested. "But he don't deserve any such favors from me. I consider his scheme a flat failure, myself."

"That county-seat aggregation is a hard bunch to go up against, the way they're sitting right now," Carver said. "They've got influence and power behind 'em. This way of eliminating a troublesome party is time-tried and tested. It's found favor with many a sheriff and chief of police before now and it's an old favorite with Freel."

"Then it appears that the clever thing to do is for us to organize too," Bart volunteered. "You can act as the chief and send me out to get Freel. I'll dry-gulch him so far from nowhere that even the coyotes won't find him."

"Some other time," said Carver. "Not now. We could hardly ride into town and murder the mayor and the sheriff all in one day without some sort of excuse. It would create unfavorable comment. This deal down at Alvin bears the brand of Freel's deep-seated planning. It's likely they'll come after us themselves the next time they try it, just so as to give it the earmarks of a lawful attempt to arrest. Meantime we'll have to work up a background of our own. The county seat needs cleaning up wholesale. If a man's going to live anywhere he might as well have decent conditions. Once folks get that in their minds we can defend ourselves and still render a patriotic service to the county as a whole."

"All right," Bart agreed. "After you've unfurled the flag I'll lead the last desperate charge with the whole county cheering. But it still appears to me that it would be simpler for me to lay out behind the hedge somewheres and do a little bushwacking myself."

“Meantime, just in case Freel sends out another hired killer, I wouldn’t lay myself open to any chance stranger that comes dropping along,” Carver advised.

“The first stranger that shows up anywhere within three hundred yards goes down in the smoke,” Bart assured.

Molly Lassiter came from the house as Carver turned to leave. He did not come often of late and she walked with him a short distance up the trail.

“We’ll start cutting next week,” Carver stated. Their talks were largely impersonal these days. “Harvest is crowding close to us now.”

“Bart expects to start cutting Monday,” she said. “How many bushels do you think your wheat will thresh out?”

“It’ll run close to twenty,” he estimated. “Maybe more. We ought to get fifteen thousand bushels or better.”

“And more next year,” she said. “You’ll put out more wheat this fall, won’t you?”

“Likely,” he answered. “I hadn’t quite made all my plans for next season.”

He had mentioned the fifteen thousand bushels of wheat casually and without elation. It would pay for the new farm machinery with which the Half Diamond H was now stocked but for which he still owed, leaving him a big margin for future operations. This first year’s crop would put him on a solid basis and well on his way toward the maturity of his original plan to buy all of the best land in the valley. By the time other homesteaders could prove up on their filings he would be in a position to buy out all who would sell. He had no present need even to avail himself of the assistance which both old Joe Hinman and Nate Younger were anxious to extend. Younger’s outfit had been the largest in the unowned lands in the old days and now Carver was building it up into the largest of the new day that had dawned. He had been top hand for both the Box Bar and the Half Diamond H under the old régime, a moving spirit among the riders of the Cherokee Strip, and now he had become a leader among the settlers. Both of his old employers, having taken a part in raising him, were duly proud of the fact; theirs still the loyalty that had always prevailed between an owner and the men who rode for his brand. The easy road to success now opened invitingly to

Carver but he found no joy in the prospect. He had worked steadily toward his original aim but his initial enthusiasm was lacking.

The girl had observed this change and it troubled her. Of late Carver had exhibited a restlessness that was akin to Bart's; and she wondered. He had gone so far; would he turn back now?

She accompanied him but a short distance and the conversation was confined to impersonal topics. She observed that for the first time in six months he was wearing his gun. As they parted he noted her troubled gaze resting upon it.

"Sho! This?" he said, tapping the weapon. "I someway don't feel dressed up without it. I wear it as an ornament, kind of, the way a girl wears a ribbon," and he moved on up the trail.

A few days later Molly mounted the ridge and watched the start of the harvesting. There was nothing to attract swarms of harvest hands such as crowded into the country farther north where the whole landscape seemed a solid body of wheat. Another year, when the acreage seeded to wheat would be increased fourfold, then they would come. But Carver had found no scarcity of hands to help him harvest his crop. From her point of vantage the girl could see tall-hatted, chap-clad men toiling in the fields. Later in the season, after the wheat had been stacked, she would see them plowing. They rode their horses out to their work as they had always done, and left them standing about.

She would see no other harvest such as this. Another season and the wheat fields of the Strip would be invaded by the riffraff that always came south for the harvest and followed it north. Then the tumbleweeds would be gone. Now they had rallied to lend a helping hand to one of their own kind, one man who had understood. And as she watched them toiling at these unfamiliar tasks she experienced a thrill of sympathy for the men who had helped to make homes possible for others and now found no place in the new scheme of things for themselves. For the riders of the waste places had ever been the vanguards of civilization. Fur traders had skimmed the riches of their calling from a vast territory and departed, leaving it no more habitable than before; gold seekers had prospected the hills and passed on but the cowhands had stayed to make the West habitable for those who

should follow. And now that the followers had come there was no further use for the ones who had led the way.

As the summer advanced the girl observed how swiftly the ranks of the grub-liners were depleted as they were forced to realize the fact that spring work would never open up for their sort again. Families of Cherokees still prowled the countryside at will, pitching their teepees along the streams, the squaws begging incessantly from one homestead cabin to the next. The settlers, expecting nothing better from the Indians, were prone to tolerate this sort of nuisance but looked with increasing disfavor upon the nomadic white riders that drifted about in much the same aimless fashion. Yet they were not parasites, these men, even though the newcomers so viewed them. Rather they came from a proud fraternity. In grub-lining they had been merely following an ancient and respected custom of their kind and when they now found that this no longer prevailed they desisted.

It was only through Carver's insistence that grub-liners still continued to drop in at the Half Diamond H. Their presence created the one break in the monotony that seemed closing in upon him. He made that clear to each comer and urged each one to return. But another old custom was dying and the number of grub-line riders who turned up for meals at the Half Diamond H was depleted by half before the summer was ended, as these jobless ones drifted into other lines.

One by one, the girl watched them go and she wondered how they would fare in these new pursuits which they adopted, not from choice but from necessity. The majority would sink to oblivion, drudging at tasks which they had always despised. But there were some whose names were slated for fame in the annals of this new Southwest.

Carl Mattison was destined to become one of the most-famed marshals of all time. Even now the fame of his reputation as a man hunter was mounting. The name of Crowfoot was slated to become synonymous with prestige and power, linked with perhaps the most impressive fortune in the whole Southwest. There would be many others who would attain high places. Milt Lassiter would create a place in history as one who would defy the law for a dozen years with a price on his head and with every officer in five States desirous of collecting it. And this last-named career was even

now exerting its influence on Molly's understanding of the conditions which prevailed in this new land.

In the main the old conventions were respected, old traditions upheld, but modified to fit conditions as they were, not as other communities decreed that they should be. Here actualities were everything, appearances nothing, and there was not yet that rigid adherence to minor banalities that were accepted as eternal verities in older communities where such details were considered the bulwark of smug respectability. Here a man was judged by what he stood for in his present environment, his daily relations with his neighbors, not by what his family had accomplished in generations past,—for the past had no part in this new land that lived in the present with an eye to the future. Ex-convicts were making a new start with their families; former wildlings were making good and the rising above past transgressions was considered a cause for congratulation, not one for reproach. Milt Lassiter's ill fame did not react to the detriment of either Bart or the girl, their neighbors valuing the two for themselves alone.

This knowledge brought in a new doubt to Molly—a doubt which fostered a certain content. After all, in a land of new standards, was it right that her adherence to a moth-eaten tradition should keep Carver and herself apart? This thought, gradually crystallizing into a conviction, brought with it a measure of comfort, but Carver, not knowing, experienced a daily increase of restlessness and discontent.

Few times when the bunk house held more than three grub-liners and all too frequently it was unoccupied. Carver found time dragging slowly and days and nights were equally monotonous. He knew that he could sell his holdings for a considerable sum. Should he sell out and migrate to some point where there was still some open range available and buy out a small cow outfit? He debated this problem but lacked his usual gift of quick decision.

There came a night when several old friends rode up to the bunk house. Joe Hinman and Nate Younger dropped in for one of their frequent overnight visits and Bart Lassiter came across the ridge. A stud game was in order and Carver rose and went to the house, brought forth a silver dollar and addressed it.

“Little lonely dollar, you was to mount up to a million. You haven’t mounted that high yet but if I’d follow through it’s likely you’d attain it. But is that what we’re wanting after all? I’ll put you to the test—fair God or false—and let you decide it for me.”

He returned to the bunk house and took out a fifty-dollar stack of chips, tossing one red chip back and replacing it with the silver dollar.

Old Joe Hinman regarded the coin that crowned the stack of chips.

“Seems like I’ve seen the selfsame coin before,” he commented. “Surely now, you wouldn’t go and risk it. It’s led you quite a piece, that dollar has.”

“But maybe not in just the right direction,” Carver said. His thoughts reverted to the day he had acquired it.

“What depends upon the outcome?” old Joe inquired. “Which way will you leap?”

“Just this one stack,” said Carver. “If I double it I stay. If I lose I go. It means the difference between here and somewhere else; pumpkins or tumbleweeds, cows or crops—for one more year.”

An hour later he cashed in a double stack and the cards had decreed that he stay for another year.

Bart Lassiter leaned back in his chair and grinned sympathetically.

“My year has another six months to run,” he said. “I’ll be free before you regain your liberty. You’ll find me waiting for you somewhere out yonder when your sentence has expired.”

XIV

Two settlers stood in the saloon in Alvin. The proprietor lowered his voice and leaned across the bar.

“Look you, now—there’s going to be a killing,” he predicted. He jerked a thumb toward the rear door. “Right out there is where he left his horse and for two days he set there at that table waiting for Carver to come in.”

Jimmy had just recited the incident of the stranger’s attempt to take Carver unawares and was now merely adding a few conclusions of his own to lend an air of spice and mystery to the tale.

“He knows too much about folks that are running things in the county seat, Carver does; him and Bart Lassiter,” Jimmy stated. “A bartender hears things. Folks get to talking over their drinks. Most always they do. I’ve heard it said for a positive fact that Bart saw Wellman blow up the bridge out of Oval Springs the night the up-passenger was ditched and two men killed. Wellman was sheriff at the time.”

It seemed that the two homesteaders had also been hearing things.

“United States mail went up in smoke that night when the mail car burned,” said one. “I’ve heard that Mattison’s still making inquiries about that. He never quits, Mattison don’t.”

“Well, then, and who’s the two men that could convict Wellman and get him hung a mile high?” The saloon man pointed out triumphantly. “Who, now? Why, Bart Lassiter! And Carver! I’d never want it said that it come from me; it’s only between us three. But who is it that knows Freel led the shooting when some of Mattison’s men was killed at the same time Wellman was wrecking the bridge? Whoever knew that would be dangerous to Freel, wouldn’t he? See how it all works out?”

The two nodded agreement.

“There’s a dozen of Carver’s close neighbors that swear he was home the whole day of that Wharton business that Freel was trying to connect him up

with,” one volunteered. “I guess Freel seen it wouldn’t do any good to have him put under arrest.”

“Arrest! Listen!” and Jimmy leaned farther over the bar. “That was months back. It’s no arrest that he wants. Didn’t I say there was due to be a killing? He was just paving the way for it. Mark me, now! Some day we all will hear that Carver and Bart has been arrested—dead!” He lowered his voice still farther. “The fellow that left his horse out there while he waited for Carver was wearing a deputy’s badge under his vest. But he didn’t appear anxious to arrest Carver alive.”

Jimmy sighed and passed the two men a drink on the house. Later he would charge that bit of hospitality against the sum Carver had left with him for the purpose.

“Of course I wouldn’t want to be quoted,” he concluded. “But a bartender hears things. Folks get to talking over their drinks. Most always they do.”

It was perhaps the hundreth time he had detailed his conclusions to different customers in the past two months. In various parts of the country others of Carver’s friends had been similarly occupied in breathing their suspicions into willing ears. It was being asked why no arrests were made in the county except for minor offences. The settlers, since their first crop was harvested and they had more leisure time to devote to affairs outside their own personal labors, were giving thought as to the manner in which the county seat was managed; and their opinions were being furnished ready made.

A quiet individual turned up in Oval Springs and made a few discreet inquiries, interviewing perhaps a dozen residents of the town, his queries in each case the same. He merely asked if they could state positively that Freel and the Ralstons had been in town on a certain date some months back; and if they were willing to testify that Milt and Noll Lassiter had been held in durance throughout that same day. The date was that of the Wharton hold-up. No man could swear positively to these facts. Whenever some party volunteered the information that he was equally unable to swear to the contrary, the inquirer merely nodded and replied that it would be quite unnecessary. Then, after three days in the county seat, he left town in the night and was seen no more. None had witnessed his departure; he had told

no man his business and there was widespread conjecture as to whether or not he was in the employ of the Wharton bank.

He rode up to the Half Diamond H at daylight on the morning after the cards had decreed that Carver should remain for another year. He declined the money which Carver would have given him to cover expenses.

“Just for old times’ sake,” he said, and rode south to catch a train out of Enid for his home ranch in Texas.

And just across the ridge Bart Lassiter was recounting the outcome of the previous night’s poker session to his sister. The girl experienced a queer little pang when she heard that Carver had risked the silver dollar which he had treasured for so long a time. She knew its associations, also that it rested within her power, and hers alone, to reinstate them, vested with all their former meaning. A small thing perhaps, but relatively unimportant events are frequently more significant than the large and obvious, and this incident in some way served to fix the conviction that had been growing upon her for weeks past. After all, what did anything matter but her own viewpoint and Carver’s? But Hinman and Nate Younger were waiting to ride with her to Oval Springs for the first county fair, from which point she would accompany them to Caldwell for a few days before the opening of her school for the fall term. The two old cowmen had planned this trip for weeks and she could not disappoint them now. She would be more sure of herself before the day of her return; would have time in which to determine whether or not the new-found conviction was permanent. And suddenly she knew that she was sure of herself now,—very sure; but her two old friends were waiting. She drew Bart aside.

“Tell Don not to risk it again,” she said. “I want him to keep it always. Tell him that for me.”

And Bart, deciding that his sister’s whims had already imposed far too many restrictions upon both his own activities and Carver’s, carefully refrained from delivering the message. Instead, he registered a protest when he crossed the ridge to see Carver.

“I’m becoming downright weary of listening to warnings,” he fretfully declared. “Never a day goes by but what some friendly soul drops past to

inform me that Wellman and Freel are scheming to play it low-down on me. Every man in the county must know it by now."

"The most of them," Carver agreed. "If anything was to happen to us now there'd be five hundred men rise up and point out to their friends that they'd been predicting that very thing—that they'd been telling 'em all along how Wellman and Freel was planning to murder us some night."

"It's nice to know that we'll be vindicated after we're dead," said Bart. "But I was wondering if there maybe wasn't some method by which we could go right on living even if we don't get quite so much credit for our part in the affair. Personally I don't approve of trifling round trying to set the whole county on their trail when one man could terminate their wickedness in two brief seconds."

"But it's paved the way for the clean-up of the county seat," said Carver.

"Let's you and me ride over and clean it up in the old wild way," Bart urged.

"Only we'll let them ride out here," Carver substituted. "That background I was speaking about a while back is all arranged."

"I'm glad you're satisfied with the background," Bart returned. "I still maintain that I ought to secrete myself behind a sprig of scrub oak and wait until Freel comes riding into the foreground. That way we'd take 'em front and rear. But anyway suits me, if only it transpires soon."

"Real soon now," Carver promised. He turned to a grub-liner who was saddling his horse in the corral.

"You'll find Mattison waiting in the hotel at Casa," he informed. "He'll be expecting the message. Tell him just this: That my time has come to deputize him. He'll know what to do. Then you forget it." He turned back to Bart. "Real soon now," he repeated. "That's the chief reason why Hinman and old Nate insisted on taking Molly over to enjoy herself at the fair."

The girl was, in all truth, enjoying herself at the fair. It was as old Joe Hinman remarked to a group of friends in the lobby of Wellman's hotel.

"Nate and me are giving the little girl a vacation," he said. "First time she's been away from that homestead overnight since Bart filed on it. She thinks a lot of that little place, Molly does. Even now she won't be persuaded to

stay away but one night. We'll take her up to Caldwell this evening to buy a few women's fixings and show her the best time we can but she'll come traipsing back home to-morrow. Can't keep her away. Carver had to promise to go over and stay all night with Bart so no one could steal that homestead while she's gone."

Nate Younger remarked similarly in Freel's saloon within earshot of the two Ralstons who were refreshing themselves at the bar. In fact, the two old cowmen mentioned the matter to a number of acquaintances whom they chanced across in a variety of places throughout town and it was within an hour of noon before they took Molly out to the fair.

The girl found the fair a mixture of the old way and the new. The exhibits were those of the settlers but the sports and amusements were those of an earlier day, a condition which would prevail for many a year. Every such annual event would witness an increase of agricultural exhibits, fine stock and blooded horses as the country aged; but at fair time, too, the old-time riders of the unowned lands would come into their own again for a single day. Then would bartenders lay aside their white aprons, laborers drop their tools and officers discard their stars, donning instead the regalia of the cowboys. Gaudy shirts and angora chaps would be resurrected from the depths of ancient war bags. Once more they would jangle boots and spurs and twirl old reatas that had seen long service. The spirit of the old days would prevail for a day and a night and fairgoers would quit the exhibits to watch the bronc fighters ride 'em to a standstill, bulldog Texas longhorns and rope, bust and hog-tie rangy steers, to cheer the relay and the wild-horse races and all the rest of it; then a wild night in town, ponies charging up and down the streets to the accompaniment of shrill cowboy yelps and the occasional crash of a gun fired into the air,—then back to the white aprons and the laborer's tools for another year.

The girl and her two old companions spent the day at the fair and in the early evening took a train to Caldwell some two hours before Freel and Wellman rode out of town. The evening's festivities were in full swing and none observed their departure. Freel was nervous and excited.

"We'd better have sent some one else," he said.

Wellman turned on him angrily.

“And have the thing bungled again!” he said. “Damn your roundabout planning and never doing anything yourself. If you hadn’t sent that fool over to Alvin without letting me know we’d have had it all over by now. Crowfoot told you we’d have to do it ourselves. So did I. And if you’d only waited we’d have found an opening months back but that Alvin fluke made Carver take cover and he’s never give us a chance at him since. We wouldn’t even know there was one to-night if those two old fossils hadn’t let it out accidental.”

“But maybe that talk of theirs was—” Freel began, but his companion interrupted and cut short his complaint.

“We’ve give Carver time to do just what we was to head him from doing—getting our names linked with every deal we wanted kept quiet.”

“He couldn’t prove a sentence of it in the next fifteen years,” Freel asserted.

“He’s started folks thinking—and talking,” said Wellman. “They’ll talk more every day. It’s right now or never with me!”

“But it’s too late to make out that it’s an arrest,” Freel protested. “After all that’s been said.”

“That’s what I know,” said Wellman. “So we’ll hurry it up and slip back into town. With all that fair crowd milling around, there won’t be one man that could testify we’d ever left town; and I can produce several that’ll swear positive that we’ve been there all along.”

They rode on in silence and they had not covered a distance of three miles from town when Mattison rode into the county seat at the head of a half-dozen men,—men who, incidentally, knew nothing whatever of his mission except that they had been deputized to follow wherever he led. As the marshal entered the outskirts of town a figure detached itself from the shadows. Mattison joined the man who reported in tones that did not carry to the rest of the posse.

“They’ve gone,” he informed. “I followed Freel every living minute till he and Wellman slipped out of town together a half-hour ago.”

“Sure they didn’t change their plans and come back?” Mattison asked.

“Dead sure,” the man stated positively. “Not a chance.”

Mattison led his men direct to the county jail and left them just outside the office while he entered alone. The two Ralstons occupied the place at the time.

“Where’s Freel?” the marshal demanded.

“Couldn’t say,” one of the deputies answered. “Out around town somewheres likely.” His eyes rested apprehensively on the group of men standing just outside the door. “You wanting to see him?”

“Yes. I was—somewhat,” Mattison admitted. “I surmise you all know what about.”

The Ralstons denied this.

“We’ll go out and look him up,” Mattison decided. “You two stay here. I might be wanting to question you later.”

But the Ralstons failed to tarry. Within five minutes after the marshal’s departure they set forth from town and the county was minus the services of two deputies who neglected even to hand in their resignations before quitting their posts.

A similar scene was enacted at Wellman’s hotel. The crowd in the lobby turned suddenly quiet as Mattison led his men in and inquired at the desk for Wellman. The proprietor was not to be found. The county attorney reclined in a chair at one side of the lobby and Mattison crossed over and addressed him.

“Any idea where I could locate Wellman and Freel?” he inquired.

The county attorney moistened his lips and disclaimed all knowledge of their whereabouts. A voice rose from the far end of the lobby, a voice which Mattison recognized as that of the man who had accosted him in the outskirts as he rode into town.

“They got out ahead of you, Colonel,” the man stated. “Your birds has flown.”

“What’s that?” Mattison asked, turning to face the informer. “How do you know?”

“Just by sheer accident,” the man reported. “I see one party holding two horses just outside of town. Another man joined him afoot. One of ’em

touched off a smoke, and in the flare of the match I made out that they was Wellman and Freel. They rode west.”

“That’s downright unfortunate,” Mattison said. “But it don’t matter much. I was only wanting to see them to gather a little information they might be able to give. Another time will do just as well.”

He turned and stared absently at the county attorney and that gentleman’s florid countenance turned a shade lighter.

“Don’t matter,” the marshal repeated, rousing from his seeming abstraction. “Nothing of any importance.”

He led his men from the lobby and rode west out of town. And out in the country toward which he was heading were Carver and Bart Lassiter, both prone in the grass a few yards apart and as many from Bart’s homestead cabin.

“This is growing real tedious,” Bart stated. “Whatever leads you to suspect that they’re due to pay their call on just this particular night?”

“They won’t if you keep on talking,” Carver returned. “If you keep quiet they might.”

Bart lapsed into silence. He had already spent a long hour in his present location and would have preferred to be up and stirring about. Another twenty minutes dragged by and he was on the point of addressing Carver again when his intended utterance was cut short by a slight sound close at hand. Five more interminable minutes passed and he heard a single soft footfall a few feet away.

Two dim figures approached the house and slipped silently to the door. The night was so black that they seemed but two wavering patches that merged with the surrounding obscurity. One tested the latch and the door opened on noiseless hinges. For a space both men stood there and listened. Then one entered while the other remained at the door.

Carver spoke.

“What was you expecting to locate in there?” he asked softly.

The man in the door whirled and fired at the sound of his voice, the flash of his gun a crimson streak in the velvet black of the night. Carver shot back at

the flash and Bart's gun chimed with the report of his own. There was a second flash from the doorway but this time the crimson spurt leaped skyward for the shot was fired as the man sagged and fell forward. There was a splintering crash of breaking glass as the man inside cleared a window on the far side of the house. Bart shot twice at the dim figure that moved through the night, then rose to his feet intent upon following but Carver restrained him.

"Let him go!" he ordered. "One's enough!"

"But just why the hell should I let Freel get away?" he demanded, pulling back from the detaining hand which Carver had clamped on his shoulder.

"It's Wellman. Freel's there by the door," Carver said.

"How can you tell? It's too black to see," Bart insisted.

"Wellman would be the one to go in. Freel would be the one to hang back," Carver said. "That's why I planned for you and me to stay outside in the grass instead of waiting inside. Wellman and me used to be friends—likely would be still if it wasn't for Freel. It makes a difference, some way. Wellman's harmless to us from now on, outlawed for this night's business. He'll be riding the hills with the wild bunch till some one comes bringing him in."

He stopped speaking to listen to the thud of many hoofs pounding down the trail from the ridge.

"Now I wonder who that will be," he speculated.

"You know now," Bart accused. "You always know. Whoever it is didn't come without you had it planned in advance. But I'll never tell what I think."

"No, I wouldn't," Carver advised.

Mattison reached the foot of the trail with his men.

"What's up?" he inquired. "We'd just stopped at the Half Diamond H to ask you to put us up for the night. Nobody home. I thought I might find you here so we'd just started over when all that shooting set in and we hustled along. You two out hunting for owls?"

“Yes,” Carver said. “There’s one by the door. The other one flew out the window. Bart and I was reclining out here in the grass talking things over when the pair of them eased up to the door and one slipped on in. I asked how about it and the man in the door started to shoot. Then we did some shooting ourselves. The party there by the door is our amiable sheriff.”

“Then the one that got off is Wellman,” one of the posse spoke up. “Right from the first shot I guessed it. I’ve heard it whispered round that they was planning to get you, and when the ruckus broke I was looking to find you two dead when we got here. I’m glad they got it instead. That whole county seat bunch needs cleaning out.”

There was a chorus of assent from the posse and under its cover Carver murmured to Bart.

“So much for background,” he said.

“It’s a right queer bit of business for them two to be at,” Mattison stated. “I’ll have to put off gathering that information from Freel. You’d better saddle up and ride on into town with me, Carver, and we’ll report this affair to the county attorney. You boys bring Freel in with you. He’s likely got a horse tied round somewheres close. Scout around till you find him. Yes, we’ve been needing a change of officials at the county seat for some time and it does look like the alteration has been effected to-night.”

Carver rode off with the marshal.

“Thanks for going to all that bother,” Carver said. “I’m indebted a lot.”

“It just evens that score,” said the marshal. “And the whole thing worked out nice. It’ll make a clean sweep in Oval Springs. Wellman won’t show up any more. I’ll venture to predict that the two Ralstons will have vanished from these parts before morning and the county attorney is scared into a state of palpitation right now. He’ll attend to all the necessary formalities to see that you’re given honorable mention instead of a trial.”

“Then after we’ve finished with him I’ll take the night train for Caldwell and loaf around a few days,” Carver announced. “I haven’t traveled to any extent for some time.”

It was nearly morning when the train pulled into Caldwell.

“No use to go to bed now,” Carver decided. “I’ll find some of the boys and set up.”

The Silver Dollar, now conducted in the rear of a cigar store which had been fashioned across the front of the building since the old, wide-open days had become a thing of the past in Caldwell, was still operated as an all-night place of amusement. But Carver found that its grandeur had vanished, the whole atmosphere of the place was different. There were a dozen men in the place, but of them all Carver saw not one of the riders that had been wont to forgather here.

He drew a tarnished silver coin from his pocket.

“Here’s where I got you and right here is where I leave you,” he said. “You’ve sewed me up for one year now and I’m about to get shut of you before you cinch me for another. We’ll spend you for a drink to the boys that used to gather here. Back to your namesake, little silver dollar.”

As he crossed to the bar he glanced at the swinging side door that led into the adjoining restaurant. It opened and a girl stood there, motioning him to join her. He followed her outside. Two horses stood at a hitch rail down the street.

“Come on, Don; we’re going home,” she said. Then, as he seemed not quite to understand, “Didn’t Bart tell you?”

“No,” he said. “Whatever it was, Bart didn’t tell me.”

“Then I’ll tell you myself on the way home,” she promised.

She linked an arm through his and moved toward the two horses at the hitch rail.

“Tell me now,” he insisted, halting and swinging her round to face him. “You can’t mean—but I must be reading my signs wrong, some way.”

“You’re reading them right,” she corrected. “All those outside things don’t matter. I know that now. We’re going home, Don, just you and me. That’s all that counts.”

He had a swift, uneasy vision of the occurrences of the night just past.

“But you haven’t heard—,” he commenced.

“Oh, yes; I’ve heard,” she interrupted. “The news was telephoned up here and was spread all over Caldwell before you even took the train from Oval Springs. That doesn’t matter either. Hinman phoned to Mattison at the hotel and found that you were coming. That’s how I knew and why I was waiting up. I’ve rented those two horses so we could ride instead of taking a train to Oval Springs. I’d rather, wouldn’t you?”

“We’ll start in just one minute, Honey,” he said. “But first—”

She looked the length of the street and nodded, for there was no one abroad.

Some miles out of Caldwell the girl pulled up her horse where the road crossed the point of a hill.

“You remember?” she asked.

“I won’t forget,” he said.

For it was from this same point that they had watched the last of the herds of the big cow outfits held in the quarantine belt awaiting shipment, the riders guarding them, the trail herds moving up from the south, while over across had been that solid line of camps where the settlers were waiting to come in.

“We saw the sun set on the old days here,” she said. “Let’s watch it rise on the new.”

For as far as they could see the lights were flashing from the windows of early-rising settlers. A boy was calling his cows. A rooster crowed triumphant greeting to the red-gray streaks that were showing in the east. There came a flapping of wings as a flock of turkeys descended from their perch on the ridgepole of a barn, then their querulous yelping as the big birds prospected for food in the barn lot.

“It’s different,” he said.

Then, from the road below them, came the clatter of hoofs and riotous voices raised in song; a few wild whoops and a gun fired in the air.

“The last few of the tumbleweeds, rattling their dry bones to impress the pumpkins,” Carver said.

The words of the song drifted to them.

I'm a wild, wild rider
And an awful mean fighter,
I'm a rough, tough, callous son-of-a-gun.
I murder some folks quick
And I kill off others slow;
It's the only way I ever take my fun.

The girl's thoughts drifted back to the big Texan who had led the stampede and then presented his claim to another. She leaned over and rested a hand on Carver's arm.

"I'm very much contented right now, Don," she said. "But so terribly sorry for the poor tumbleweeds that have been crowded out."

TRANSCRIBER'S NOTES:

Obvious typographical errors have been corrected.

Inconsistencies in hyphenation have been standardized.

Archaic or variant spelling has been retained.

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